BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
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Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **PETITIONER'S NOTICE OF MOTION AND MOTION FOR ISSUANCE OF PEREMPTORY WRIT OF MANDATE** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492 Action filed May 29, 2026 Trial: Not set

NOTICE OF MOTION

TO RESPONDENTS CALIFORNIA HIGHWAY PATROL AND G. SERRATO, AND TO COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on January 8, 2027, at 9:00 a.m., in Department 25 of the Superior Court of California, County of Alameda, René C. Davidson Courthouse, 1225 Fallon Street, Oakland, California, or at another time set by the Court, Petitioner will seek judgment on the surviving First Cause of Action and issuance of a peremptory writ of mandate under Code of Civil Procedure section 1085 and Penal Code section 679.10. Reservation

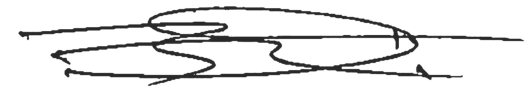
number: 958052306492.

The motion seeks: (1) judgment setting aside Captain G. Serrato's April 20, 2026 denial of Petitioner's Form I-918, Supplement B request and a writ directing reconsideration under the correct statutory criteria, upon the Court's finding of a material abuse of discretion or legal error; (2) if the evidence conclusively establishes every certification condition and leaves no reasonable lawful alternative, a writ directing execution and delivery of the certification; or (3) if resolution requires credibility findings or other material factfinding, an order setting an appropriately focused evidentiary proceeding before merits judgment. Petitioner does not request damages or relief on dismissed causes of action.

The grounds are that CHP was presented with a specific claim of qualifying false imprisonment and unlawful criminal restraint, supported by the contemporaneous incident record; the verified Answer and agency-produced reports identify materially disputed accounts of the custody decision; and a refusal under Penal Code section 679.10 must be a lawful exercise of certification authority rather than a decision resting on material factual error or application of an improper legal standard. The conditional duty to certify arises when qualifying victimhood and helpfulness are established. (Pen. Code, § 679.10, subds. (c), (g), (h), (k).)

The motion is based on this notice and memorandum, the verified petition, Respondents' Answer dated October 12, 2026, and the August 29, 2026 demurrer order (court-file documents identified in Petitioner's separate request for judicial notice), Petitioner's concurrently filed declaration and its Exhibits A--I (Appendix of Exhibits, App. 001--082), the original recording upon its proper lodging and admission, and such other admissible evidence and argument as the Court receives. The proposed judgment and writ are lodged separately pursuant to rule 3.1113(m) of the California Rules of Court.

DATED: _____



BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,

Respondents.

Case No. 26CV191136

MEMORANDUM OF POINTS AND AUTHORITIES

Hon. Jenna M. Whitman, Dept. 25
Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492
Action filed May 29, 2026
Trial: Not set

I. INTRODUCTION

This proceeding concerns CHP's statutory certification decision. On April 9, 2026, Petitioner submitted Form I-918, Supplement B and supporting materials asking CHP to certify his helpfulness concerning unlawful restraint and false imprisonment during a November 1, 2024 encounter. Captain Serrato's April 20 letter rejected qualifying and substantially similar criminal activity. The surviving First Cause of Action asks whether that determination was a lawful exercise of authority under Penal Code section 679.10. It is not a claim that an officer's every unconstitutional act automatically qualifies for certification.

A discrete conflict in CHP's account warrants particular attention. CHP Form 202 describes Petitioner as choosing not to perform the walk-and-turn because he found it difficult and incorporates field-test performance into its custody rationale. The transcript submitted with the certification request, however, records Petitioner expressing willingness to attempt that test and Officer Melano advising against its administration because the freeway shoulder was uneven. (Ex. C, CHP 202, AGO 000031--000032 [App. 030--031]; Ex. F, printed p. 9 [App. 069], approximately 01:10:14--01:10:30.) The original recording--not the litigant's characterization--should control. This conflict bears directly on the reliability of a stated basis for the restraint. The Court must evaluate its materiality alongside the evidence supporting and contesting the asserted lawful authority for custody.

The Court preserved Count One at the pleading stage, expressly recognizing that proof contradicting the officers' claimed impairment observations could support a finding of absent probable cause and an abusive refusal to certify. (Order Sustaining Demurrer in Part, Aug. 29, 2026, pp. 3--4.) Petitioner seeks a decision on that actual question. He principally requests vacatur and reconsideration if material abuse is found, while preserving direct certification only on findings establishing the statutory predicates and a single permissible result.

II. THE REQUEST, DECISION, AND CHP'S VERIFIED ADMISSIONS

CHP admits that its officers approached Petitioner's stationary car on the I-580 shoulder as a welfare check, that the car was not moving when observed, and that the encounter was substantially recorded by a dashcam. (Respondents' Verified Answer, Oct. 12, 2026 ("Answer"), ¶¶ 34--35.) CHP further admits the officers initially questioned a cup's contents and subsequently identified that liquid as urine. (Answer ¶¶ 36, 47.) This is significant because it objectively resolves what that particular cup held; it does not purport to adjudicate the source of every alleged sensory observation.

CHP also admits the officers did not tell Petitioner they smelled alcohol emanating from him or his vehicle, did not tell him his speech was slurred, hesitant, or impaired, and that Petitioner correctly identified Livermore and read highway signs aloud. (Answer ¶¶ 37, 45--46.) These are admissions about the officers' statements and documented conduct, not concessions that the officers could not have perceived an odor or visual impairment signs. CHP acknowledges that the officer's report checked the box for alcoholic beverage presence and that an empty can of Mike's Hard Lemonade was located. (Answer ¶ 47.) The Court can evaluate the probative weight and chronology of these distinct items without conflating the urine cup with the separate empty can.

On April 9, Petitioner transmitted his certification request and incident exhibits. CHP admits the email was sent with exhibits. (Answer ¶ 58; Ex. B [App. 003--025].) Its April 20 letter asserts that a review was conducted, rejects qualifying criminal activity under section 679.10 and federal U-visa law, and also rejects substantially similar activity. (Ex. A [App. 002].) The letter does not identify lack of helpfulness as the reason for refusal. This motion challenges the legality of that qualifying-activity conclusion, not merely the length of the response.

III. THE GOVERNING DUTY AND STANDARD OF REVIEW

California expressly lists false imprisonment and unlawful criminal restraint among the qualifying activities. (Pen. Code, § 679.10, subds. (c)(18)--(19), (d).) Upon request, the certifying official "shall certify victim helpfulness" when a person was the victim of qualifying criminal activity and has been, is being, or is likely to be helpful to its detection, investigation, or prosecution. (Id., subd. (g)(1).) Subdivision (h) establishes a rebuttable helpfulness presumption where the victim has not refused or failed to provide reasonably requested assistance. The statute does not condition certification on an investigation remaining open, charges, arrest of a suspect, prosecution, or conviction. (Id., subd. (k)(1).) Nor may an

official deny for reasons forbidden by subdivision (k)(3), including cooperation or refusal to cooperate in a separate case. These rules are concrete limits on certification discretion, not substitutes for proof of qualifying victimhood.

Under Code of Civil Procedure sections 1085 and 1086, traditional mandate may enforce a duty imposed by law and correct a material abuse of discretion when ordinary remedies are inadequate. A court may require an official to act under the governing law; it ordinarily does not select among genuinely lawful discretionary outcomes. (Common Cause v. Board of Supervisors (1989) 49 Cal.3d 432, 442--443; Saleeby v. State Bar (1985) 39 Cal.3d 547, 560--562.) When only one outcome is lawfully reasonable after facts are established, the writ may compel that result. (California Correctional Supervisors Organization, Inc. v. Department of Corrections (2002) 96 Cal.App.4th 824, 827.) Petitioner's direct personal interest and the absence of another remedy that supplies the requested certification satisfy sections 1085--1086.

IV. THE QUALIFYING CRIME IS UNLAWFUL PERSONAL RESTRAINT ; THE RECORD REQUIRES ITS ELEMENTS TO BE DECIDED

False imprisonment is the unlawful violation of another's personal liberty. (Pen. Code, § 236.) Penal Code section 146(a) separately identifies arrest or detention against a person's will by a public officer acting under color of legal authority without lawful authority; to the extent CHP evaluates section 146(a) as a substantially similar criminal restraint offense under section 679.10(d), its actual elements and the alleged conduct must be assessed. Petitioner was handcuffed, involuntarily transported and held in custody. (Ex. C, CHP 202, AGO 000031--000033 [App. 030--032]; Answer ¶¶ 38--39; Newanforbi Decl. ¶¶ 2, 5--6.) That restraint was intentional; the decisive issue is lawful authority for it. The criminal-activity theory does not turn on whether the officers were later charged or prosecuted. (Pen. Code, § 679.10, subd. (k)(1).)

The contemporaneous recording, where properly authenticated and compared with the officer's report, bears materially on lawful authority. Before any sobriety investigation, the officers approached a stationary vehicle as a welfare inquiry. In the transcript, Officer Melano directed Petitioner to lower the window at approximately 00:56:40, then opened the passenger door three seconds later. The officers' inquiry thereafter developed into detention, tests, handcuffing and custody. (Ex. F, 00:56:07--00:59:46 [App. 062--064], 01:10:14--01:11:33 [App. 069--070].) Petitioner asks the Court to distinguish lawful welfare assistance from subsequent compulsory restraint and to evaluate the justification existing at each relevant stage. The initial passenger-door opening is not asserted to be an independently enumerated U-visa offense; it is evidence bearing on the encounter's progression and the alleged restraint. The transcript first places the dispatch discussion of parole at approximately 01:11:42, after the earlier opening of the front and rear passenger doors. (Ex. F, 00:56:43 [App. 062], 00:59:46 [App. 064], 01:11:42 [App. 070].) The CAD log separately records, at 01:07:29 a.m., a dispatch-entered comment reporting an NCIC parole return (Ex. D, AGO 000022 [App. 054], entry [7]), several minutes before the parole discussion the transcript places at approximately 01:11:42. The log shows only that the entry was made in the CAD system; it does not show whether, when or how that information was transmitted to or received by either officer, and the entry's confirmation column is blank. Officer knowledge of parole status before any search or arrest therefore remains a fact to be established from the recording, radio traffic or testimony; Petitioner asks the Court to infer neither knowledge nor ignorance from the log entry alone. Later-acquired knowledge of a search condition cannot itself retrospectively justify a prior search. (People v. Sanders (2003) 31 Cal.4th 318, 330--332.) This chronology is offered for its bearing on the authority asserted at the time, not as a separate cause of action for a vehicle search.

The officers did not observe Petitioner driving. (Answer ¶ 34.) Vehicle Code section 40300.5 permits specified exceptions to the in-presence rule for warrantless misdemeanor DUI

arrests, but an arrest based on earlier driving must satisfy the applicable statutory circumstances and reasonable-cause standard. The record identifies a stationary vehicle on a freeway shoulder; it does not, simply by those words, establish roadway obstruction or another statutory exception. (Veh. Code, § 40300.5; see Mercer v. Department of Motor Vehicles (1991) 53 Cal.3d 753, 768--769 [driving requires volitional movement].) The agency must identify the applicable facts supporting lawful authority rather than equate the encounter's DUI label with an answer to the qualifying-restraint allegation.

V. THE MOST PROBATIVE DOCUMENTED DISCREPANCY IS THE WALK-AND-TURN ACCOUNT

CHP Form 202 states: "Walk and Turn: Newanforbi chose not to perform this test and related it was difficult." It later incorporates "poor performance on the FST's" into the arrest analysis. (Ex. C, AGO 000031--000032 [App. 030--031].) The submitted transcript records Petitioner saying, "I mean I think we can do that" at 01:10:23, followed by Melano's concern that "it's on the side of the freeway and it's like uneven ground. I wouldn't do that one," and his partner's acceptance of that assessment. (Ex. F, printed p. 9 [App. 069], 01:10:14--01:10:30; Newanforbi Decl. ¶ 4.)

That sequence is not an effort to relabel an earlier one-leg-stand discussion. It concerns a separate proposed walk-and-turn that the officers, rather than Petitioner, decided not to administer. If the original recording corroborates the exchange, the report materially misattributes the reason for nonperformance and cannot fairly count that nonperformance as Petitioner's failure. The Court should compare the native video, contemporaneous report and witness testimony. In determining whether the resulting certification rejection can stand, a material error in a stated basis for the arrest warrants more than automatic deference to the report's characterization.

VI. A VOLUNTARY PAS REFUSAL DOES NOT SUPPLY AN INFERENCE OF GUILT

The transcript records Meza-Gonzales advising that the roadside preliminary alcohol screening test was not required, Petitioner's refusal at approximately 01:11:15, and the immediate direction to turn around. (Ex. F, printed p. 10 [App. 070], approximately 01:10:54--01:11:33; Newanforbi Decl. ¶ 5.) Section 23612 expressly requires advice of the right to decline PAS. (See Veh. Code, § 23612, subds. (h)--(i).)

The First District held in People v. Jackson (2010) 189 Cal.App.4th 1461 that it was error to admit refusal of a voluntary PAS as consciousness-of-guilt evidence at a DUI trial, because doing so would undermine the statutory right to refuse. The holding concerned evidentiary use at trial and did not itself decide every possible prearrest reasonable-cause application. Its controlling distinction nonetheless defeats treatment of exercising that legislatively protected choice as a substitute for objective evidence of criminal conduct. The Court should evaluate what information actually supported custody before the refusal, rather than deriving an adverse inference merely from the exercise of the statutory choice. (Id. at pp. 1465--1470; Veh. Code, § 23612(i).)

VII. THE COURT SHOULD ASSESS THE TOTALITY ON THE RECORD ACTUALLY PROVED, WITHOUT RETROSPECTIVE SUBSTITUTES

Petitioner does not ask for a finding of unlawful arrest from the failure to file charges. Nor does he propose retroactive invalidation of prearrest probable cause from a blood draw at 02:38 a.m. The produced laboratory record reports 0.073 ± 0.004 g% ethanol at that later collection time; it does not establish a scientifically defensible earlier concentration absent additional foundation, nor does it decide impairment under Vehicle Code section 23152(a). (Ex. C, AGO 000033--000034 [App. 032--033].) The subsequent judicial warrant authorized

acquisition of evidence at its time of issuance; its existence does not replace analysis of what was known at the earlier arrest.

Similarly, the section 851.6 certificate is an official custody-classification document, relevant to the incident and absence of a filed complaint but not a judicial judgment that the officers lacked probable cause. (Ex. G [App. 077]; Pen. Code, §§ 849.5, 851.6.) These limits prevent later events from obscuring the concrete prearrest evidence. They also avoid confusing certification with a criminal prosecution of the officers: Penal Code section 679.10 requires a qualifying-activity finding, not a prior conviction.

CHP's Answer and production are significant because they permit precise tests of the incident account rather than speculation about motive. CHP's statutory evaluation must rest on a sound understanding of the asserted offense, the officers' actual conduct, and materially reliable evidence. A legitimate welfare inquiry or initial DUI investigation is not categorically inconsistent with later criminally unlawful restraint. The Court should adjudicate the question on the actual chronology.

VIII. SERRATO'S QUALIFYING-ACTIVITY DETERMINATION MUST WITHSTAND REVIEW ON ITS MATERIAL FACTUAL BASIS

The April 20 decision denies qualifying and substantially similar activity. (Ex. A [App. 002].) If the factfinder credits the objective recording and determines that materially false report statements supplied the unlawful custody rationale, it may conclude that the agency's refusal to recognize qualifying restraint was an arbitrary or legally erroneous application of section 679.10. Judge Whitman's August 29 order expressly preserved Count One on that premise. (Order, pp. 3--4.) The critical connection is between a proved error bearing on lawful custody and the statutory victimhood decision, not a demand that Serrato write a longer letter.

CHP's Verified Answer supplies admissions bearing on that evaluation: the vehicle was stationary; the officers initially treated the cup as suspect but identified it as urine; they did not verbally disclose an odor allegation or tell Petitioner his speech was impaired; and Petitioner correctly identified his location and read signs. (Answer ¶¶ 34--37, 45--47.) These admissions narrow the factual inquiry and permit the Court to test the officer narrative against the recorded sequence. The additional walk-and-turn comparison provides a specific, independently checkable inconsistency. Its significance is not that one discrepancy automatically proves a crime, but that the certifying decision must not rest on a materially inaccurate account of the confinement.

Petitioner does not assert knowledge of Serrato's undisclosed deliberations. The produced records (Exs. C--E, I) and CHP's privilege log (reserved for the separate discovery track and not attached) establish the existence and dates of produced and withheld materials, not the contents of privileged writings or what Serrato privately considered on April 20. (Newanforbi Decl. ¶¶ 8, 11--13, 17--18.) CHP's beat assignment sheet for the October 31, 2024 shift lists Captain Serrato as the on-call commander and assigns Officers Melano and Meza-Gonzales to beat 68, the unit shown on the CAD log. (Ex. I [App. 082]; Ex. D [App. 054].) Petitioner draws no inference from that entry beyond its face; it does not show that Captain Serrato was contacted about this arrest. No finding of legal error is sought merely because the denial letter is brief or an internal memorandum bears a later date. Instead, Petitioner requests relief on affirmative facts the Court finds established and material to the no-qualifying-activity determination.

IX. THE HELPFULNESS REQUIREMENT IS SUPPORTED BY THE SUBMITTED COMPLAINT AND WILLINGNESS TO ASSIST

Petitioner made complaints to CHP and POST, provided a timeline and transcript of the incident, identified the specific officers and supplied incident records with his certification

request. He remains willing to supply truthful information and reasonable assistance concerning the alleged unlawful restraint. (Newanforbi Decl. ¶¶ 7, 10, 16; Ex. B [App. 003--025]; Ex. H [App. 078--080].) CHP's Answer denies that an investigating entity requested information from Petitioner. (Answer ¶ 57.) The statutory presumption of helpfulness applies where a victim has not refused or failed to provide reasonably requested assistance. (Pen. Code, § 679.10, subd. (h).)

The relevant assistance concerns detection or investigation of the qualifying activity alleged against the officers. Declining a voluntary PAS during a DUI investigation of Petitioner is not, by itself, a refusal to aid investigation of the alleged unlawful restraint. Nor may a separate-case cooperation decision become a forbidden reason for denying certification. (Id., subd. (k)(3)(H).) Once qualifying victimhood is established, these facts independently support helpfulness and the conditional certification obligation; they do not create qualifying victimhood by themselves.

X. JUDGMENT, REMAND, OR A FOCUSED DETERMINATION OF ESSENTIAL FACTS

The Court may enter judgment granting traditional mandate when the proven facts establish a material abuse of certification discretion. (Code Civ. Proc., §§ 1085--1086; Common Cause, supra, 49 Cal.3d at p. 442.) In the first instance, Petitioner requests that the Court set aside the April 20 refusal and direct CHP's authorized official to reconsider the request in accordance with the Court's actual findings, the enumerated offense definitions, and the nonprosecution/helpfulness provisions of Penal Code section 679.10. A remand would leave genuinely discretionary determinations to CHP and require compliance with the material finding that made the prior decision unlawful.

If the Court instead finds the alleged qualifying offense and helpfulness conclusively

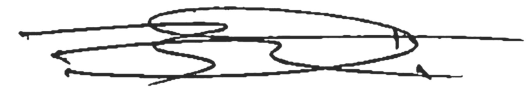
established and no reasonable lawful disposition other than certification, it may direct certification itself. (California Correctional Supervisors Organization, supra, 96 Cal.App.4th at p. 827.) Direct certification is sought only on those findings, not simply from submission of the request.

If the Court cannot resolve genuinely material factual disputes on this motion, it should set an evidentiary procedure focused on the disputed grounds for restraint, the accuracy of the report where material to the custody decision, and the statutory criteria. Code of Civil Procedure section 1094 permits noticed-motion judgment when no triable factual issue remains or decision rests solely on an administrative record. Section 1090 governs trial of essential factual issues raised by a return. For informal administrative action subject to traditional mandate, California law permits relevant extra-record evidence where facts are contested. (Western States Petroleum Assn. v. Superior Court (1995) 9 Cal.4th 559, 575--576.) Any presentation remains subject to authentication and the ordinary evidence rules. Petitioner requests the narrowest procedure necessary to reach a final determination on Count One.

XI. CONCLUSION

Petitioner respectfully requests judgment on Count One and a peremptory writ vacating the April 20 denial and directing lawful reconsideration upon a finding of material abuse of discretion or legal error. Alternatively, if all certification conditions are established and discretion permits no other lawful outcome, he requests execution and delivery of Form I-918 Supplement B. If essential factual disputes prevent judgment on this record, he requests a focused evidentiary hearing or trial-setting order. Petitioner seeks no relief on dismissed claims and no adjudication of immigration status.

DATED: _____



BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

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CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,

Respondents.

Case No. 26CV191136

DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF MOTION FOR PEREMPTORY WRIT OF MANDATE

Hon. Jenna M. Whitman, Dept. 25
Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492
Action filed May 29, 2026
Trial: Not set

I, Brendan Ngehsi Newanforbi, declare:

1. I am the petitioner in this action, identified in the caption as Brendan Ngehsi Newanforbi. The following statements are based on my personal observations, records I prepared, sent or received, and documents delivered to me in this lawsuit. I could competently testify to them. I do not claim personal knowledge of what CHP officers privately observed or of what Captain Serrato internally reviewed.

2. On November 1, 2024, I was in a rented Tesla Model Y parked on the shoulder of Interstate 580 eastbound near Isabel Avenue in Livermore. I had stopped because I was tired

and fell asleep. The vehicle was not moving when the officers approached. I remember being awakened during their contact and answering questions. I did not consent to being arrested, handcuffed, transported or held in jail.

3. I recall Officer Melano directing me to lower or open the passenger window and the passenger door being opened before I had done so. I answered questions about where I had been and where I was, and participated in certain roadside exercises. I do not offer any expert interpretation of the HGN or time-estimation tests. The original recording, not my recollection, should control exact words and chronology.

4. The officers proposed a walk-and-turn test after earlier, distinct exercises and discussions. My recollection is that I expressed willingness to try it. Officer Melano then raised concern about conducting that test on the uneven freeway shoulder, and it was not administered. I distinguish this from the earlier discussion of the one-leg stand. My transcript (Exhibit F) places that exchange at approximately 01:10:14--01:10:30 (Ex. F, printed p. 9 [App. 069]).

5. I was told that the roadside preliminary alcohol screening (PAS) test was not required. I declined that voluntary test. I was then directed to turn around and was handcuffed, transported and taken into custody. My refusal of the roadside PAS was distinct from any later discussion of an evidentiary chemical test after arrest; I do not assert that no later chemical-test discussion occurred.

6. I was held in custody and released on November 5, 2024. To my knowledge, no criminal charge arising from the November 1 encounter has been filed against me. [VERIFY THROUGH SIGNING DATE.]

7. I reported my concerns about the officers' conduct to CHP and to the California

Commission on Peace Officer Standards and Training (POST). I remain willing to supply truthful information and reasonable assistance concerning the alleged unlawful restraint. To my knowledge I have not refused or failed to provide information or assistance reasonably requested of me in an investigation of that alleged conduct. This paragraph concerns the alleged qualifying activity against me, not what I agreed or declined to do during CHP's investigation of me for suspected DUI.

8. I do not know from personal observation which items Captain Serrato read, which officers he interviewed, what review file he maintained, or what rationale beyond the denial letter he used. I do not assert the contents of any document CHP has withheld.

EXHIBITS. Exhibits A through I are bound in the accompanying Appendix of Exhibits, which begins with an index. "App." numbers are stamped at the bottom right of each appendix page. Each exhibit is reproduced complete, in the order received or filed, without alteration of content except as follows: the only additions are the exhibit slip sheets, a Bates index for Exhibit C, the App. page stamps, and a machine-readable text layer on scanned pages; and, consistent with California Rules of Court, rule 1.201, I have redacted personal identifiers (date of birth, driver license number, alien registration number, booking and PFN numbers, license plate number, and a third party's personal telephone number) and the offense codes and descriptions in criminal-history entries. Redacted areas appear as solid black boxes, some marked "[REDACTED]." Unredacted copies are available to the Court on request.

9. Exhibit A (App. 001--002) is a true copy of the April 20, 2026 letter from Captain G. Serrato, Commander, CHP Dublin Area, denying my April 9, 2026 request for Form I-918 Supplement B certification. I recognize it because I received it in response to my request; it is addressed to me at my Stockton address, bears CHP File No. 390.18437.17620.26-050, refers to my request "Dated: April 9, 2026," and is signed over Captain Serrato's name. I received it by [METHOD AND DATE OF RECEIPT--TO BE COMPLETED BY DECLARANT]. I

attached the same document as Exhibit 1 to my verified petition; the copy here is reproduced from page 45 of the petition as filed.

10. Exhibit B (App. 003--025) is a working copy of my April 9, 2026 certification submission, reconstructed from my verified petition as filed: the request letter and supporting legal analysis, the Form I-918 Supplement B I prepared for CHP's signature (petition PDF pp. 47--66, including the petition's own exhibit cover sheets), and my April 9, 2026 2:00 p.m. transmittal e-mail to Sergeant Dutra, copied to Captain Serrato, with Lieutenant Paul's April 10, 2026 acknowledgment reply (petition PDF pp. 145--146). I recognize these as the documents I prepared and sent and the reply I received. [BEFORE SIGNING: compare Exhibit B page by page against the as-sent April 9 e-mail and its attachments in my sent mail; state here whether every page matches, and identify any page that differs or any attachment that was sent but is not reproduced.] Until that comparison is complete, Exhibit B is offered as a working copy pending as-sent verification.

11. Exhibit C (App. 026--052) is a true copy of the document set delivered to me on October 23, 2026 by respondents' counsel, the California Department of Justice, in response to my document requests in this action, as production Exhibit 5, Bates-numbered AGO 000029 through AGO 000053 (25 pages). It is reproduced complete and in produced order, preceded by a one-page Bates index I prepared for convenience (App. 027). I recognize it because I received it as part of that production and the Bates numbers and file name match the production as delivered. I did not author these records and do not vouch for the truth of their contents; I offer them as the agency's own account of the arrest. (Evid. Code, § 1400 et seq.; see also Evid. Code, § 1414.)

12. Exhibit D (App. 053--056) is a true copy of the CHP Incident Detail Report for Incident No. 241101GG0064, Bates-numbered AGO 000022--000024 (3 pages), received in the same October 23, 2026 production as production Exhibit 3. I recognize it for the same

reasons stated in paragraph 11, and offer it on the same basis.

13. Exhibit E (App. 057--059) consists of true copies of the CHP 415 daily activity records for October 31, 2024 for Officer S. Meza-Gonzales (ID 023295) and Officer J. Melano (ID 023054), received in the same October 23, 2026 production as production Exhibits 8 and 11. I recognize them for the same reasons stated in paragraph 11, and offer them on the same basis.

14. Exhibit F (App. 060--075) is a true copy of the 15-page timestamped transcript I prepared from the November 1, 2024 CHP audiovisual recording, as filed as Exhibit 5 to my verified petition (petition PDF pp. 68--82). I prepared it by listening to the recording and transcribing what I heard. Speaker attributions and bracketed descriptions are my own and are not statements by the officers or CHP-certified. It is not a substitute for the original recording, which should control. This is the edition I submitted with my April 9, 2026 request. [BEFORE SIGNING: confirm against the as-sent April 9 attachment that this 15-page edition, and not a later edition, is the one sent.] I do not offer the separate 19-page edition as the April version.

15. Exhibit G (App. 076--077) is a true copy of the Penal Code section 851.6 detention certificate issued by CHP Dublin (Dublin CHP-01991), naming me, which I received after my release. I recognize it because it was given to me by CHP, it bears my name and city, and I attached it as Exhibit 7 to my verified petition; the copy here is reproduced from page 90 of the petition as filed. I rely on it only as a record of how the custody was later classified, not as a judicial finding.

16. Exhibit H (App. 078--080) consists of true copies of correspondence I received concerning my complaints: CHP Dublin Area's March 26, 2026 letter (File No. 390.18437.17620) assigning Sergeant Eric Dutra to investigate, and POST's acknowledgment letter regarding Case No. PUBLIC-26-000371 (March 23, 2026). I recognize them because

they were sent to me in response to my complaints and I attached them as Exhibits 11 and 12 to my verified petition; the copies here are reproduced from pages 141 and 143 of the petition as filed. The underlying complaints I submitted are not attached. [LOCATE AND ATTACH OR DESCRIBE THE COMPLAINTS AS SUBMITTED, IF AVAILABLE.]

17. Exhibit I (App. 081--082) is a true copy of the CHP Dublin Area beat assignment sheet dated October 31, 2024, Bates-numbered AGO 000025, received in the same October 23, 2026 production as production Exhibit 4. I recognize it for the same reasons stated in paragraph 11. The black redaction boxes and yellow highlighting appear on the copy as produced; I did not add them.

18. I have not attached the October 23, 2026 production transmittal, CHP's privilege log, my requests for production or their proofs of service, the federal screening order, Respondents' Answer, or this Court's August 29, 2026 order. Court-file documents are the subject of a separate request for judicial notice; the native recordings are addressed by separate lodging; and discovery materials are reserved for any discovery motion. I understand that the court's September 8, 2026 filing confirmation for my lodging papers records the related proof of service as rejected, and I do not represent that any recording has been lodged effectively or received in evidence.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, 2026, at _____,

California.

_____

BRENDAN NGEHSI NEWANFORBI

Petitioner, In Pro Per

BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
Email: bnn.cdl@gmail.com
Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,

Respondents.

Case No. 26CV191136

INDEX OF EXHIBITS TO DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF MOTION FOR PEREMPTORY WRIT OF MANDATE

Hon. Jenna M. Whitman, Dept. 25
Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492
Action filed May 29, 2026
Trial: Not set

INDEX OF EXHIBITS

Exhibits to the Declaration of Brendan Ngehsi Newanforbi in Support of Motion for Peremptory Writ of Mandate (Cal. Rules of Court, rule 3.1110(f)). "App." numbers are stamped at the bottom right of each appendix page; each source document retains its own Bates or printed page numbers.

Exh.	Description	Source / Bates	App. pages
A	Signed April 20, 2026 denial letter of Capt. G. Serrato, Commander, CHP Dublin Area	Filed petition (May 29, 2026) PDF p. 45 (Pet. Ex. 1)	App. 001-002
B	April 9, 2026 Form I-918 Supplement B certification submission, with April 9 transmittal e-mail and April 10, 2026 CHP acknowledgment e-mail	Filed petition PDF pp. 47-66 (Pet. Exs. 2-4, incl. petition cover sheets at pp. 52, 61) and pp. 145-146 (Pet. Ex. 13)	App. 003-025

C	CHP production Exhibit 5 (complete): CHP 202 arrest report, laboratory reports, DS 367 forms, chemical test admonition, probable cause declaration, notice to appear, consolidated arrest report, CHP 180, search warrant and affidavit, blood test request, property receipt, arrest screen prints	Respondents' production of Oct. 23, 2026, AGO 000029-000053 (25 pp.), preceded by a one-page Bates index	App. 026-052
D	CHP Incident Detail Report (CAD log), Incident No. 241101GG0064 (complete)	Respondents' production of Oct. 23, 2026, AGO 000022-000024 (3 pp.)	App. 053-056
E	CHP 415 daily activity records, Oct. 31, 2024: Officer S. Meza-Gonzales (ID 023295) and Officer J. Melano (ID 023054)	Respondents' production of Oct. 23, 2026, production Exhibits 8 and 11 (1 p. each)	App. 057-059
F	Petitioner-prepared transcript of CHP dashcam recording, Nov. 1, 2024 - the 15-page edition submitted with the April 9, 2026 request	Filed petition PDF pp. 68-82 (Pet. Ex. 5)	App. 060-075
G	Penal Code section 851.6 detention certificate, CHP Dublin	Filed petition PDF p. 90 (Pet. Ex. 7)	App. 076-077
H	CHP/POST correspondence: CHP complaint assignment letter (Mar. 26, 2026) and POST acknowledgment letter (Mar. 23, 2026)	Filed petition PDF pp. 141 (Pet. Ex. 11) and 143 (Pet. Ex. 12)	App. 078-080
I	CHP Dublin Area beat assignment sheet, Oct. 31, 2024 (graveyard shift)	Respondents' production of Oct. 23, 2026, AGO 000025 (1 p.)	App. 081-082

EXHIBIT

A

Denial of Form I-918 Supplement B Certification

Letter dated April 20, 2026 · Capt. G. Serrato, Commander, CHP Dublin Area
To Brendan N. Newanforbi · File No. 390.18437.17620.26-050
Filed petition PDF p. 45 (Pet. Ex. 1) · App. 001–002

CALIFORNIA HIGHWAY PATROL

4999 Gleason Drive, Dublin, CA 94568 | (925) 828-0466

GAVIN NEWSOM, GOVERNOR

CALIFORNIA STATE TRANSPORTATION AGENCY

April 20, 2026

File No.: 390.18437.17620.26-050

Brendan N. Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

Re: Request for I-918 Supplement B Certification, Dated: April 9, 2026

Dear Mr. Newanforbi:

Recently, you requested that the California Highway Patrol (CHP) Dublin Area certify your Form I-918 Supplement B, U Nonimmigrant Status Certification, stemming from an incident that occurred on November 1, 2024. A thorough review of this incident was conducted. Unfortunately, this incident does not meet the standard of qualifying criminal activity identified in Section 679.10 of the California Penal Code (PC), nor does it meet the standards of the Immigration and Nationality Act Section 101(a)(15)(U)(iii). Additionally, this review found no substantially similar qualifying criminal activity as defined in Section 679.10(d) PC. Therefore, your request to certify your Form I-918, Supplement B, U Nonimmigrant Status Certification, was denied.

If you have any additional questions, please contact Lieutenant Gary Paul at the CHP Dublin Area at (925) 828-0466.

Sincerely,

G. SERRATO, Captain
Commander

Safety, Service, and Security

EXHIBIT B

Form I-918 Supplement B Certification Request

Submitted April 9, 2026 · Brendan Ngehsi Newanforbi to CHP Dublin Area
With April 9 transmittal e-mail and April 10, 2026 CHP acknowledgment
Filed petition PDF pp. 47–66, 145–146 (Pet. Exs. 2–4, 13) · App. 003–025

Working copy reconstructed from the filed petition; pending verification against the as-sent April 9, 2026 e-mail and attachments.

Brendan N. Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
bnn.cdl@gmail.com
Telephone: (209) 801-4442

April 9, 2026

VIA EMAIL

Sergeant Eric Dutra, ID 19981
Dublin Area, California Highway Patrol
4999 Gleason Drive
Dublin, CA 94568

cc: Captain G. Serrato, Commander, Dublin Area CHP

Re: Formal Request for U Nonimmigrant Status Certification
Pursuant to Form I-918 Supplement B; 8 U.S.C. § 1101(a)(15)(U);
California Penal Code § 679.10 (as amended by AB 1261, eff. Jan. 1, 2024)
CHP File No.: 390.18437.17620
POST Complaint No.: PUBLIC-26-000371
A-Number: 203-115-087

Dear Sergeant Dutra:

I write respectfully to request that you, as the assigned certifying official, execute the enclosed Form I-918 Supplement B, U Nonimmigrant Status Certification, in connection with CHP File No. 390.18437.17620. This request is made pursuant to the Victims of Trafficking and Violence Protection Act of 2000 (VTVPA), 8 U.S.C. § 1101(a)(15)(U), and the mandatory certification provisions of California Penal Code § 679.10, as strengthened by AB 1261 (Stats. 2023, Ch. 679), effective January 1, 2024.

I am writing to you specifically because Captain G. Serrato's March 26, 2026 letter designated you as the assigned investigator for my citizen complaint. Additionally, the Commission on Peace Officer Standards and Training (POST) forwarded my complaint to CHP on March 23, 2026, under Case No. PUBLIC-26-000371, confirming that the matter is under active agency review. The enclosed Supplement B form has been pre-filled with the factual information required under the federal regulations and is ready for your review and signature.

I. CALIFORNIA LAW MANDATES CERTIFICATION

California Penal Code § 679.10 imposes affirmative, non-discretionary obligations on state law enforcement agencies—including CHP—to process U visa certification requests. Specifically:

> **Mandatory Processing:** Under § 679.10(j), a certifying entity "shall process a Form I-918 Supplement B certification within 30 days of request." This is not a discretionary guideline; it is a legislative mandate.
>
> **Rebuttable Presumption of Helpfulness:** Under § 679.10(h), there is a "rebuttable presumption that the victim is helpful, has been helpful, or is likely to be helpful" if the victim has not refused or failed to provide information and assistance reasonably requested by law enforcement. I have not refused any such request. To the contrary, I have affirmatively cooperated at every stage.
>
> **No Prosecution Required:** Under § 679.10(k), "a current investigation, the filing of charges, closing of a case, and a prosecution or conviction are not required for the victim to request and obtain the Form I-918 Supplement B certification." The CHP's investigation need not be complete—nor need it result in prosecution—for the certification to issue.
>
> **Limited Grounds for Withdrawal:** Under § 679.10(l), a certifying official "may only withdraw the certification if the victim refuses to provide information and assistance when reasonably requested." No such refusal has occurred here.

The California Attorney General's Information Bulletin No. DLE-2024-05, issued to all state and local law enforcement agencies, reaffirms these obligations and encourages agencies to "be vigilant in identifying and supporting immigrant crime victims who may be eligible for U visas."

II. THE STATUTORY ELEMENTS ARE SATISFIED

To obtain a U visa certification, three elements must be established: (1) the petitioner is a victim of qualifying criminal activity; (2) the petitioner possesses information concerning the criminal activity; and (3) the petitioner has been helpful, is being helpful, or is likely to be helpful in the investigation or prosecution. Each element is met here.

A. Qualifying Criminal Activity

On November 1, 2024, on Interstate 580 East in Livermore, Alameda County, CHP Officers Santiago Meza-Gonzalez (#023295) and Jose Melano (#023054) subjected me to criminal conduct constituting multiple qualifying offenses under 8 U.S.C. § 1101(a)(15)(U)(iii), including:

> **False Imprisonment / Unlawful Criminal Restraint** (Cal. Penal Code § 236)—I was unlawfully arrested, handcuffed, and detained; the arrest was subsequently reclassified as a "detention" in a revised report, an implicit acknowledgment that the initial restraint was without legal justification;
>
> **Felonious Assault / Battery** (Cal. Penal Code § 242)—an involuntary blood draw was performed on my person based on a misrepresented warrant, constituting an unlawful application of force;

Obstruction of Justice (analogous to Cal. Penal Code §§ 118, 182)—the officers fabricated sworn arrest reports that are directly contradicted by the CHP's own dashcam recording, constituting the creation of false evidence under penalty of perjury; and

Perjury (Cal. Penal Code § 118)—false statements in sworn reports contradicted by objective dashcam evidence.

Each of these offenses is independently enumerated as qualifying criminal activity under the VTVPA. The dashcam transcript—objective, contemporaneous evidence in CHP's own custody—corroborates these allegations and directly contradicts the officers' written reports.

B. Possession of Information

As the direct victim and sole civilian percipient witness to the November 1, 2024 incident, I possess firsthand information regarding every aspect of the qualifying criminal activity. I have gathered and preserved key evidence, including the dashcam transcript, the arrest report, and the certificate of detention—all of which I have made available to CHP through this complaint process.

C. Helpfulness

I have been helpful, am currently being helpful, and am likely to continue being helpful in the investigation of this criminal activity. My cooperation includes: filing the citizen complaint that initiated this investigation (File No. 390.18437.17620); filing a separate complaint with the Commission on Peace Officer Standards and Training (POST Case No. PUBLIC-26-000371); participating in DMV administrative proceedings related to the incident; gathering and preserving the dashcam transcript as objective evidence; and presenting all evidence to CHP and related agencies. At no time have I refused or failed to provide information or assistance reasonably requested by any investigating entity.

Under § 679.10(h), these facts create a rebuttable presumption of helpfulness that can only be overcome by evidence that I have refused to cooperate. No such evidence exists.

III. SUBSTANTIAL PHYSICAL AND MENTAL ABUSE

I have suffered substantial physical and mental abuse as a direct result of the qualifying criminal activity, including: physical pain from forcible handcuffing and an involuntary blood draw; the trauma and humiliation of an unlawful arrest and incarceration; extended detention triggered by a fabrication-induced parole hold; severe and ongoing emotional distress and anxiety; complete loss of my Commercial Driving License and livelihood for one full year (DMV suspension effective February 20, 2025 through February 19, 2026); and lasting reputational and economic harm that continues to this day. These consequences are well-documented in the record before CHP.

IV. IMPORTANT CLARIFICATIONS FOR THE CERTIFYING OFFICIAL

I respectfully call your attention to several points the Department of Homeland Security and the California Attorney General have emphasized for certifying officials:

Signing the certification does not grant a visa. The Form I-918 Supplement B is not a visa approval. It is a factual certification that the individual is or was a victim of qualifying criminal activity and has been helpful. USCIS independently adjudicates the visa petition, conducts a full background check, and makes all eligibility determinations. The certifying official's signature carries no immigration consequences standing alone.

This certification concerns the officers' conduct, not the outcome of the complaint. The standard is whether the petitioner is a victim of qualifying criminal activity and has been helpful—not whether the investigation has concluded or discipline has been imposed. California law is explicit that no prosecution, conviction, or even a pending investigation is required.

CHP has a public-safety interest in certifying. As the DHS U Visa Law Enforcement Resource Guide emphasizes, certifying U visa petitions builds trust within communities, encourages crime reporting, and strengthens law enforcement's ability to detect, investigate, and prosecute criminal activity. CHP's cooperation here advances these goals.

V. TIME-SENSITIVE REQUEST AND 30-DAY STATUTORY DEADLINE

Please be advised that California Penal Code § 679.10(j) requires the certifying entity to process this certification request within 30 days of receipt. I respectfully request that CHP treat this letter as the formal date of request for purposes of the statutory clock. Accordingly, the deadline for processing this certification is **no later than May 9, 2026**.

Should CHP determine that it cannot certify this request, § 679.10(g) requires the certifying entity to provide "a written explanation of the specific reasons for the denial." A generalized or pro forma denial would not satisfy this statutory obligation.

VI. ENCLOSURES

Enclosed for your review and execution please find:

1. Completed Form I-918 Supplement B (unsigned, ready for signature)
2. POST Letter of Acknowledgment, Case No. PUBLIC-26-000371 (dated 03/23/2026)
3. CHP Complaint Assignment Letter from Captain Serrato (dated 03/26/2026)
4. Request for Certification and Supporting Legal Analysis (attached separately)

I appreciate your time and attention to this matter. This request is made in good faith and in the spirit of the legislative policy underlying both the VTVPA and California's Immigrant Victims of Crime Equity Act: that immigrant victims of crime who cooperate with law enforcement should have meaningful access to the protections Congress and the California Legislature have provided.

I remain available to provide any additional information you may require. You may reach me at the address and telephone number listed above, or by email at bnn.cdl@gmail.com. I look forward to your timely response within the statutory period.

Respectfully submitted,

_____

Brendan N. Newanforbi
Pro Se Petitioner

Enclosures (4)
cc: Captain G. Serrato, Commander, Dublin Area CHP
Commission on POST, Intake and Disposition Bureau

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 3

Supporting Legal Analysis and Evidentiary Summary

Petitioner's April 9, 2026 Supporting

Legal Analysis and Evidentiary Summary

(eight pages)

Referenced at Petition ¶¶ 48–49

REQUEST FOR U NONIMMIGRANT STATUS CERTIFICATION

SUPPORTING LEGAL ANALYSIS AND EVIDENTIARY SUMMARY

Pursuant to Form I-918 Supplement B

8 U.S.C. § 1101(a)(15)(U); California Penal Code § 679.10

CHP File No. 390.18437.17620 | POST Case No. PUBLIC-26-000371

From: Brendan Ngehsi Newanforbi, Petitioner / Complainant

To: Sergeant Eric Dutra, Assigned Investigator, Dublin Area CHP

Date: April 9, 2026

Re: Evidentiary Basis for Certification of Form I-918 Supplement B

I. PURPOSE AND SCOPE

This memorandum provides a comprehensive evidentiary analysis in support of the enclosed Form I-918 Supplement B, U Nonimmigrant Status Certification. It is directed to Sergeant Eric Dutra in his capacity as the assigned investigator for CHP Citizen Complaint File No. 390.18437.17620 and as the designated certifying official on the enclosed Supplement B form.

The purpose of this memorandum is to demonstrate, through contemporaneous documentary evidence already in CHP's possession or attached hereto, that each statutory element for U visa certification is satisfied. This document is scoped exclusively to the evidentiary record and the applicable legal standards—it is not a legal brief or adversarial filing. It is a good-faith presentation of facts to assist the certifying official in making the certification determination required by law.

II. SUMMARY OF THE EVIDENTIARY RECORD

The following documentary evidence has been compiled and is referenced throughout this memorandum. Each exhibit is attached or is already within CHP's custody and control:

Exhibit A — CHP Dashcam Video Transcript. A verbatim, timestamped transcription of the audio and video recording captured by the CHP dashcam during the entire encounter on November 1, 2024, CHP Case No. RJ68845. This is the single most important piece of evidence in the record because it provides an objective, contemporaneous account of every statement made and every action taken by both officers and by the Petitioner.

Exhibit B — CHP Arrest-Investigation Report (CHP 202, Case No. RJ68845). The official five-page report prepared by Officer Meza-Gonzalez. This report contains the sworn statements that are directly contradicted by the dashcam recording, forming the evidentiary basis for the obstruction of justice and perjury elements of the qualifying criminal activity.

Exhibit C — Detention Certificate (Dublin CHP-01991, dated November 5, 2024). The official certificate issued under Penal Code § 851.6, in which CHP itself retroactively reclassified the arrest as "a detention only, not an arrest" and certified "insufficient grounds for making a criminal complaint." This is CHP's own admission that the arrest lacked legal justification.

Exhibit D — Declaration of Brendan Ngehsi Newanforbi. A sworn declaration under penalty of perjury detailing the physical and mental harms suffered as a direct result of the qualifying criminal activity, including the loss of livelihood, emotional distress, and financial hardship.

Exhibits E and F — Pay Stubs and Wage Notice (Centerline Drivers, LLC). Twenty-six consecutive weekly pay stubs from Centerline Drivers, LLC, covering the pay periods from May 5, 2024 through January 3, 2025, documenting Petitioner's earnings as a commercial truck driver immediately before the incident. These records establish both the Petitioner's livelihood and the quantum of economic harm caused by the DMV suspension.

Exhibit G — DMV Temporary License and APS Hearing Notice. Documentation from the California Department of Motor Vehicles showing the administrative per se (APS) suspension proceedings and the restriction/disqualification of Petitioner's Class A commercial driving privileges—a direct consequence of the officers' fabricated report.

Exhibit H — CHP Complaint Assignment Letter (Captain G. Serrato, March 26, 2026). CHP's own letter confirming receipt of the citizen complaint, assignment of Sergeant Eric Dutra as the investigator, and CHP's acknowledgment that the matter is under active investigation.

III. ELEMENT ONE: PETITIONER IS A VICTIM OF QUALIFYING CRIMINAL ACTIVITY

The first element requires that the Petitioner is or was a victim of one or more qualifying criminal offenses enumerated in 8 U.S.C. § 1101(a)(15)(U)(iii). The evidence establishes victimization across four independently qualifying categories.

A. False Imprisonment / Unlawful Criminal Restraint (Cal. Penal Code § 236)

Penal Code § 236 defines false imprisonment as "the unlawful violation of the personal liberty of another." The evidence establishes each component:

The arrest lacked probable cause. The dashcam transcript (Exhibit A) reveals that the sole basis for the traffic stop was a welfare check on a lawfully parked vehicle. The only substance identified in the vehicle was urine in a cup. Officer Melano himself conclusively identified the liquid: "This is piss. It smells like piss." (Exhibit A, 00:58:59.) At that moment, the sole articulated basis for suspicion—that the cup contained alcohol—was definitively eliminated.

The Petitioner exhibited no objective signs of impairment. Throughout the encounter, the Petitioner correctly identified his location as Livermore (Exhibit A, 01:00:41); read

highway signs approximately 50 yards away (Exhibit A, 01:00:44); coherently explained his professional training as a commercial truck driver and his habit of pulling over when fatigued (Exhibit A, 01:01:21); and estimated 30 seconds at 43 seconds on the Modified Romberg Balance test—well within normal parameters (Exhibit A, 01:08:40–01:08:45). Critically, neither officer verbalized detecting any odor of alcohol from the Petitioner's person or breath at any point during the encounter, as confirmed by the complete dashcam audio.

The arrest was triggered solely by the PAS refusal. The dashcam recording captures the critical exchange: Officer Meza-Gonzalez explicitly advised the Petitioner, "You're not required to do this" (Exhibit A, 01:10:54), referring to the preliminary alcohol screening test. When the Petitioner exercised his lawful right to decline, Meza-Gonzalez immediately placed him under arrest. (Exhibit A, 01:11:15–01:11:33.) An arrest based solely on the exercise of a right the officer explicitly acknowledged was voluntary constitutes false imprisonment.

CHP itself admitted the arrest was unjustified. The Detention Certificate (Exhibit C) officially recharacterizes the incident as "a detention only, not an arrest" and certifies "insufficient grounds for making a criminal complaint." No criminal charges were ever filed. This is CHP's own contemporaneous determination that the Petitioner was restrained without lawful justification.

B. Felonious Assault / Battery (Cal. Penal Code § 242)

Battery under California law is any willful and unlawful use of force or violence upon the person of another. Cal. Penal Code § 242. The Petitioner was subjected to two distinct batteries:

Forcible handcuffing without probable cause. At 01:11:33, Officer Meza-Gonzalez placed handcuffs on the Petitioner and transported him to the CHP Dublin Area Office. (Exhibit A, 01:11:33; Exhibit B, p. 5.) Because the arrest itself was without probable cause —as CHP later conceded—the physical restraint constitutes an unlawful application of force.

Involuntary blood draw via misrepresented warrant. After the Petitioner exercised his right to refuse chemical testing, Officer Melano told him: "If you don't do it we're gonna get it anyways" (Exhibit A, 01:37:36). A warrant was obtained based on the fabricated CHP report, and at approximately 0238 hours, phlebotomist Aziza Ghaleb extracted two vials of blood from the Petitioner's right arm at the CHP Dublin Area Office. (Exhibit B, p. 5.) Because the warrant was procured through material misrepresentations in the sworn report —specifically, the fabricated "strong distinct odor of an alcoholic beverage" that the dashcam proves was never observed—the blood draw constitutes a forcible bodily intrusion based on fraudulent process.

C. Obstruction of Justice / Fabrication of Evidence

Obstruction of justice is an enumerated qualifying crime under 8 U.S.C. § 1101(a)(15)(U)(iii). The evidence of fabrication is extensive and directly provable through a comparison of the CHP report (Exhibit B) against the dashcam transcript (Exhibit A):

Fabrication #1: "Strong distinct odor of an alcoholic beverage." The CHP report states that Officer Meza-Gonzalez "could smell the distinct odor of an alcoholic beverage emitting from within the vehicle" and "from Newanforbi's breath and person." (Exhibit B, pp. 4–5.) The dashcam transcript contains no contemporaneous verbalization of any alcohol odor at any point. The only odor discussed by either officer during the encounter was the odor of urine from the cup. (Exhibit A, 00:58:51–00:59:04.) This is not a matter of interpretation—it is a direct, provable contradiction between a sworn written statement and the objective audio recording.

Fabrication #2: "Slurred" speech. The CHP report characterizes the Petitioner's speech as "Slurred." (Exhibit B, p. 2.) The dashcam audio recording captures the Petitioner speaking coherently and articulately throughout the encounter. He identifies his location, reads distant highway signs, explains his professional background, and engages in extended, fluent conversation with both officers. The audio flatly contradicts the "slurred" characterization.

Fabrication #3: The Petitioner "seemed very confused and disoriented." The CHP report describes the Petitioner as "very confused and disoriented." (Exhibit B, p. 4.) The dashcam shows the Petitioner correctly identifying his location as Livermore (Exhibit A, 01:00:41), accurately reading highway signs (Exhibit A, 01:00:44), explaining his origin (Oakland) and destination (Stockton), and providing a coherent account of his professional practices as a CDL holder. (Exhibit A, 01:01:21–01:01:56.)

Fabrication #4: "Beverage present: Yes." The CHP report checks "BEVERAGE PRESENT: YES" (Exhibit B, p. 2), directly implying an alcoholic beverage was found in the vehicle. In fact, the only liquid found was the cup of urine, which Officer Melano definitively identified as such on the dashcam. No alcoholic beverage container was found containing alcohol—the "Mike's Hard Lemonade" can referenced at 01:00:09 was described as empty, and the Petitioner denied consuming it.

These fabrications are not minor discrepancies—they are the material misrepresentations upon which the entire arrest, the warrant for the involuntary blood draw, the parole hold, the booking at Santa Rita Jail, and the DMV suspension were predicated. They were made under penalty of perjury in a sworn law enforcement report. The dashcam evidence in CHP's own custody proves they are false.

D. Perjury (Cal. Penal Code § 118)

The sworn statements in the CHP 202 report (Exhibit B) that are contradicted by the dashcam recording (Exhibit A) independently constitute perjury under California Penal Code § 118. Officer Meza-Gonzalez's report was prepared under penalty of perjury and submitted to secure a search warrant from a magistrate. The false statements regarding the odor of alcohol, the Petitioner's speech, and his demeanor were material—they formed the factual predicate for the warrant, the arrest, and all subsequent proceedings.

IV. ELEMENT TWO: PETITIONER POSSESSES INFORMATION CONCERNING THE CRIMINAL ACTIVITY

The Petitioner is the direct victim and the sole civilian percipient witness to every aspect of the qualifying criminal activity. He possesses:

> Firsthand knowledge of the entire encounter, from initial contact through booking at Santa Rita Jail; the dashcam transcript (Exhibit A), which he obtained, authenticated, and produced—constituting the objective evidence that proves the fabrications in the CHP report; the CHP arrest report (Exhibit B), the Detention Certificate (Exhibit C), and the DMV records (Exhibit G), all of which he has analyzed, preserved, and made available to CHP and other investigating entities; and a detailed sworn declaration (Exhibit D) setting forth the full scope of physical and mental harms sustained.

This element is satisfied beyond any reasonable question. The Petitioner is not merely a passive victim—he is the individual who identified, preserved, and produced the key exculpatory evidence (the dashcam transcript) that proves the criminal activity occurred.

V. ELEMENT THREE: PETITIONER HAS BEEN, IS BEING, AND IS LIKELY TO BE HELPFUL

The helpfulness requirement under 8 U.S.C. § 1101(a)(15)(U)(i)(III) and California Penal Code § 679.10(b) is broadly construed. The Petitioner's cooperation is extensive and ongoing:

> **(1) Filing of the CHP Citizen Complaint.** Petitioner filed the citizen complaint that initiated CHP File No. 390.18437.17620—the very investigation Sergeant Dutra has been assigned to conduct. Without this complaint, there would be no investigation.
>
> **(2) POST Complaint.** Petitioner filed a separate complaint with the Commission on Peace Officer Standards and Training, which was forwarded to CHP on March 23, 2026, under Case No. PUBLIC-26-000371. This expanded the investigative record available to CHP.
>
> **(3) Preservation and Production of the Dashcam Transcript.** Petitioner obtained, transcribed, and produced the complete CHP dashcam recording (Exhibit A)—the single most important piece of evidence proving the criminal activity. This evidence is in CHP's own custody but would not have been meaningfully analyzed or compared against the officers' report without the Petitioner's initiative.
>
> **(4) DMV Administrative Proceedings.** Petitioner participated in the DMV APS hearing on January 24, 2025, preserving his rights under penalty of perjury and creating an additional official record of the incident.
>
> **(5) Government Tort Claim.** Petitioner filed a sworn government tort claim with the California Department of General Services within the statutory period, initiating formal investigation of the officers' conduct at the state level.
>
> **(6) No Refusal to Cooperate.** At no point has the Petitioner refused or failed to provide information or assistance reasonably requested by any investigating entity. Under California Penal Code § 679.10(h), this creates a rebuttable presumption that the Petitioner is helpful.

VI. SUBSTANTIAL PHYSICAL AND MENTAL ABUSE

While the "substantial physical or mental abuse" determination is ultimately made by USCIS—not the certifying official—the evidentiary record before CHP confirms the severity of the harm, which contextualizes the certification:

> **Physical harm:** Forcible handcuffing and an involuntary blood draw (two vials extracted from the right arm by phlebotomist Aziza Ghaleb at the CHP Dublin Area Office). (Exhibit B, p. 5.)
>
> **Extended detention:** Following the false arrest, a parole hold was instituted based on the fabricated report, extending the Petitioner's detention from the initial arrest through booking at Santa Rita Jail, where he was held from Friday until the following Wednesday without arraignment. (Exhibit D, ¶ 5.) During this period, the Petitioner was confined with individuals accused of violent crimes including homicide, creating conditions he feared for his personal safety. (Exhibit D, ¶ 5.)
>
> **Complete loss of livelihood:** The false arrest report triggered DMV administrative suspension proceedings. Following the APS hearing on January 24, 2025, the Petitioner's Class A commercial driving license was suspended for one full year (February 20, 2025 through February 19, 2026), disqualifying him from commercial driving. (Exhibit G.) The pay stubs (Exhibit E) document that the Petitioner was earning between approximately $900 and $2,800 per week as a commercial truck driver in the months before the incident. The Petitioner estimates total lost wages during the suspension period at approximately $112,000. (Exhibit D, ¶ 4.)
>
> **Severe emotional distress:** The Petitioner's sworn declaration details ongoing anxiety, panic attacks, flashbacks, a deteriorated sense of self-worth, humiliation in his spiritual and social community, and strained family relationships. (Exhibit D, ¶¶ 6–10.)

VII. THE CRITICAL DASHCAM-TO-REPORT CONTRADICTIONS: A SIDE-BY-SIDE ANALYSIS

Because the fabrication evidence is the foundation of the obstruction of justice and perjury elements, the following side-by-side comparison is provided for the certifying official's convenience:

1. Odor of Alcohol

> **CHP Report (Exhibit B, p. 4):** "I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle." Also: "the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person."
>
> **Dashcam (Exhibit A):** Neither officer verbalizes detecting any odor of alcohol at any point during the encounter. The only odor discussed is urine from the cup. (00:58:51–00:59:04.) Melano's later comment about sanitizing gloves references "piss everywhere"—not alcohol. (01:23:26.)

2. Speech

CHP Report (Exhibit B, p. 2): Characterizes Petitioner's speech as "Slurred."

Dashcam (Exhibit A): Audio captures the Petitioner speaking coherently throughout. He spells his last name on request ("N-E-W-W-A-N-F-O-R-B-I" at 00:59:57), discusses alternator mechanics with officers (01:44:21–01:45:37), and engages in extended articulate conversation about his CDL training and truck driving practices (01:01:21–01:01:56).

3. Demeanor / Orientation

CHP Report (Exhibit B, p. 4): Claims Petitioner "seemed very confused and disoriented."

Dashcam (Exhibit A): Petitioner correctly identifies his location as Livermore (01:00:41); reads distant highway signs ("Isabella Avenue, Portola Avenue" at 01:00:44); knows his origin (Oakland), destination (Stockton), and route; and provides a cogent explanation of commercial driver fatigue protocols (01:01:21).

4. Beverage Present

CHP Report (Exhibit B, p. 2): Checks "BEVERAGE PRESENT: YES."

Dashcam (Exhibit A): The only liquid found was urine in a cup. An empty Mike's Hard Lemonade can was found (01:00:09), but the Petitioner denied consuming it and no officer observed it to contain any liquid.

VIII. THE LEGAL STANDARD FOR CERTIFICATION

California Penal Code § 679.10 imposes a mandatory obligation on CHP as a state law enforcement certifying entity. The statute requires certification when three elements are met: (1) the petitioner was a victim of a qualifying crime; (2) the petitioner possesses information concerning the criminal activity; and (3) the petitioner has been helpful, is being helpful, or is likely to be helpful in the detection, investigation, or prosecution of the criminal activity. All three are satisfied here, as demonstrated above.

The following legal points are emphasized for the certifying official's consideration:

No prosecution or conviction is required. Section 679.10(k) provides that "[a] current investigation, the filing of charges, closing of a case, and a prosecution or conviction are not required for the victim to request and obtain the Form I-918 Supplement B certification." The fact that CHP declined to file charges against the Petitioner—and indeed conceded the arrest was unjustified—is irrelevant to the certification determination. What matters is whether the officers' conduct constituted qualifying criminal activity against the Petitioner.

Helpfulness is presumed. Section 679.10(h) creates "a rebuttable presumption that the victim is helpful, has been helpful, or is likely to be helpful" if the victim has not refused or failed to provide information and assistance reasonably requested. The Petitioner has never refused any request for cooperation.

Certification must be processed within 30 days. Section 679.10(j) requires the certifying entity to process this request within 30 days of receipt.

Denial must be in writing with specific reasons. If CHP determines it cannot certify, § 679.10(g) requires a "written explanation of the specific reasons for the denial." A generalized or conclusory refusal does not satisfy this statutory obligation.

Signing the certification does not grant a visa. The Form I-918 Supplement B is a factual certification, not an immigration decision. USCIS independently adjudicates the petition, conducts a full background check, and makes all eligibility determinations. The certifying official's signature carries no immigration consequences standing alone and does not prejudice any ongoing investigation. As the DHS U Visa Law Enforcement Resource Guide makes clear, the certification is simply a statement by the certifying official that, based on the facts known to the agency, the petitioner is or was a victim of qualifying criminal activity and has been helpful.

IX. CONCLUSION

The evidentiary record before CHP is overwhelming and largely self-proving. The dashcam recording—CHP's own evidence—establishes that Officers Meza-Gonzalez and Melano subjected the Petitioner to false imprisonment, felonious assault, and obstruction of justice on November 1, 2024. CHP's own Detention Certificate confirms the arrest lacked justification. The Petitioner has cooperated extensively with every available investigative channel and has never refused any request for assistance.

Every statutory element for U visa certification is satisfied. The Petitioner respectfully requests that Sergeant Dutra, as the designated certifying official, review the enclosed Form I-918 Supplement B and the supporting evidence, and execute the certification in accordance with California Penal Code § 679.10 and 8 U.S.C. § 1101(a)(15)(U).

Respectfully submitted,

_____

Brendan Ngehsi Newanforbi
Petitioner / Complainant, Pro Se
1455 Cat Tail Drive
Stockton, CA 95204
(209) 801-4442 | bnn.cdl@gmail.com
April 9, 2026

NEWANFORBI v. CALIFORNIA HIGHWAY PATROL et al.

Superior Court of California, County of Alameda

EXHIBIT 4

Form I-918, Supplement B

Form I-918, Supplement B,

U Nonimmigrant Status Certification

(pre-completed, unsigned, ready for signature)

(five pages)

Referenced at Petition ¶¶ 1–2, 48

Supplement B, U Nonimmigrant Status Certification

Department of Homeland Security
U.S. Citizenship and Immigration Services

USCIS
Form I-918
OMB No. 1615-0104
Expires 02/28/2026

For USCIS Use Only	Remarks

► **START HERE - Type or print in black or blue ink.**

Part 1. Victim Information

1. Alien Registration Number (A-Number) (if any)
► A- [redacted]

2.a. Family Name (Last Name): NGWA NFORBI
2.b. Given Name (First Name): NGEHSI
2.c. Middle Name: BRENDAN

Other Names Used (Include maiden names, nicknames, and aliases, if applicable.)

If you need extra space to provide additional names, use the space provided in **Part 7. Additional Information**.

3.a. Family Name (Last Name): NEWANFORBI
3.b. Given Name (First Name): BRENDAN
3.c. Middle Name: NGEHSI

4. Date of Birth (mm/dd/yyyy) [redacted]

5. Sex ☒ Male ☐ Female

Part 2. Agency Information

1. Name of Certifying Agency
CALIFORNIA HIGHWAY PATROL

Name of Certifying Official

2.a. Family Name (Last Name): DUTRA
2.b. Given Name (First Name): ERIC
2.c. Middle Name: N/A

3. Title and Division/Office of Certifying Official
SERGEANT

Name of Head of Certifying Agency

4.a. Family Name (Last Name): SERRATO
4.b. Given Name (First Name): GERARDO
4.c. Middle Name: N/A

Agency Address

5.a. Street Number and Name: 4999 GLEASON DRIVE
5.b. ☐ Apt. ☐ Ste. ☐ Flr. N/A
5.c. City or Town: DUBLIN
5.d. State: CA 5.f. ZIP Code: 94568
5.g. Province: N/A
5.h. Postal Code: N/A
5.i. Country: UNITED STATES

Other Agency Information

6. Agency Type
☐ Federal ☒ State ☐ Local

7. Case Status
☒ On-going ☐ Completed
☐ Other N/A

8. Certifying Agency Category
☐ Judge ☒ Law Enforcement ☐ Prosecutor
☐ Other N/A

9. Case Number
390.18437.17620

10. FBI Number or SID Number (if applicable)
N/A

Part 3. Criminal Acts

If you need extra space to complete this section, use the space provided in **Part 7. Additional Information**.

1. The petitioner is a victim of criminal activity involving a violation of one of the following Federal, state, or local criminal offenses (or any similar activity). (Select **all applicable** boxes)

- ☐ Abduction
- ☐ Abusive Sexual Contact
- ☐ Attempt to Commit Any of the Named Crimes
- ☐ Being Held Hostage
- ☐ Blackmail
- ☐ Conspiracy to Commit Any of the Named Crimes
- ☐ Domestic Violence
- ☐ Extortion
- ☒ False Imprisonment
- ☒ Felonious Assault
- ☐ Female Genital Mutilation
- ☐ Fraud in Foreign Labor Contracting
- ☐ Incest
- ☐ Involuntary Servitude
- ☐ Kidnapping
- ☐ Manslaughter
- ☐ Murder
- ☒ Obstruction of Justice
- ☐ Peonage
- ☒ Perjury
- ☐ Prostitution
- ☐ Rape
- ☐ Sexual Assault
- ☐ Sexual Exploitation
- ☐ Slave Trade
- ☐ Solicitation to Commit Any of the Named Crimes
- ☐ Stalking
- ☐ Torture
- ☐ Trafficking
- ☒ Unlawful Criminal Restraint
- ☐ Witness Tampering

Provide the dates on which the criminal activity occurred.

2.a. Date (mm/dd/yyyy) 11/01/2024

2.b. Date (mm/dd/yyyy) N/A

2.c. Date (mm/dd/yyyy) N/A

2.d. Date (mm/dd/yyyy) N/A

3. List the statutory citations for the criminal activity being investigated or prosecuted, or that was investigated or prosecuted.

CALIFORNIA PENAL CODE § 236 (FALSE IMPRISONMENT / UNLAWFUL CRIMINAL

4.a. Did the criminal activity occur in the United States (including Indian country and military installations) or the territories or possessions of the United States?

☒ Yes ☐ No

4.b. If you answered "Yes," where did the criminal activity occur?

INTERSTATE 580 EAST, LIVERMORE, CA

5.a. Did the criminal activity violate a Federal extraterritorial jurisdiction statute?

☐ Yes ☒ No

5.b. If you answered "Yes," provide the statutory citation providing the authority for extraterritorial jurisdiction.

N/A

6. Briefly describe the criminal activity being investigated and/or prosecuted and the involvement of the petitioner named in **Part 1.** Attach copies of all relevant reports and findings.

ON NOVEMBER 1, 2024, IN ALAMEDA COUNTY, CHP OFFICERS SANTIAGO MEZA-GONZALEZ (#023295) AND JOSE MELANO (#023054) SUBJECTED PETITIONER BRENDAN NGEHSI NEWANFORBI TO FELONIOUS ASSAULT/BATTERY (INVOLUNTARY BLOOD DRAW VIA MISREPRESENTED WARRANT), IMPRISONMENT

7. Provide a description of any known or documented injury to the victim. Attach copies of all relevant reports and findings.

PETITIONER SUFFERED SUBSTANTIAL PHYSICAL AND MENTAL ABUSE AS A DIRECT RESULT OF THE QUALIFYING CRIMINAL ACTIVITY: PHYSICAL PAIN FROM HANDCUFFING AND THE INVOLUNTARY BLOOD DRAW; THE TRAUMA AND

Part 4. Helpfulness Of The Victim

For the following questions, if the victim is under 16 years of age, incompetent or incapacitated, then a parent, guardian, or next friend may act on behalf of the victim.

1. Does the victim possess information concerning the criminal activity listed in **Part 3.**? ☒ Yes ☐ No

2. Has the victim been helpful, is the victim being helpful, or is the victim likely to be helpful in the investigation or prosecution of the criminal activity detailed above?

☒ Yes ☐ No

3. Since the initiation of cooperation, has the victim refused or failed to provide assistance reasonably requested in the investigation or prosecution of the criminal activity detailed above?

☐ Yes ☒ No

If you answer "Yes" to **Item Numbers 1. - 3.**, provide an explanation in the space below. If you need extra space to complete this section, use the space provided in **Part 7. Additional Information**.

THE PETITIONER POSSESSES INFORMATION CONCERNING THE CRIMINAL ACTIVITY AS THE DIRECT VICTIM AND PRIMARY PERCIPIENT WITNESS. HE HAS BEEN HELPFUL, IS BEING HELPFUL, AND IS LIKELY TO BE HELPFUL IN THE INVESTIGATION OR PROSECUTION OF THE QUALIFYING CRIMINAL ACTIVITY THROUGH THE FILING AND ACTIVE REVIEW OF COMPLAINT ON THE CHP OFFICERS, INCLUDING GATHERING AND PRESERVING THE DASHCAM TRANSCRIPT (OBJECTIVE EVIDENCE CONTRADICTING THE OFFICERS' FABRICATED REPORT), FILING A COMPLAINT WITH THE COMMISSION ON PEACE OFFICER STANDARDS AND TRAINING, PARTICIPATING IN DMV PROCEEDINGS, AND PRESENTING ALL EVIDENCE TO THIS AGENCY HE HAS NOT REFUSED OR FAILED TO PROVIDE ANY ASSISTANCE REASONABLY REQUESTED.

4. Other. Include any additional information you would like to provide.

ADDITIONAL SUPPORTING EVIDENCE AND LEGAL ANALYSIS ARE CONTAINED IN THE ATTACHED REQUEST FOR CERTIFICATION PURSUANT TO FORM I-918 SUPPLEMENT B.

Part 5. Family Members Culpable In Criminal Activity

1. Are any of the victim's family members culpable or believed to be culpable in the criminal activity of which the petitioner is a victim? ☐ Yes ☒ No

If you answered "Yes," list the family members and their criminal involvement. (If you need extra space to complete this section, use the space provided in **Part 7. Additional Information**.)

2.a. Family Name (Last Name) N/A

2.b. Given Name (First Name) N/A

2.c. Middle Name N/A

2.d. Relationship

N/A

2.e. Involvement

N/A

3.a. Family Name (Last Name) N/A

3.b. Given Name (First Name) N/A

3.c. Middle Name N/A

3.d. Relationship

N/A

3.e. Involvement

N/A

4.a. Family Name (Last Name) N/A

4.b. Given Name (First Name) N/A

4.c. Middle Name N/A

4.d. Relationship

N/A

4.e. Involvement

N/A

Part 6. Certification

I am the head of the agency listed in **Part 2.** or I am the person in the agency who was specifically designated by the head of the agency to issue a U Nonimmigrant Status Certification on behalf of the agency. Based upon investigation of the facts, I certify, under penalty of perjury, that the individual identified in **Part 1.** is or was a victim of one or more of the crimes listed in **Part 3.** I certify that the above information is complete, true, and correct to the best of my knowledge, and that I have made and will make no promises regarding the above victim's ability to obtain a visa from U.S. Citizenship and Immigration Services (USCIS), based upon this certification. I further certify that if the victim unreasonably refuses to assist in the investigation or prosecution of the qualifying criminal activity of which he or she is a victim, I will notify USCIS.

1. Signature of Certifying Official (sign in ink)

➡

2. Date of Signature (mm/dd/yyyy)

3. Daytime Telephone Number

4. Fax Number

Part 7. Additional Information

If you need extra space to complete any item within this supplement, use the space below or attach a separate sheet of paper; type or print the agency's name, petitioner's name, and the Alien Registration Number (A-Number) (if any) at the top of each sheet; indicate the **Page Number, Part Number**, and **Item Number** to which your answer refers; and sign and date each sheet. If you need more space than what is provided, you may also make copies of this page to complete and file with this supplement.

1. Agency Name

CALIFORNIA HIGHWAY PATROL

Petitioner's Name

2.a. Family Name (Last Name) NGWA NFORBI

2.b. Given Name (First Name) NGEHSI

2.c. Middle Name BRENDAN

3. A-Number (if any)

► A- [redacted]

4.a. Page Number 2 **4.b.** Part Number 3 **4.c.** Item Number 3

4.d. RESTRAINT); CALIFORNIA PENAL CODE § 242 (BATTERY / FELONIOUS ASSAULT); AND CONDUCT CONSTITUTING OBSTRUCTION OF JUSTICE (FABRICATION OF EVIDENCE UNDER PENALTY OF PERJURY, ANALOGOUS TO CAL. PENAL CODE §§ 118, 182).

5.a. Page Number 2 **5.b.** Part Number 3 **5.c.** Item Number 6

5.d. (UNLAWFUL ARREST LATER RECLASSIFIED AS DETENTION), AND OBSTRUCTION OF JUSTICE (FALSIFYING ARREST REPORTS CONTRADICTED BY DASHCAM EVIDENCE). THE VICTIM IN THIS CHP AGENCY COMPLAINT IS ACTIVELY PROSECUTING THESE ACTS AND CONTINUES TO ASSIST BY PRESERVING AND PRODUCING KEY EVIDENCE, INCLUDING THE DASHCAM TRANSCRIPT, ARREST REPORT, AND DETENTION CERTIFICATE.

6.a. Page Number 2 **6.b.** Part Number 3 **6.c.** Item Number 7

6.d. HUMILIATION OF ARREST AND INCARCERATION WITHOUT CAUSE; EXTENDED DETENTION DUE TO A FABRICATION-INDUCED PAROLE HOLD; SEVERE EMOTIONAL DISTRESS AND ANXIETY; COMPLETE LOSS OF HIS COMMERCIAL DRIVING LICENSE AND LIVELIHOOD FOR ONE YEAR (DMV SUSPENSION EFFECTIVE FEB. 20, 2025 – FEB. 19, 2026); AND LASTING REPUTATIONAL AND ECONOMIC HARM.

U Visa Certification Request — CHP File No. 390.18437.17620 / POST PUBLIC-26-000371

Paul, Gary@CHP <GPaul@chp.ca.gov> Fri, Apr 10, 2026 at 10:33 AM
To: "bnn.cdl@gmail.com" <bnn.cdl@gmail.com>

Sir,

Your email has been received and your request is under review. You will be notified the outcome of your request by written correspondence.

Thank you

Lieutenant Gary Paul, ID 17620

California Highway Patrol

Dublin Area

4999 Gleason Drive

Dublin, CA 94568

(925) 828-0466

ATTORNEY-CLIENT PRIVILEGED COMMUNICATION CONFIDENTIALITY NOTICE: This communication with its contents may contain confidential and/or legally privileged information. It is solely for the use of the intended recipient(s). Unauthorized interception, review, use or disclosure is prohibited and may violate applicable laws including the Electronic Communications Privacy Act. If you are not the intended recipient, please contact the sender and destroy all copies of the communication. Finally, this message shall not be forwarded or provided to anyone not specifically listed as an addressee unless prior permission is given.

From: Brendan Ngwa Nforbi <bnn.cdl@gmail.com>
Sent: Thursday, April 9, 2026 2:00:21 PM
To: Dutra, Eric@CHP <EDutra@chp.ca.gov>
Cc: Serrato, Gerardo@CHP <GSerrato@chp.ca.gov>
Subject: U Visa Certification Request — CHP File No. 390.18437.17620 / POST PUBLIC-26-000371

You don't often get email from bnn.cdl@gmail.com. Learn why this is important

[**Warning:** This email originated outside of CHP. Do not click links or attachments unless you recognize the sender and know the content is safe.]

Good morning, Sergeant Dutra,

Attached please find my formal request for execution of Form I-918 Supplement B, together with the supporting legal analysis memorandum and related supporting documents, in connection with CHP File No. 390.18437.17620 and POST Complaint No. PUBLIC-26-000371.

As reflected in Captain Serrato's March 26, 2026 correspondence, this matter is currently assigned to your review.

Pursuant to California Penal Code section 679.10(j), I respectfully request processing of this certification request within 30 days of receipt. Please see of Part 6 of Page 4 of the Form I-918 Supplement B document attached to this email for the location as to where certification is to be made via signature.

Please confirm receipt of this email and attachments at your earliest convenience. If you have any additional questions please do not hesitate to contact me via the contact information below.

Respectfully,

Brendan Ngehsi Newanforbi

(209) 801-4442

bnn.cdl@gmail.com

EXHIBIT

C

CHP Arrest Records — Production Exhibit 5

Arrest of November 1, 2024 · CHP 202, DS 367, warrant and affidavit, screen prints
Produced October 23, 2026 by Respondents (Cal. Dept. of Justice)
AGO 000029–000053 · App. 026–052

EXHIBIT C - BATES INDEX

CHP production Exhibit 5, AGO 000029-000053 (25 pages, reproduced complete and in produced order)

Bates range	App. pages	Document (description supplied by Petitioner for convenience)
AGO 000029-000033	App. 028-032	CHP 202 Driving Under the Influence arrest-investigation report (pp. 1-5)
AGO 000034-000039	App. 033-038	Laboratory reports, Ascertain Forensics No. 2024-004531 (ethanol; drug panels)
AGO 000040-000041	App. 039-040	DS 367 Age 21 and Older Officer's Statement (pp. 1-2)
AGO 000042	App. 041	DS 367 Administrative Per Se Suspension/Revocation Order and Temporary Driver License
AGO 000043	App. 042	Chemical Test Admonition (CVC 23154, 23612)
AGO 000044	App. 043	Declaration and Determination of Probable Cause for Warrantless Arrest (Alameda County)
AGO 000045	App. 044	CHP 215 Notice to Appear No. RJ68845
AGO 000046	App. 045	Alameda County Consolidated Arrest Report
AGO 000047	App. 046	CHP 180 Vehicle Report
AGO 000048-000049	App. 047-048	Search Warrant (DUI Blood Draw, Pen. Code 1524(a)(13)) and Statement of Probable Cause/Affidavit
AGO 000050	App. 049	Bay Area PLS Blood Test Request Form
AGO 000051	App. 050	Alameda County Sheriff's Department Prisoner Property Receipt
AGO 000052-000053	App. 051-052	CHP Area Information System Arrest Screen Print (2 pp.)

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL

DRIVING UNDER THE INFLUENCE ARREST – INVESTIGATION REPORT

CHP 202 (Rev. 2-24) OPI 066

☒ Misdemeanor ☐ Felony ☐ Domestic Violence (Refer to HPM 100.69)

COURT	FILE NUMBER	EVIDENCE/PROPERTY
East County Hall of Justice	202400898	☐ YES ☒ NO

AREA	BEAT	CRASH REPORT NUMBER
390	052	N/A

E-

DATE/TIME OF ARREST/REPORT	DATE/TIME OF INCIDENT ☐ SAME	LOCATION OF ARREST/INCIDENT	WMVARS/MVARS
11/01/2024 0112	11/01/2024 0055	I-580 eastbound, west of Isabel Avenue	☒ YES ☐ NO WMVARS

CAD NUMBER ☐ NONE	CITATION NUMBER	OFFENSE(S) CHARGED OR INVESTIGATED	JUS 8715 REQUIRED
241101GG0064	RJ68845	23152(a) VC, 23152(b) VC	☒ YES ☐ NO NUMBER:

LAST NAME, FIRST NAME, AND MIDDLE INITIAL: Newanforbi, Brendan, Ngehsi

SUBJECT NO 1 OF 1

NAME (last, first, middle)	RESIDENCE ADDRESS
Newanforbi, Brendan, Ngehsi	1455 Cat Tail Drive Stockton CA, 95204

AKA	HOME PHONE	MAILING ADDRESS
Not asked	Not asked	☒ SAME

RACE	ETHNICITY	SEX	BIRTHDATE	DISPATCH
Black or African American	Not Hispanic or Latino	Male	[redacted]	[redacted]ED

DRIVER LICENSE NUMBER	STATE	DDL STATUS	HAIR	EYES	HEIGHT	WEIGHT	PLACE OF BIRTH (city, state, country)	
[redacted]	CA	Valid	BLK	BRN	508	225	Camaroon	☒ YES ☐ NO

EMPLOYER	BUSINESS PHONE	BUSINESS ADDRESS	MISC. (SSN, INS #, ETC.)	
Self employed	Not asked	Not asked	Not asked	TIME: 0326 ID: A13903

BOOKING, CII, FBI, ETC., NUMBER(S)	WHERE BOOKED/CONFINED	DATE/TIME	FINGERPRINTED
[redacted]	Santa Rita Jail	11/01/2024 0325	☒ YES ☐ NO

NOTIFICATION (Who, How, When), EXPLAIN IN NARRATIVE — NOTIFIED BY

☐ JUVENILE ☐ FOREIGN NATIONAL ☐ IMMUNITY CLAIM

VEHICLE

LICENSE	STATE	REG. YEAR	VIN/EN NUMBER	VEHICLE WAS	STORAGE AUTHORITY
[redacted]	CA	2025	7SAYGDEE3PF638736	☒ STORED ☐ PARKED ☐ RELEASED ☐ RECOVERED ☐ IMPOUNDED	22651(h)(1) VC

VEH YEAR	MAKE	MODEL	COLOR	BODY TYPE	LOCATION OF VEHICLE/RELEASED TO/ADDRESS/TELEPHONE NUMBER
2023	Tesla	Model Y	Gray	SUV	United Towing - (925) 888-8880

NAME OF REGISTERED OWNER	☐ SAME AS SUBJECT	ADDRESS	☐ SAME AS SUBJECT
PV Holding Corp.		5721 W. 96th Street Los Angeles CA, 90045	

NAME OF LEGAL OWNER	☐ SAME AS R/O	ADDRESS	LOCATION OF KEYS
The bank of New York Mellow Trust Company		26933 Northwestern Hwy Southfield MI, 48033	With tow

WITNESS/PASSENGER/VICTIM

BIRTHDATE	SEX	NAME	ADDRESS/AGENCY	PHONE
	M	☒ WITNESS ☐ PASSENGER ☐ VICTIM Officer Melano ID 023054	4999 Gleason Drive Dublin CA, 94568	RES: N/A BUS: (925) 828-0466
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:
		☐ WITNESS ☐ PASSENGER ☐ VICTIM		RES: BUS:

ADMONITION OF RIGHTS

1. YOU HAVE THE RIGHT TO REMAIN SILENT.
2. ANYTHING YOU SAY CAN AND WILL BE USED AGAINST YOU IN A COURT OF LAW.
3. YOU HAVE THE RIGHT TO TALK WITH AN ATTORNEY AND TO HAVE AN ATTORNEY PRESENT BEFORE AND DURING QUESTIONING.
4. IF YOU CANNOT AFFORD AN ATTORNEY, ONE WILL BE APPOINTED FREE OF CHARGE TO REPRESENT YOU BEFORE AND DURING QUESTIONING, IF YOU DESIRE.

THE ABOVE STATEMENT WAS READ TO THE ARRESTEE BY:

☒ NOT ADVISED ☐ ARRESTING OFFICER ☐ OR: ID: TIME:

DO YOU UNDERSTAND EACH OF THESE RIGHTS I HAVE EXPLAINED TO YOU?	HAVING THESE RIGHTS IN MIND, DO YOU WISH TO TALK TO US NOW?	WAIVER STATEMENT
☐ YES ☐ NO	☐ YES ☐ NO	

MISDEMEANOR INCARCERATION (To be completed upon physical arrest for any misdemeanor, pursuant to Section 853.6 of the Penal Code.)
As determined by the arresting officer, the person arrested:

1. ☐ was so intoxicated as to be a danger to themself or others.
2. ☐ required medical examination or medical care or was otherwise unable to care for their own safety.
3. ☒ was arrested under one or more of the circumstances listed in Sections 40302 and 40303 of the California Vehicle Code (Note 5 and 8 if also applicable).
4. ☐ had one or more outstanding arrest warrants issued.
5. ☐ could not provide satisfactory evidence of personal identification.
6. ☒ if released immediately, would jeopardize the prosecution of the offense or offenses for which arrested or the prosecution of any other offenses.
7. ☒ would be reasonably likely to continue the offense or offenses, or the safety of persons or property would be imminently endangered if immediately released.
8. ☐ demanded to be taken before a magistrate or refused to sign the citation.
9. ☐ would not appear at the time and place specified in the notice.
10. ☐ Other:

ARRESTING/INVESTIGATING OFFICER (Print name/rank)	ID NUMBER	REVIEWED BY (Print name/rank)	ID NUMBER	DATE
Meza / Officer	023295	SG. DEAL	17747	11/5/24

Newanforbi, Brendan, Ngehsi | **RJ68845**

* Asked prior to FSTs

INVESTIGATION INTERVIEW

DO YOU KNOW OF ANYTHING MECHANICALLY WRONG WITH YOUR VEHICLE ? DESCRIBE. ☐ YES ☒ NO			ARE YOU SICK OR INJURED? DESCRIBE. ☒ YES ☐ NO: Pre-Diabetic		
ARE YOU DIABETIC OR EPILEPTIC? ☒ YES ☐ NO	DO YOU TAKE INSULIN? *(Pills/Injection)* ☐ YES ☒ NO		DO YOU HAVE ANY PHYSICAL IMPAIRMENTS? DESCRIBE. *(Feet, Legs, Ankles, or Hips)* ☐ YES ☒ NO		
WHEN DID YOU LAST SLEEP? Right now	HOW LONG? 7 Minutes	WHEN DID YOU LAST EAT? 11:30 PM	DESCRIBE: Hot dog		
WERE YOU DRIVING THE VEHICLE? ☒ YES ☐ NO ☐ N/A	IF NO, WHO?		WHERE DID YOU START DRIVING? Oakland	WHERE WERE YOU GOING? Stockton	
WHERE WERE YOU STOPPED? Livermore	WHAT HAVE YOU BEEN DRINKING? Nothing	HOW MUCH? Not asked	TIME STARTED? Not asked	TIME STOPPED? Not asked	
LOCATION WHERE YOU WERE DRINKING? NAME/ADDRESS: Not asked		DO YOU FEEL THE EFFECTS OF THE DRINKS? DESCRIBE. ☐ YES ☐ NO: Not asked			
DID YOU BUMP YOUR HEAD? ☐ YES ☒ NO ☐ N/A	HAVE YOU BEEN DRINKING SINCE THE ACCIDENT? ☐ YES ☐ NO ☒ N/A	IF YES, WHAT?		HOW MUCH?	
ARE YOU UNDER CARE OF A DOCTOR OR DENTIST? ☐ YES ☒ NO	IF YES, NAME/ADDRESS			RECENT SURGERY PERFORMED? ☐ YES ☒ NO *(Explain in Narrative)*	
HAVE YOU TAKEN ANY MEDICINE OR DRUGS? ☐ YES ☒ NO	IF YES, WHAT?	HOW MUCH?	TIME OF LAST DOSAGE?		

DO YOU FEEL THE EFFECTS OF THE MEDICINE/DRUGS? DESCRIBE. ☐ YES ☒ NO

OBJECTIVE SIGNS/APPEARANCE/FIELD SOBRIETY TEST LOCATION

BREATH ODOR OF ALCOHOLIC BEVERAGE PRESENT:	GLASSES/LENSES	EYES (appearance)	DEMEANOR	SPEECH
Strong ☒ YES ☐ NO	☐ YES ☒ NO	Red and watery	Compliant	Slurred

CLOTHING WORN: CONDITION AND DESCRIPTION

Worn condition: Black shirt, green pants, and black slides

DESCRIBE TEST LOCATION, SURFACE, WEATHER, AND LIGHTING

Dirt shoulder: Clear, cool, and dry with patrol vehicle lights and flashlight

PRELIMINARY ALCOHOL SCREEN INFORMATION

P.A.S. Admonition: I am requesting that you take a preliminary alcohol screening test to further assist me in determining whether you are under the influence of alcohol. You may refuse to take this test; however, this is not an implied consent test and, if arrested, you will be required to give a sample of your blood, breath, or urine for the purpose of determining the actual alcoholic and drug content of your blood.

THE SUBJECT WAS ADVISED OF THE ABOVE STATEMENT BY:

☐ NOT ADVISED ☒ ARRESTING OFFICER ☐ OR ID: TIME: 0111

PAS SERIAL NUMBER	TEMPERATURE	ZEROED	RESULTS NO. 1	TIME 1	RESULTS NO. 2	TIME 2	RESULTS NO. 3 *(if needed)*	TIME 3
		☐ YES ☐ NO	☒ Refused					

LOCATION OF TEST	BREATH SAMPLE	OFFICER ADMINISTERING PAS TEST	ID NUMBER	AREA
☐ At scene	☐ Automatic ☐ Manual	☐ ARRESTING OFFICER ☐ OR		

CHEMICAL TEST INFORMATION

☒ Implied Consent Admonishment, Section 23612 CVC
☒ Refused Test(s) (Complete DS 367)

DRUG ADMONISHMENT ☒ N/A ☐ Yes ☐ Refused (Complete DS 367)

ATTACHMENTS ☐ CHP 202 DRE ☐ OTHER

TYPE OF TEST	TIME	ID OF SAMPLE(S)	RESULTS, IF AVAILABLE	DISPOSITION OF SAMPLE(S)
1 ☐ Breath				
2 ☒ Blood	0238	RJ68845	Pending	CHP Dublin Area Blood Evidence Locker
3 ☐ Urine				

TEST GIVEN	LOCATION WHERE TEST WAS CONDUCTED	NAME AND TITLE OF PERSON GIVING TEST OR TAKING SAMPLE
1		☐ ARRESTING OFFICER ☐ OR
2	CHP Dublin Area Office	☐ ARRESTING OFFICER ☒ OR Phlebotomist Aziza Ghaleb
3		☐ ARRESTING OFFICER ☐ OR

CHEMICAL TEST ADVISEMENT

A. The breath testing equipment does NOT retain any breath sample for later analysis by you or anyone else.
B. If you want a sample retained, you may provide a blood or urine sample that will be retained at no cost to you. If you do so, the blood or urine sample may be tested for alcoholic or drug content by either party in a criminal prosecution.
C. Do you wish to provide an additional sample? ☐ YES ☐ NO ☒ N/A

WATSON ADVISEMENT

You are hereby advised that being under the influence of alcohol or drugs, or both, impairs your ability to safely operate a motor vehicle. Therefore, it is extremely dangerous to human life to drive while under the influence of alcohol or drugs, or both. If you continue to drive while under the influence of alcohol or drugs, or both, and, as a result of that driving, someone is killed, you can be charged with murder.

DO YOU UNDERSTAND ☒ YES ☐ NO _____ READ VERBATIM: ☒ YES ☐ NO ☐ DID NOT ADVISE (Explain in narrative)

☒ ARRESTING OFFICER ☐ OR _____ ID: _____ ☐ N/A

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

FIELD SOBRIETY TESTS:

*All FSTs were explained and demonstrated in English by myself. Newanforbi stated he understood each test prior to performing each test. Newanforbi was asked and answered a series of FST questions prior to performing the FSTs. Notes were taken on 3x5 notepad, transferred to the report, and thrown out upon completion of the report. All times throughout this report were taken by my Iphone, unless otherwise stated.

Horizontal Gaze Nystagmus: Newanforbi displayed the following in both his eyes: Equal pupils, equal tracking, lack of smooth pursuit, distinct and sustained nystagmus at maximum deviation, and the onset of nystagmus prior to 45 degrees. Newanforbi also displayed lack of convergence.

Modified Romberg Balance: Newanforbi estimated the passage of 30 seconds to be an actual 43 seconds. Newanforbi displayed eyelid flutters.

One Leg Stand: Newanforbi chose not to perform this test and related it was difficult.

Walk and Turn: Newanforbi chose not to perform this test and related it was difficult.

Preliminary Alcohol Screening Device (PAS): I advised Newanforbi of the PAS admonishment and he refused to take the test.

FIRST OBSERVATIONS:

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist.

ARREST – INVESTIGATION REPORT NARRATIVE (CONTINUED)

OBSERVATIONS UPON CONTACT:

I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was in a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I directed the male to exit the Tesla and walk to the right front of my patrol vehicle where I conducted a DUI evaluation. I asked the male if he had consumed any alcoholic beverages since stopping at that location and he related no. I asked the male if he had a driver license, and he gave me his California Driver License. I identified the male as Brendan Ngehsi Newanforbi D.O.B [redacted] by his California Driver License ID [redacted] sked Newanforbi a series of field sobriety test questions and while speaking with Newanforbi, I smelled the strong distinct odor of an alcoholic beverage coming from Newanforbi's breath and person. I explained and demonstrated a series of Field Sobriety Tests to Newanforbi, which he did not perform as explained and demonstrated.

ARREST:

Based on the following, I formed the opinion that Newanforbi drove to this location while under the influence of alcohol, a violation of California Vehicle Code 23152(a) per 40300.5 VC:

1. Newanforbi displayed objective signs and symptoms of intoxication.
2. Newanforbi stated that he had driven the vehicle to this location.
3. The driver's seat was adjusted to that of a person of Newanforbi's stature.
4. Newanforbi's answers to the Pre-FST questions.
5. Newanforbi's poor performance on the FST's.
6. Newanforbi related he did not have any alcoholic beverages since he stopped on the shoulder.

ARREST (Continued):

At 0112 hours, I placed Newanforbi under arrest for a violation of California Vehicle Code section 23152 (a), driving while under the influence of alcohol, per 40300.5 VC.

I placed Newanforbi in handcuffs, they were then adjusted to proper fit and double locked. Newanforbi was then placed in the right rear passenger seat of my patrol vehicle. During this investigation a Department of Motor Vehicles (DMV) driving history for Newanforbi was requested through the GGCC. The GGCC advised his license status was valid and was on parole fo[REDACTE [REDACTED]advised Mr. Newanforbi of Implied Consent by reading the back of the DMV DS 367 page 1 verbatim (excluding paragraph 3 and 6). I gave Newanforbi the choice of submitting to a chemical breath test, blood test, or to refuse the tests. I advised Newanforbi there were additional administrative consequences from the DMV for refusing the chemical tests. Newanforbi chose to refuse any chemical testing. Newanforbi was then transported to the CHP Dublin Area Office, where I wrote an affidavit for Newanforbi's blood. Judge A. Sekany approved the affidavit at approximately 0234 hours (WAR913372). At approximately 0238 hours, I received two vials of blood from Newanforbi's right arm by phlebotomist Aziza Ghaleb. The blood sample was sealed and secured in the CHP Dublin Area Blood Evidence locker for analysis by the Department of Justice. Newanforbi was then transported to Santa Rita jail, where he was booked at approximately 0325 hours for 23152(a) VC.

RECOMMENDATIONS:

I recommend that a copy of this report be forwarded to the Alameda County District Attorney's office for the review of the following charges against Brendan Ngehsi Newanforbi:

- 23152(a) VC - DUI Alcohol
- 23152(b) VC - .08% BAC or above (Pending Results)

Upon successful prosecution of the above charges, I recommend the following enhancements be charged against Newanforbi:

- 23578 VC - Chemical Test Refusal

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP851B

Agency #: RJ68845

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Confirmation/Screen Results

Analyte Name	Concentration	Units	Method	Sample Type
Ethanol	0.073 ± 0.004	grams %	Headspace GC-FID	Blood

The measurement of uncertainty value is ± 4.9% with a coverage probability of approximately 99.73%

Comments: Laboratory activity performed between 11/14/2024 and 11/15/2024. Analysis of alcohols performed at Ascertain Forensics located at 3700 Westwind Blvd., Santa Rosa, CA.

Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.

Analysis was performed by a California Department of Public Health approved Forensic Alcohol Analyst. The equipment used for analysis was in proper working order and the reporting of the results was done using a method approved under the state of California Title 17 Code of Regulations.

This report shall not be reproduced except in *full* without written approval of the Laboratory.

Case Reviewer:

Mireya Olivares
Forensic Analyst

Technical Reviewer:

Gregory A Priebe, M.S., D-ABFT-FT
Senior Forensic Toxicologist

Date report released: November 25, 2024

AGO 000034

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Agency #: RJ68845

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP007B - Drugs of Abuse Pnl
FP009B - General Drug Panel
F3018B - THC

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Screen Results

Analyte Name	Result	Cutoff	Method	Sample Type
Amphetamine \ MDA	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Barbiturates	Not Detected	50 ng/mL	LC/QTOF-MS	Blood
Benzodiazepines	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Buprenorphine	Not Detected	2.0 ng/mL	LC/QTOF-MS	Blood
Carisoprodol	Not Detected	50 ng/mL	LC/QTOF-MS	Blood
Cocaine Metabolite	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Fentanyl	Not Detected	0.5 ng/mL	LC/QTOF-MS	Blood
Marijuana Metabolite	Positive	10 ng/mL	LC/QTOF-MS	Blood
Methadone	Not Detected	20 ng/mL	LC/QTOF-MS	Blood
Methamphetamine \ MDMA	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Opiates	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Oxycodone \ Oxymorphone	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
PCP	Not Detected	2.5 ng/mL	LC/QTOF-MS	Blood
Tramadol	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Zolpidem	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood

Confirmation/Screen Results

Analyte Name	Concentration	Units	Method	Sample Type
delta 9-Tetrahydrocannabinol (THC)	Not Detected		LC-MS-MS	Blood
11-hydroxy-THC (11-OH-THC)	Not Detected		LC-MS-MS	Blood
11-nor-THC-9-carboxylic acid (THC-COOH)	3.0	ng/mL	LC-MS-MS	Blood

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

Comments: Laboratory activity performed between 11/15/2024 and 11/25/2024.

Date report released: December 5, 2024

AGO 000035

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.

This report shall not be reproduced except in *full* without written approval of the Laboratory.

Case Reviewer: Lacey Nave

Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow

Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP007B - Drugs of Abuse Pnl

Agency #: RJ68845

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Screen Results

Analyte Name	Result	Cutoff	Method	Sample Type
Cocaine Metabolite	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Fentanyl	Not Detected	0.5 ng/mL	LC/QTOF-MS	Blood
Methamphetamine \ MDMA	Not Detected	10 ng/mL	LC/QTOF-MS	Blood
Opiates	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
PCP	Not Detected	2.5 ng/mL	LC/QTOF-MS	Blood

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

Comments: None

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Case Reviewer: Lacey Nave
Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow
Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Date report released: December 5, 2024

AGO 000037

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: FP009B - General Drug Panel

Agency #: RJ68845

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Screen Results

Analyte Name	Result	Cutoff	Method	Sample Type
Barbiturates	Not Detected	50 ng/mL	LC/QTOF-MS	Blood
Benzodiazepines	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Buprenorphine	Not Detected	2.0 ng/mL	LC/QTOF-MS	Blood
Carisoprodol	Not Detected	50 ng/mL	LC/QTOF-MS	Blood
Marijuana Metabolite	Positive	10 ng/mL	LC/QTOF-MS	Blood
Methadone	Not Detected	20 ng/mL	LC/QTOF-MS	Blood
Oxycodone \ Oxymorphone	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Tramadol	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood
Zolpidem	Not Detected	5.0 ng/mL	LC/QTOF-MS	Blood

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

Comments: None

Ascertain Forensics is accredited by The American Board of Forensic Toxicology (ABFT) and is recognized by the State of California as a Title 17 Forensic Alcohol Laboratory. Reported results apply to the sample as it was received.

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Case Reviewer: Lacey Navé
Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow
Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Date report released: December 5, 2024

AGO 000038

Ascertain Forensics

3650 Westwind Blvd. Santa Rosa, CA 95403
Forensics@redwoodtoxicology.com

Primary Agency: S. Meza-Gonzales
CHP - Dublin
4999 Gleason Drive
Dublin, CA 94568

Ascertain Forensics #: 2024-004531
Sample Collection Date: 11-01-2024
Test Request: F3018B - THC

Agency #: RJ68845

Subject: Brendan Ngehsi Newanforbi

LABORATORY REPORT

The following evidence was submitted to the Laboratory by a representative of the CHP - Dublin on 11/12/2024 via Courier:

Submission 01: One tape sealed and initialed envelope marked in part "Newanforbi, Brendan, Ngehsi" containing two gray top tubes of blood.

Confirmation/Screen Results

Analyte Name	Concentration	Units	Method	Sample Type
delta 9-Tetrahydrocannabinol (THC)	Not Detected		LC-MS-MS	Blood
11-hydroxy-THC (11-OH-THC)	Not Detected		LC-MS-MS	Blood
11-nor-THC-9-carboxylic acid (THC-COOH)	3.0	ng/mL	LC-MS-MS	Blood

A list of specific analytes to include reporting thresholds and measurement uncertainty are available upon request . Contact the laboratory at Forensics@redwoodtoxicology.com

Comments: None

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Case Reviewer: Lacey Nave

Lacey S. Nave
Forensic Toxicologist

Technical Reviewer: Tim W. Grambow

Tim W Grambow, F-ABFT
Senior Forensic Toxicologist

Date report released: December 5, 2024

AGO 000039

AGE 21 AND OLDER OFFICER'S STATEMENT

California Vehicle Code (CVC) §§13353, 13353.1, 13353.2 & 13389

DMV — A Public Service Agency

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
RS69845	11/1/24	

DRIVER NAME (LAST, FIRST, M.I.)	DRIVER LICENSE NUMBER	COMMERCIAL?	STATE
NEWAN FORBI, BRENDAN, N	[redacted] STATE	☐ Yes ☒ No	CA

MAILING ADDRESS: ~~NEWAN FORBI~~ 1455 CAT TAIL DR STOCKTON CA 95206 (ZIP CODE)

Arrest Type — For statistical purposes only. Check all that apply.
- ☒ Alcohol Use
- ☐ Cannabis Use
- ☐ Other Drug Use

DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT
[redacted]	M	BLK	BRN	508	225

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

VEHICLE: License Number or VIN: [redacted]
☐ **Commercial Vehicle:** Vehicle requires a commercial driver license (CVC §15210). ☐ **Hazardous Materials:** Transporting materials requiring placards/markings (CVC §27903).

NARRATIVE: Describe in detail the facts, observations, and circumstances that led to the stop or contact with the driver in ***Narrative*** section on **Page 2** of this form.

Contact: On date: 11/01/24 at 12:55 ☒ AM ☐ PM in City/County LIVERMORE / ALAMEDA CA, the above driver was contacted.

DRIVING: ☐ Driving observed by this officer or ☐ Driving observed by another observer (complete ***Observation/Arrest*** section on Page 2)
Admission of Driving: ☒ Driver admitted to driving the vehicle **Collision:** ☐ Driver involved in a collision

TIME: (If driving not observed by an officer.)
What time did you stop driving or how long after driving/collision did you wait for law enforcement to arrive? **Driver Response:** 7 ☐ AM ☐ PM ☐ HR ☒ MIN

ARREST OR DETENTION STATEMENT: I had reasonable cause to believe the driver was driving a motor vehicle with alcohol and/or drugs present in the blood or while under the influence. The driver was lawfully arrested, or lawfully detained while on DUI probation, by this officer, or by the person shown in the ***Observation/Arrest*** section on Page 2, on date 11/01/24 at 1:12 ☒ AM ☐ PM for violation of CVC §§23152, 23153, or 23154.

OBJECTIVE SYMPTOMS OF INTOXICATION: ☒ Bloodshot/watery eyes ☒ Odor of alcoholic beverage ☐ Unsteady gait ☒ Slurred speech ☐ PAS results (*complete below*)
☒ Other: POOR FSTS Observed by: ☒ This officer ☐ Another observer: _____

PRELIMINARY ALCOHOL SCREENING TEST (PAS)

DUI Probation: Required. Non-DUI Probation: Optional. Always complete section if PAS results available.

Driver submitted to and completed a PAS test with the results of:

Test 1 _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM

OFFICER CERTIFICATION: I certify under penalty of perjury under the laws of the State of California that: **(1)** I obtained the above PAS test results in the regular course of my duties, **(2)** I used PAS Model (*Name/Number*) ~~ALCOPHOR~~ _____, Serial# _____, Manufactured by _____, **(3)** I administered this PAS test properly in accordance with the manufacturer's guidelines and instructions, **(4)** I have received training on the proper operation of this device and administration of the PAS test and am competent and qualified to operate the device, and **(5)** the device was functioning properly at the time of the test.

Date / / Signature X Badge/ID Number Agcy./Div

CHEMICAL TEST

Breath Test Results: Attach copy of the results, if available.

Test 1 _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 2** _____ % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM **Test 3** _____ (WHEN APPLICABLE) % BAC on ___/___/___ (DATE) at _____ (TIME) ☐ AM ☐ PM

BREATH TEST MACHINE OPERATOR CERTIFICATION: I certify under penalty of perjury under the laws of the State of California, that the above breath test sample results were obtained in the regular course of my duties. I further certify that I am qualified to operate this equipment and that the test was administered pursuant to the requirements of Title 17 of the *California Code of Regulations*.

Date / / Signature X Badge/ID Number Agcy./Div

BLOOD TEST RESULTS: Blood test on date: 11/01/24 at 2:38 ☒ AM ☐ PM

URINE TEST RESULTS: First void on date: / / at ☐ AM ☐ PM Test on date: / / at ☐ AM ☐ PM

I certify under penalty of perjury, under the laws of the State of California, that the information contained on all pages of this Officer's Statement is true and correct.

EXECUTED ON: Date 11/1/24 in City LIVERMORE County ALAMEDA

OFFICER'S PRINTED NAME	BADGE/ID NUMBER	TELEPHONE NUMBER
MEZA	23295	(925) 818-0466
AGENCY	**AREA**	**COURT CODE (IF UNKNOWN, COURT NAME)**
CHP	39	01435

I ☒ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date 11/1/24 Signature of Arresting Officer X

ORDER SERVED BY ANOTHER OFFICER: If order was served on driver by another officer have that officer complete this section.
I personally served a copy of the order to the driver on the date shown below:

Date / / Serving Officer's *Printed* Name Badge/ID Number Signature Of Serving Officer X

DS 367 (REV. 1/2019) White—*DMV* Yellow—*Law Enforcement* Pink—*Driver*

continued on reverse

AGO 000040

DMV
A Public Service Agency

AGE 21 AND OLDER OFFICER'S STATEMENT

CVC §§13353, 13353.1, 13353.2 & 13389

DS 367

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY
KJ 68845	11/1/24	

DRIVER NAME (LAST, FIRST, M.I.)	DRIVER LICENSE NUMBER	COMMERCIAL?	STATE
NEWANFORBI, BRENDAN, N	[redacted] STATE	☐ Yes ☒ No	CA

MAILING ADDRESS	ZIP CODE
NEWANFORBI 1455 CAT TAIL DR STOCKTON CA	95204

DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT
[redacted]	M	BLK	BRN	508	185

Arrest Type
For statistical purposes only. Check all that apply.
- ☒ Alcohol Use
- ☐ Cannabis Use
- ☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☒ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☒ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

OBSERVATION/ARREST: If driving or collision was observed by someone other than the arresting officer, **or** if arrest was completed by another officer or person, input that person's information.

☐ Driving or Collision observed by: ☐ Arrest made by:	Observation or Arrest made by ☐ Officer ☐ Citizen	☐ Driving or Collision observed by: ☐ Arrest made by:	Observation or Arrest made by ☐ Officer ☐ Citizen
NAME (*PLEASE PRINT*)		NAME (*PLEASE PRINT*)	
ADDRESS		ADDRESS	
TELEPHONE NUMBER ( )	BADGE/ID NUMBER / AGENCY/DIVISION	TELEPHONE NUMBER ( )	BADGE/ID NUMBER / AGENCY/DIVISION

NARRATIVE

Describe in detail the facts, observations, and circumstances that led to the stop or contact. Print or write directly on this page.
A portion of another report may be **cut and pasted** below but should be dated and contain an original signature.
Attach arrest, collision, and/or supplemental report(s) if available.
If arrest was made per CVC §40300.5 state the facts and circumstances that support the arrest.
DUI Probation Violations: Indicate below how you determined the driver was on DUI probation.

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was on a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I conducted a DUI evaluation on the subject and at 0112 hours, I placed the subject (Newanforbi) under arrest for a violation of California Vehicle Code section 23152(a), driving while under the influence of alcohol, per 40300.5 VC.

S.M 11/1/24

AGO 000041

A Public Service Agency

AGE 21 AND OLDER ADMINISTRATIVE PER SE SUSPENSION/REVOCATION ORDER AND TEMPORARY DRIVER LICENSE

Driver **must** be given a copy of this order. **DMV telephone number (916) 657-0214.**

LAW ENFORCEMENT AGENCY CASE NUMBER	DETENTION/ARREST DATE	FOR DMV USE ONLY

DRIVER NAME (LAST, FIRST, M.I.)	DRIVER LICENSE NUMBER	COMMERCIAL? ☐ Yes ☐ No	STATE
MAILING ADDRESS	STATE	ZIP CODE	
DATE OF BIRTH	SEX	HAIR	EYES	HEIGHT	WEIGHT

Arrest Type
For statistical purposes only. Check all that apply.
☐ Alcohol Use
☐ Cannabis Use
☐ Other Drug Use

LICENSE: ☐ Suspended/Revoked ☐ Surrendered (*Attached*) ☐ Not in Possession ☐ Unlicensed

VIOLATION: ☐ 0.08% or more BAC Chemical Test Results ☐ 0.01% or more BAC (*DUI Probation*) ☐ 0.04% or more BAC (*Commercial Vehicle*)
☑ Chemical Test Refusal (*Complete Reverse*) ☐ PAS or other Chemical Test Refusal (*DUI Probation*) (*Complete Reverse*)

You are hereby notified that your privilege to operate a motor vehicle will be suspended or revoked effective 30 days from the issue date of this order as shown below, and until you pay a $125 reissue fee and file proof of financial responsibility as shown on the reverse.
For additional information call (916) 657-0214.

TEMPORARY DRIVER LICENSE

This document must be carried with you and shall serve as your temporary California driver license. It is subject to the same class(es) and all restrictions as your permanent driver license. **This temporary driver license does not provide you with any driving privileges if you do not have a California driver license or your license is expired, suspended, revoked, canceled, or denied.** It expires at midnight 30 days from the issue date of this order shown below.

This action is taken under authority of *California Vehicle Code* (CVC) §§13353, 13353.1, 13353.2 and 13389 because you were arrested or detained for driving under the influence of alcohol and/or drugs and:

BAC 0.01% PAS, Breath, Blood or Urine Test DUI Probation	You completed a PAS, breath, blood, or urine test and the officer believes the results will show 0.01% BAC or more. If the laboratory results show your BAC was less than 0.01%, this suspension will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
BAC 0.08% Breath, Blood, or Urine Test	You completed a breath test with 0.08% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.08% BAC or more. If the laboratory results show that your BAC is less than 0.08%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
BAC 0.04 % Breath, Blood or Urine Test while driving a Commercial Vehicle	You completed a breath test with 0.04% BAC or more, or you completed a blood or urine test and the officer believes the results will show 0.04% BAC or more. If the laboratory results show that your BAC is less than 0.04%, this suspension or revocation will be set aside. Your driver license will be reissued to you if you do not have another suspension or revocation in effect.
Chemical Test Refusal	You refused to submit to, or failed to complete, a chemical test of the alcohol and/or drug content of your blood.

COMMERCIAL DISQUALIFICATION

A commercial disqualification action will be taken due to any of the following: if you refused a chemical test, if you had a 0.04% BAC or more while operating a commercial motor vehicle as defined in CVC §15210 or while transporting hazardous materials, or held a commercial driver license and were driving any vehicle when you had a 0.08% BAC or more.

HEARING INFORMATION

YOU HAVE **10 DAYS** FROM RECEIPT OF THIS NOTICE TO REQUEST A HEARING TO SHOW THAT THE SUSPENSION OR REVOCATION IS NOT JUSTIFIED. ***The suspension or revocation will not be stayed (delayed) unless you request a hearing within 10 DAYS from the issue date of this order and DMV cannot provide a hearing before the effective date of the suspension or revocation and make a determination.*** Hearings are conducted only to determine questions of fact as described on the reverse. Your need for a license cannot be considered at a hearing. **If you want a hearing or have questions regarding this matter, contact the DMV at (916) 657-0214.** A telephone hearing will be conducted unless you request an in-person hearing. Before the hearing you may see or obtain copies of the department's evidence. ***You must request copies of the department's evidence at least 10 DAYS prior to the date set for commencement of the hearing in order to receive them prior to the hearing date.*** If you want the information released to someone else, give them signed permission. ***You have the right to have a sign or language interpreter present at your hearing. If you require the service of an interpreter, immediately notify DMV of the need for such service. During the hearing*** you may present oral testimony and/or other evidence. Testimony is taken under oath or affirmation, and the hearing is recorded. You may be represented by legal counsel, or you may represent yourself. The arresting officer(s) may be subpoenaed in this matter, if it is determined that his or her testimony is needed. If you wish to question the arresting officer(s), you have the right to have subpoenas issued on your behalf. You may subpoena any other witness(es) you feel may help your case, and you have the right to cross-examine any opposing witness(es). Blank subpoenas may be obtained on the internet at the following address ***http://www.dmv.ca.gov/portal/dmv/detail/forms/formsds*** or provided to you by the hearing officer upon request prior to the hearing. You are responsible for service of your subpoena(s) and any witness fee required by law. ***After the hearing,*** the hearing officer shall make findings and render a decision.

OFFICER'S PRINTED NAME	BADGE/ID NUMBER	TELEPHONE NUMBER ( )
AGENCY	AREA	COURT CODE (*IF UNKNOWN, COURT NAME*)

I ☐ **did** ☐ **did not** personally serve a copy of the Order of Suspension/Revocation to the driver.

Date / / Signature of **Arresting** Officer X

ORDER SERVED BY ANOTHER OFFICER: If order was served on driver by **another Officer** have that officer complete this section.
I personally served a copy of the order to the driver on the date shown below:

Date	Serving Officer's *Printed* Name	Badge/ID Number	Signature Of Serving Officer
/ /			X

AGO 000042

CHEMICAL TEST ADMONITION
(CVC §§23154, 23612)

I admonished the driver on date: 11 / 7 / 24 at 0130 ☒ AM ☐ PM

1. You are required by state law to submit to and complete a chemical test to determine the alcohol and/or drug content of your blood.
2. Because I believe you are under the influence of alcohol or a combination of alcohol and drugs, you have a choice of taking a breath or blood test. If you are on DUI Probation you are required to submit to a Preliminary Alcohol Screening Test.
3. Availability of Tests. (*Read only when applicable.*)
   - ☐ **When Applicable:** Since the breath and blood tests are unavailable; you are incapable of completing a breath or blood test; or you are afflicted with hemophilia or are using an anticoagulant medication, you are deemed to have given your consent to chemical testing of your urine.
   - ☐ **When Applicable:** Since you need medical treatment, your choice is limited to the (*check all available*) ☐ blood, ☐ breath, and/or ☐ urine test(s), the only test(s) available at _____.
4. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years** by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21; or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
5. Refusal or failure to complete a chemical test may be used against you in court.
6. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
7. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.
8. If you cannot, or state you cannot, complete the test you choose, you must submit to and complete a remaining test.

DRIVER RESPONSE: Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Preliminary Alcohol Screening Test?** (*DUI Probation*) _____

☐ **Will you take a Breath Test?** _____

☐ **Will you take a Blood Test?** _____

TEST UNAVAILABLE: One or more tests were unavailable. ☐ PAS test unavailable ☐ Breath test unavailable ☐ Blood test unavailable

Explain:

LANGUAGE: If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*):

Admonition Read by a Different Officer: If the above Chemical Test Admonition was read to arrestee by another officer, indicate that officer's information:

OFFICER NAME	BADGE/ID NUMBER	AGENCY /DIVISION	TELEPHONE NUMBER
			( )

DRUG ADMONITION

1. Because I believe you are under the influence of drugs or a combination of drugs and alcohol, you are required by state law to submit to a blood, breath, or urine test. A urine test is available only if you are afflicted with hemophilia or are using an anticoagulant medication.
   - ☐ **When Applicable:** Because you have already submitted to or refused or failed to complete a breath test **or** a breath test is unavailable, your choice is limited to a blood test or a urine test, when applicable.
2. If you refuse to submit to, or fail to complete a chemical test, your driving privilege **will** be administratively suspended for **one year** or administratively revoked for **two or three years**, by the Department of Motor Vehicles. A second offense within ten years of a separate violation of driving under the influence, including such a charge reduced to reckless driving, or vehicular manslaughter, or a violation of CVC §23140, which resulted in a conviction, or separate administrative determination that you were driving with a BAC of 0.01% or more while under age 21, or a separate administrative determination that you were driving with a BAC of 0.01% or more while on DUI probation, or a BAC of 0.04% or more while operating a commercial motor vehicle, or a BAC of 0.08% or more at any age, or you refused a test, will result in a two-year administrative revocation. Three or more offenses within ten years of any combination of the above violations, convictions or separate administrative determinations will result in a three-year administrative revocation.
3. Refusal or failure to complete a chemical test may be used against you in court.
4. Refusal or failure to complete breath or urine testing will result in a fine and mandatory imprisonment if you are convicted of a violation of CVC §§23152 or 23153.
5. You do not have the right to talk to an attorney or have an attorney present before stating whether you will submit to a test, before deciding which test to take, or during the test.

DRIVER RESPONSE: Include statements or actions by the driver that indicate a refusal or failure of each test.

☐ **Will you take a Blood Test?** _____

☐ **Will you take a Urine Test?** _____

TEST UNAVAILABLE: One or more tests were unavailable. ☐ Blood test unavailable ☐ Urine test unavailable

Explain:

LANGUAGE: If not given in English, admonition was given in ☐ Spanish ☐ Other language (*specify*):

Admonition Read by a Different Officer: If the above Drug Admonition was read to arrestee by another officer, indicate that officer's information:

OFFICER NAME	BADGE/ID NUMBER	AGENCY/DIVISION	TELEPHONE NUMBER
			( )

continued on next page

County of Alameda
DAILY
DECLARATION AND DETERMINATION
Probable Cause for Warrantless Arrest

Arrestee/Suspect	DOB	Sex	PFN
BRENDAN NEWANFORBI	[redacted]	M	[redacted]

Race	CDL	Agency Report #
BLACK	[redacted]A	RJ68845

Arresting Agency	Declarant	Agency Phone	Agency Fax
CALIFORNIA HIGHWAY PATROL, DUBLIN	SANTIAGO MEZA-GONZALES	(925) 828-0466	

Arrest Date	Arrest Time	Arrest Location
11/01/2024	01:12:00	

Holds	Arrestee Home Address

Charges/Violations

VC 23152(A) M(1 Counts)

On 11/01/2024 at approximately 0055 hours, I was on duty, in full tan California Highway Patrol (CHP) uniform, driving a fully marked CHP patrol vehicle (1633363). My partner, Officer Melano ID 023054, was seated in the right front passenger of my patrol vehicle, also in full tan CHP uniform. We were traveling eastbound on I-580, just west of Isabel Avenue, when we came upon a Gray Tesla Model Y (S/V) on the right shoulder of I-580, just west of Isabel Avenue. I proceeded to park my patrol vehicle right behind the Tesla on the right shoulder to make a welfare check on the Tesla. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the subject woke up. The subject seemed very confused and disoriented. I contacted the subject through the open right passenger side door and I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle. I asked the subject if he was okay, and he related yes. The subject related he was on a parking lot, and I proceeded to informed him he was not in a parking lot, and he was on the side of the freeway. I asked the subject how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the subject if he had consumed any alcoholic beverages, and he related no. I conducted a DUI evaluation on the subject and at 0112 hours, I placed the subject (Newanforbi) under arrest for a violation of California Vehicle Code section 23152(a), driving while under the influence of alcohol, per 40300.5 VC.

I declare under penalty of perjury that the above information was obtained through official police channels and is contained in the above-mentioned police report. Executed in the County of Alameda, State of California. Identity and signature of declarant verified by CRIMS.

Date: 11/01/2024 21:58:43 Declarant: SANTIAGO MEZA-GONZALES Badge: 023295

On the basis of the foregoing declaration, I hereby determine that there is/is not probable cause to detain this arrestee.

Date: Judge:

Disposition Date	Disposition
	( )

Document #: PCD913527

AGO 000044

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL
NOTICE TO APPEAR
CHP 215 (REV. 01-24)

RJ68845

NOTICE TO:
☐ APPEAR IN COURT AT TBD ☐ AM ☐ PM ON:
OR
☐ RESPOND TO CITATION **BEFORE:**
☒ To be notified
DATE: I / B / D
See back for detailed instructions

WHERE: ☒ SUPERIOR COURT ☐ JUVENILE
ADDRESS: 5151 GLEASON DR DUBLIN CA 94568
PHONE NO.: 925 277 6700
COURT'S WEBSITE: http://www.courts.ca.gov/find-my-court.htm
ACT BY THIS DATE TO AVOID A WARRANT *OR* ADDED FEES

Date of Violation (mm/dd/yy)	Time	Day of the Week	
11/1/24	0112 ☒ AM ☐ PM	S M T W T (F) S	☐ 215S ☐ Crash

Name (first, middle, last): BRENDAN NGENSI NEWANFORBI
Current Address (no., street): 1455 CAT TAIL DR
City: STOCKTON State: CA Zip Code: 95204
[redacted]9 (all states) State: CA Commercial ☐ Y ☒ N Insurance ☒ Y ☐ N Date of Birth (mm/dd/yy): [redacted]
Sex: M Hair: BLK Eyes: BRN Height: 508 Weight: 225 Race / Ethnicity: B
☐ Commercial Vehicle (§15210(b) CVC)
☐ Hazardous Material (§353 CVC)
[redacted] State: CA Reg. Exp.: 01/25

Year of Veh.	Make	Model	Body Style	Color	Veh. Type
23	TESLA	Y	SUV	GRY	07

Registered Owner/Lessee ☐ Same as driver ☐ Owner's responsibility (§40001 CVC)
PV HOLDINGS CORP
Address (no., street, city, state, zip) ☐ Same as driver
5721 W. 96TH ST, LOS ANGELES, CA 90045
Reason for Stop: NON-EMERGENCY STOP ON FWY
CHP / DOT / PUC / ICC

CITATION DETAILS ☐ Booking Required *(see reverse)*

Correctable (Fix-It)	Code/Section	Description	M = Misdemeanor I = Infraction (circle)
☐ Y ☒ N	23152(a) VC	- DUI	(M) I
☐ Y ☐ N			M I
☐ Y ☐ N			M I
☐ Y ☐ N			M I

Approx. Speed	PF/Max. Speed	Vehicle Limit	Safe Speed	Special

Location of Violation: E/B 580 W/O ISABEL AVE
City/County of Occurrence: LIVERMORE

Beat	Area	Perm. Area	☒ Radar / Lidar Unit / Patrol Vehicle Number	☒ MVARS
52	390		3363	

☒ Violations not committed in my presence, declared on information and belief (§40600 CVC)
I declare under penalty of perjury under the laws of the State of CA that the foregoing is true and correct.

SAME — DECL. DATE
S. MEZA-GONZALES — ARRESTING OR CITING OFFICER
23295 — I.D. NO.

DECL. DATE — ARRESTING OFFICER, (if different from above) — PERM AREA — I.D. NO.

I promise to act by the date at the top of this citation. Signing DOES NOT admit guilt.

( ) CELLPHONE - OPTIONAL *(may be used for reminders)*
EMAIL - OPTIONAL *(may be used for reminders)*

X IN CUSTODY
SIGNATURE

RJ68845

Form Adopted for Mandatory Use
Judicial Council of California
TR-130, Traffic/Nontraffic Notice to Appear
§§40500(b), 40513(b), 40522,
40600 CVC; Pen. Code, §853.9
[Rev. Jan. 1, 2024]

RJ68845

SEE REVERSE

+ ☐ 1A ☐ 1B

AGO 000045

ALAMEDA COUNTY CONSOLIDATED ARREST REPORT CALIFORNIA HIGHWAY PATROL, DUBLIN 01991

Defendant's MRN Name			MRN PFN		Report Number	
					RJ68845	There is no photo on file.
Defendant's Last Name	First	Middle	Gen		PFN	
NEWANFORBI	BRENDAN	NGEHSI				
AKA / Nickname			Juvenile/ Arrest #		AJIS No.	
DOB	Age	POB	Height	Weight	Hair	
[redacted]		CM	508	225	BLACK	
Eyes	Race	Sex	Facial Hair	Marital Status	Pregnant	Photo Taken
BROWN	BLACK	MALE	Unshaven			

Arrest Date	Arrest Time	Salient Characteristics (SMT's)	ID Confirmed by
11/01/2024	01:12		

Home Address	Court Date/Time
1455 CAT TAIL DR STOCKTON CA 95204	

Business / School Name	Business / School Address	Total Bail

Home Phone	Business Phone	Cell Phone	Driver's License #	Social Sec #	Occupation
			[redacted]		

CII #	FBI #	CMS Incident No	Keeper
			N

Electronic Account Type and Value

Misc ID #

Clothing

BLACK SHIRT, GREEN PANTS, GRAY SLIDES

Code Section	Attempted	M/F	Count	Court	CIR	Warrant #	CEN	Bail
23152(A) VC	N	M	1		01			

Location of Arrest	Court Jurisdiction
(I-580 EB WO ISABEL ON RHS)	East County HOJ

Arresting Officer

SANTIAGO MEZA-GONZALES 023295

Transporting Officer

SANTIAGO MEZA-GONZALES 023295

Submitting Officer / Badge# / Agency	Agency Phone	Agency Fax	Duty Station
SANTIAGO MEZA-GONZALES / 023295 / CALIFORNIA HIGHWAY	(925) 828-0466		

Notes

Admonished	By Name	Rights Waived	Words of Invocation / Reason Not Admonished

Modus Operandi

Document [redacted]

Last Updated: 11/01/2024 01:33:00 (Submitted to Jail, by chp023295)

AGO 000046

STATE OF CALIFORNIA
DEPARTMENT OF CALIFORNIA HIGHWAY PATROL

VEHICLE REPORT

CHP 180 (Rev. 4-16) OPI 061

NOTE: CHP 180 IS FURNISHED TO ALL PEACE OFFICERS BY THE CALIFORNIA HIGHWAY PATROL

A: 13903

REPORTING DEPARTMENT	LOCATION CODE	DATE / TIME OF REPORT	NOTICE OF STORED VEHICLE DELIVERED PERSONALLY	FILE NO.
CHP DUBLIN	390	11/01/24 @ 0115	☐	

LOCATION TOWED / STOLEN FROM	ODOMETER READING	VIN CLEAR IN SVS?	LIC. CLEAR IN SVS?	DATE / TIME DISPATCH NOTIFIED	LOG NO.
E/B 580 W/O ISABEL	31,945	☒ YES ☐ NO	☒ YES ☐ NO	11/01/24 @ 0153	0004

YEAR	MAKE	MODEL	BODY TYPE	COLOR	LICENSE NO.	☐ ONE ☒ TWO	MONTH / YEAR	STATE
23	TESLA	Y	SUV	GRY	9EAX768		01/25	CA

VEHICLE IDENTIFICATION NO.	ENGINE NO.	VALUATION BY	
7SAYGDEE3PF638736		☒ OFFICER ☐ OWNER	☐ 0-500 ☐ 501-4000 ☒ 4001+ ☐ $

REGISTERED OWNER

PV HOLDING CORP
5721 W. 96TH ST
LOS ANGELES, CA 90045

☐ SAME AS R/O

LEGAL OWNER

THE BANK OF NEW YORK MELLON TRUST COMPANY NA
26033 NORTHWESTERN HWY S100
SOUTHFIELD, MI 48033

☒ **STORED** ☐ **IMPOUNDED** ☐ **RELEASED** ☐ **RECOVERED - VEHICLE / COMPONENT**

TOWING / STORAGE CONCERN *(NAME, ADDRESS, PHONE)*	STORAGE AUTHORITY / REASON
UNITED TOWING, 1113 GREENVILLE RD, LIVERMORE, CA 94550 925-888-8886	22651(h)(1) VC TOW FIRST

REASON FOR STOP	AIRBAG?	DRIVEABLE?	VIN SWITCHED?
11-26	☒ YES ☐ NO ☐ 1 ☒ 2	☒ YES ☐ NO ☐ JUNK ☒ UNK	☐ YES ☒ NO

CONDITION	YES	NO	ITEMS	YES	NO	ITEMS	YES	NO	ITEMS	YES	NO	TIRES / WHEELS	CONDITION
WRECKED		X	SEAT (FRONT)	X		REGISTRATION	X		CAMPER		X	LEFT FRONT	FAIR
BURNED HULK per 431(c) CVC		X	SEAT (REAR)	X		ALT. / GENERATOR		X	VESSEL AS LOAD		X	RIGHT FRONT	
VANDALIZED		X	RADIO	X		BATTERY	X		FIREARMS		X	LEFT REAR	
ENG. / TRANS. STRIP		X	TAPE DECK		X	DIFFERENTIAL			OTHER		X	RIGHT REAR	
MISC. PARTS STRIP		X	TAPES		X	TRANSMISSION	X					SPARE	NONE
BODY METAL STRIP		X	OTHER RADIO		X	AUTOMATIC	X					HUB CAPS	NONE
SURGICAL STRIP per 431(b) CVC		X	IGNITION KEY	X		MANUAL		X				SPECIAL WHEELS	NONE

RELEASE VEHICLE TO: ☒ R/O OR AGENT ☐ AGENCY HOLD ☐ 22850.3 CVC

GARAGE PRINCIPAL / AGENT STORING VEHICLE *(SIGNATURE)*: [signature]

DATE / TIME: 11/1/24 0115

NAME OF PERSON / AGENCY AUTHORIZING RELEASE	I.D. NO.	DATE

CERTIFICATION: I, THE UNDERSIGNED, DO HEREBY CERTIFY THAT I AM LEGALLY AUTHORIZED AND ENTITLED TO TAKE POSSESSION OF THE ABOVE DESCRIBED VEHICLE.

SIGNATURE OF PERSON AUTHORIZING RELEASE

SIGNATURE OF PERSON TAKING POSSESSION

☐ **STOLEN VEHICLE / COMPONENT** ☐ **EMBEZZLED VEHICLE** ☐ **PLATE(S) REPORT**

DATE / TIME OF OCCURRENCE	DATE / TIME REPORTED	NAME OF REPORTING PARTY (R/P)	DRIVER LICENSE NO. / STATE
LAST DRIVER OF VEHICLE	**DATE / TIME**	**ADDRESS OF R/P**	**TELEPHONE OF R/P**
			( )

I CERTIFY OR DECLARE UNDER PENALTY OF PERJURY UNDER THE LAWS OF THE STATE OF CALIFORNIA THAT THE FOREGOING IS TRUE AND CORRECT.

SIGNATURE OF PERSON MAKING REPORT

REMARKS

[LIST PROPERTY, TOOLS, VEHICLE DAMAGE, ARRESTS]

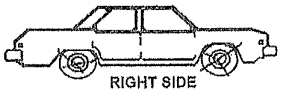
F7953179

DRIVER'S NAME	ARRESTED / SECTION?	REPORTED BY	CARGO / TYPE?	VALUE $
BRENDAN NGEHSI	☒ YES ☐ NO 23152(a) VC	C118-018	☐ YES ☒ NO	☐ BILL OF LADING ATTACHED

NEW ANFORBS, X2
PROPERTY: MISC BAG, POWER INVERTER, MISC CLOTHES, LAPTOP, STUFF ANIMAL, MISC ELECTRICAL ACCESSORIES, WIRELESS EAR PHONE CASE, MISC COLOGNE
DAMAGE: MISC. DENTS AND SCRATCHES, WHEELS CURB RASHED


FRONT


LEFT SIDE


RIGHT SIDE


REAR



AGO 000047

SIGNATURE OF OFFICER TAKING REPORT	I.D. NO.	SUPERVISOR	REQUIRED NOTICES SENT TO REGISTERED ☐ YES	DATE NOTIFIED

SUPERIOR COURT OF CALIFORNIA
County of Alameda

SEARCH WARRANT
DUI Blood Draw
Penal Code § 1524(a)(13)

The People of the State of California **Warrant No:**

To any peace officer in California: **Report No:** RJ68845

Name of arrestee: NEWANFORBI, BRENDAN NGEHSI **DOB** [redacted]

PFN: **SSN:** **DL #:** **DL State:**

Numerical identifier:

Vehicle Code violation: ☑ 23152 ☐ 23153 ☐ 23140

The affidavit below, which was sworn to and subscribed before me on this date, has established the following:

(1) At the date and time listed in the affidavit, the arrestee was lawfully arrested in the above county for the above offense(s) and the arrestee remains in custody.

(2) There is probable cause to believe that laboratory testing of a sample of the arrestee's blood will produce relevant evidence as to arrestee's guilt or innocence.

You are therefore ordered to promptly obtain a sample of the arrestee's blood and submit the sample to an approved laboratory for the purpose of determining its alcohol and/or drug content. This sample shall be obtained in a medically approved manner by a person who is certified to draw blood. Because this warrant authorizes a search for evidence that is constantly dissipating, it may be executed at any hour of the day or night. Pursuant to *Carleton v. Superior Court* (1985) 170 Cal.App.3d 1182, 1192 ["to restrain a defendant reasonable force may be necessary to properly withdraw a blood sample from an actively resisting defendant"], if the arrestee actively resists the execution of this warrant, and if officers have notified the arrestee that a warrant for this procedure has been issued, they may use reasonable force to obtain the evidence.

Date: 11/01/2024 02:34:50 Judge of the Superior Court: *Judge Amy Sekany*

♦ AFFIDAVIT ♦

Name of affiant: SANTIAGO MEZA-GONZALES

Affiant's agency: CALIFORNIA HIGHWAY PATROL, DUBLIN

Date of arrest: 11/01/2024 **Time of arrest:** 01:12

I am a law enforcement officer employed by the above agency. On the above date and approximate time I arrested the above-named arrestee for the above Vehicle Code offense and the arrestee has remained in custody. The arrest was based on the following circumstances that were witnessed by me or, where indicated, were witnessed by another officer who informed me of the circumstance:

On 11/01/2024, at approximately 0055 hours, I was on patrol in full tan CHP uniform seated in the driver seat of a fully marked California highway Patrol (CHP) patrol vehicle (1633363) with my partner Officer Melano ID 23054, who was seated int the right front passenger seat of our patrol vehicle in the city of Livermore, county of Alameda. I observed a gray Tesla SUV parked on the right shoulder of I-580 eastbound, west of Isabel Avenue, and I proceeded to make a welfare check on the vehicle. I conducted a passenger side approach of the Tesla and observed a black male adult seated in the driver seat of the Tesla. The subject was asleep, and I noticed the subject was wearing an orange 21 + wrist band on his right wrist. I knocked on the right front passenger side window of the Tesla and the male woke up. The male seemed very confused and disoriented. I could smell the distinct odor of an alcoholic beverage emitting from within the vehicle through the open right passenger side door. I asked the male if he was okay, and he related yes. The male related he was on a parking lot, and I proceeded to informed him he

Warrant No:

Name of arrestee: NEWANFORBI, BRENDAN NGEHSI

Name of affiant: SANTIAGO MEZA-GONZALES

Affiant's agency: CALIFORNIA HIGHWAY PATROL, DUBLIN

was not in a parking lot, and he was on the side of the freeway. I asked the male how long he had been parked on the side of the freeway and he related approximately 7 minutes. I asked him if he was alone, and he related yes. I asked him if he drove to that location and he related yes, from a party in Oakland. I asked the male if he had consumed any alcoholic beverages, and he related no. I asked the male to exit the Tesla. I asked the male if he had consumed any alcoholic beverages since stopping at that location and he related no. I asked the male if he had a driver license, and he [redacted] California Driver License. I identified the male as Brendan Ngehsi Newanforbi D.O.[redacted] California Driver License ID[redacted] Mr. Newanforbi a series of field sobriety test questions and while speaking with Mr. Newanforbi, I smelled the odor of an alcoholic beverage coming from Mr. Newanforbi's breath and person. I conducted a series of field sobriety tests on Mr. Newanforbi of which he did not perform as instructed or demonstrated. I arrested Mr. Newanforbi for 23152(a) VC - DUI at approximately 0112 hours. I advised Mr. Newanforbi of Implied Consent by reading the back of the DMV DS 367 page 1 verbatim (excluding paragraph 3 and 6). I gave Mr. Newanforbi the choice of submitting to a chemical breath test, blood test, or to refuse the tests. I advised Mr. Newanforbi there were additional administrative consequences from the DMV for refusing the chemical tests. Mr. Newanforbi chose to refuse any chemical testing.

Declaration: I declare under penalty of perjury that the foregoing is true.

Date: 11/01/2024 02:30:22 Affiant: SANTIAGO MEZA-GONZALES

Log # 64

Bay Area PL Services
(415) 300 - 4436
www.bayareapls.com

FRM-401.2 BLOOD TEST REQUEST FORM

SECTION [23500-23702]
CALIFORNIA VEHICLE CODE (CVC)

TIME 02:03 CALL 02:18 ARRIVAL ____:____ DEPART.
REQUESTING COUNTY ☐ ALAMEDA ☐ CONTRA COSTA ☐ MARIN ☐ SAN FRANCISCO ☐ SAN MATEO ☐ SANTA CLARA
REQUESTING AGENCY DUBLIN CHP CASE NO RJ 68845

SUBJECT DEMOGRAPHIC INFORMATION

LAST: NEWANFORBI
FIRST: BRENDAN NGEHSI
[redacted]
Date & Time: 11/01/2024 @
Tech: A.GHALEB
Witness:

DATE OF BIRTH (DOB): __ __ / __ __ / __ __ __ __ (M M D D Y Y Y Y)
ID VERIFIED [ ]

PHLEBOTOMIST NAME & CERT. NO

Specimens may only be collected by persons authorized by Section 23158 of the California Vehicle Code as a clinical laboratory Phlebotomist; a person who has been issued a "Certified Phlebotomy Technician" license pursuant to Section 1246 of the Business and Professions Code.

FULL NAME: AZIZA GHALEB
CPT #: 02153315
SIGNATURE:

SPECIMEN COLLECTION INFORMATION

COLLECTION DATE: 11 / 01 / 2024 (M M D D Y Y Y Y)
TIME OF DRAW: 02:38
LOCATION OF DRAW: DUBLIN CHP (FACILITY)

COMPLETION STATUS:

☐ PHLEBOTOMY FEE - *IMPLIED CONSENT OR SIGNATURE OBTAINED*
☑ PHLEBOTOMY FEE + WARRANT - *RECEIVED COPY OF WARRANT W/ JUDGE'S NAME*
☐ DRY RUN - NO BLOOD COLLECTED - *CASE/LOG NO, AGENCY INFO, NOTES REQUIRED*
☐ DRY RUN - DISPATCH CANCELED CALL - *CASE/LOG NO, AGENCY INFO, NOTES REQUIRED*
☐ OTHER: _____

BLOOD DRAW ATTEMPTS: [1]

NOTES, *IF ANY:*

SUBJECT STATEMENT BOX:

☐ N/A - IMPLIED CONSENT *per VC § 23612(a)(1)(A)*

I, person subject listed above, do hereby consent and acknowledge the withdrawal of a blood sample from my body for selected blood tests. I also acknowledge that I have the right of refusal to submit the withdrawal of my blood but in doing so, there are additional penalties, consequences, and charges of my refusal and will be used against me in the court of law. I further certify that I am not a person who is afflicted with hemophilia, or afflicted with a heart condition, and/or taking an anticoagulant under supervision of a physician.

x

SIGNATURE REQUIRED FOR SF COUNTY. IF REFUSED, WARRANT IS REQUIRED.

CHARGE(S): 23152(a)VC

REQUESTING PEACE OFFICER NAME & BADGE NO:
MEZA 23795

SIGNATURE OF OFFICER:
x

OFFICER REQUEST ☑ THE APPROPRIATE BOXES AND INITIAL NEXT TO EACH BOX

S.M 1. The above listed person from whom the blood sample is to be obtained has been lawfully arrested for an offense allegedly committed in violation of Vehicle Code Section 23152 or 23153.
☐ 2. I believe that above listed person from whom the blood sample is to be obtained is in a condition rendering him/her incapable of refusal and is deemed not to have withdrawn his/her consent.
☐ 3. The above listed person from whom the blood sample is to be obtained is unconscious OR _____
S.M 4. There is a probable cause to believe that a test of the suspect's blood will yield relevant evidence in a criminal investigation.
☐ 5. The above listed person from whom the blood sample is to be obtained is a minor, and, according to California Attorney General, no parental consent is necessary to test a minor *(see 54 Ops.Cal. Atty.Gen.)*
S.M 6. The above listed person from whom the blood sample is to be obtained refuses to consent for a blood draw. (ATTACH COPY OF SIGNED WARRANT)

PHLEBOTOMY CHECKLIST *INITIAL THE APPROPRIATE ITEMS 1-13*

PHLEBOTOMIST INITIALS | PEACE OFFICER INITIALS

1. Phlebotomist uses sealed collection kit supplied by the Forensic Laboratory. The Evidence Kit contains all of the following:
   - One county-specific evidence envelope and additional forms, *if applicable*
   - Bio-hazard specimen bag, tourniquet, sterile gauze, bandage, and bib
   - One sealed 21G or 23G butterfly needle and hub
   - Two vacutainer labels
   - Tamper evident seal(s)
   - One disinfectant prep pad *(circle one)*: BZK *or* POVIDONE IODINE — *LOT#:* _____ *EXP:* ____ / ____ (Y Y Y Y / M M)
   - Two gray top vacutainer tubes with sodium fluoride and potassium oxalate powder pre — *LOT#:* _____ *EXP:* ____ / ____ / ____ (Y Y Y Y / M M / D D)

BZK LOT # 57209
BZK LOT EXP 2028/10/17
VAC LOT # 4011446
VAC LOT EXP 2026/01/31

AG S.M

AG 2. **WARRANT ISSUED:** If the subject did not give consent or it is a forced draw, do not proceed or touch the subject until a warrant is received. *JUDGE'S FULL NAME:* Amy Sgkamy *or* ☐ *N/A* - warrant not required; IMPLIED consent or signature above. S.M

AG 3. Phlebotomist sanitizes workstation area(s) with BZK cleaning agent; allows to air dry. Disinfects hands with BZK soap, allows to air dry and dons gloves. Applies tourniquet, palpates suitable vein, ensures absence of pulse, and prepares venipuncture site with county-approved disinfectant prep pad. CAUTION: alcohol prep pads and hand sanitizer is strictly prohibited! S.M

AG 4. Phlebotomist performs the venipuncture in *LEFT / RIGHT* AC. Establishes blood flow, confirming that the blood is venous and dark in color, and Phlebotomist asks 'TIME CHECK' from the Peace Officer. Collection date/time is notated from TIME CHECK. S.M

AG 5. Phlebotomist fills both tubes completely with blood, ensuring to immediately invert the tubes 8-10 times to mix the preservative and anticoagulant. Once both tubes are filled to maximum capacity, ensures to the remove the tourniquet within 1 minute of application. S.M

AG 6. Phlebotomist removes the final tube before withdrawing needle from the vein. Phlebotomist removes the needle from the subjects arm using a swift backward motion. While withdrawing the needle from the subjects skin, engages the safety mechanism, and presses down on the gauze over the puncture site with adequate pressure to avoid hematoma formation or asks competent subject to apply direct pressure over site keeping arm straight. S.M

AG 7. Phlebotomist assures that puncture site bleeding has stopped, applies band-aid or a piece of tape with gauze. Phlebotomist ensures the tubes are properly mixed with the preservative and anticoagulant and may invert again, if needed. S.M

AG 8. Phlebotomist fills out both vacutainer labels, at a minimum, the subject's full name, collection date, collection time, collector's initials, and gives labels to Witnessing Officer to add their initials. S.M

AG 9. Phlebotomist and Witnessing Officer compare label information matches evidence envelope and Blood Test Request Form to ensure accuracy of all information. After the accuracy of the labels is verified, they are affixed to the tubes by the Phlebotomist or Officer (depending on county protocol), ensuring to not cover the lot number and expiration date of the tubes. S.M

AG 10. Phlebotomist and Peace Officer complete the required information in their respective sections on the evidence envelope and Blood Test Request Form. Ensure all information is consistent, legible, and accurate. S.M

AG 11. Phlebotomist or Officer *(depending on county protocol)*, places the labeled blood test tubes into the evidence envelope and seals the envelope using the tamper-evident tape. Initials and date must be written across the seal and envelope itself. S.M

AG 12. All persons handling the evidence must make an entry on the chain of possession portion of the envelope with full name and date. The Phlebotomist transfers custody of the evidence envelope to the Peace Officer who will then annotate their name and date of receipt in the chain of possession section. After this point, the Phlebotomist is not allowed to handle the evidence envelope or re-open it for any reason. S.M

AG 13. Phlebotomist must perform infection control by wiping down workstation including, tables, chairs, floor mats, equipment, and frequently touched surfaces with BZK cleaning agent; allows to air dry completely. Properly dispose of all sharps in sharps containers and waste in appropriate receptacles. S.M

PHLEBOTOMIST USE ONLY
AIRTABLE LOG SUBMITTED? ☐

White - Police Agency | Yellow - Phlebotomist | Pink - Crime Lab *N/A San Francisco/Marin County*

ALAMEDA COUNTY SHERIFF'S DEPARTMENT
PRISONER PROPERTY RECEIPT

No. 2173094

Local Agency: OPD ☐ Other: _____

Local Agency No: _____

Inmates Last Name	First	M.I.
PFN No.	Date	

Cash Count			Property Release # 1	Property Release # 2
	X 100			
	X 50			
	X 20			
	X 10			
	X 5			
	X 1			
	COIN			
TOTAL		$		

This form contains a complete list of property receipted for upon entering an Alameda County Jail.

Inmate's Sig. X	☐ Refused to Sign
Officer's Sig. X	Badge No.

No. 2173094

I have received all of my property, clothing, and money.

Inmate's Sig. X	Date
Officer's Sig. X	Badge No.

Property Release #1

Released Property To:

Agency:

Checked and Received By	Badge No.	Date
Officer's Sig. X		
Inmate's Sig. X		Release Date
Officer's Sig. X		Badge/I.D. No.

Property Release #2

Released Property To:

Agency:

Checked and Received By	Badge No.	Date
Officer's Sig. X		
Inmate's Sig. X		Release Date
Officer's Sig. X		Badge/I.D. No.

Form 230-1

All unclaimed property and money shall be disposed of as provided by law.		PR # 1	PR # 2
Item	Description		
Wallet			
Purse			
Misc. Papers			
Check / Savings Book			
Keys			
Watch ☐ WM ☐ YM	☐ Man's ☐ Women's Make:		
Ring ☐ WM ☐ YM	☐ Man's ☐ Women's Color of Stone		
Ring ☐ WM ☐ YM	☐ Man's ☐ Women's Color of Stone		
Other Jewelry ☐ WM ☐ YM	☐ Man's ☐ Women's		
Other Jewelry ☐ WM ☐ YM	☐ Man's ☐ Women's		
Earring ☐ WM ☐ YM			
Change: If less than $1.00			
Rare or Foreign Coins			
Hat			
Coat			
Vest			
Shirt	BLACK		
Tie			
Belt			
Pants			
Shoes	BLACK		
Dress			
Skirt			
Radio			
Luggage			
Medication			
Other			
Comments:			

AGO 000051

Original - Inmate Yellow - County Jail Copy Pink - County Jail Copy Goldenrod - Originating Agency Copy

Area Information System
Dublin Area

Arrest Screen Print
11/01/2024 04:59:41

Arrest File #: 202400898 **Arrest Type:** M Misdemeanor **Status:** I Incomplete **Status Date:** 11/01/2

Felny/Mis #: 202400898 **Beat:** 052 I-580

Arrest Date : 11/01/2024 **Time :** 0112 **Officer ID:** 023295 Santiago Meza-gonzale

Citation # : RJ68845 **Arrest Loc :** I-580 EB WO ISABEL ON RHS **County :** Alameda

Evidence# : **Coll Log # :** **MVARS:** N **Release Status:**

First Name : BRENDAN **Middle Name:** NGEHSI **Last Name:** NEWANFORBI **Gen:**

Person/Vehicle

Address: 1455 CAT TAIL DR
City : STOCKTON **State:** CA **Zip:** 95204 **Country:** US United States

Race : B Black **Sex:** M **Eye:** BRN **Hair:** BLK
Weight : 225 **Height:** 5-08
DOB : [redacted] **Age:** 28 **SSN:**

Driver Lic#: [redacted] **Driver ST:** CA

Veh. Lic# : [redacted] **Veh. ST :** CA **VIN:** **Veh. Type:** 01
Veh. Make : Tesla
Veh. Model : Model Y
Veh. Year : 2023
Veh. Color : GRY

Charges

Court : 01435 East County - Dublin
Booking # : [redacted]
Where Booked: Santa Rita Jail
DUI Cost : N **Juvenile:** N **SSP:** N

Agency Number

Code	Section Number	Type
VC	23152(a)	M

Test Results

PAS Device :
Pas Refused: Y

PAS Results

CHP 202 DRE:
Trombetta Advised:

Test#	Type	Drug Test	Result	Received	Rf	Tr	NC

Disposition

Case Status:
Status Date:
Filing Date:
Due Date :

AGO 000052

Docket # :

Status Date	Status

DUI Cost

Date 735 Received :
Date To Accounting:

Officer ID	Officer Last Name	Activity Code	Activity Description	Hours

MVARS

DVD Item Number	DVD Date	Status	Status Date

Aliases

First Name	Middle Name	Last Name	Gen

Victims / Witnesses

Role	First Name	Middle Name	Last Name	Gen

Status Change History

		-Status-		-----Status Date------	
Date Changed	User ID	Old	New	Old	New
11/01/2024 04:59:27	023295		I		11/01/2024

Comments

EXHIBIT

D

CHP Incident Detail Report (CAD Log)

Incident No. 241101GG0064 · November 1, 2024
Produced October 23, 2026 by Respondents (Cal. Dept. of Justice)
AGO 000022–000024 · App. 053–056

Incident Detail Report

Data Source: **Data Warehouse**
Incident Status: **Closed**
Incident number: **241101GG0064**
Case Numbers:
Incident Date: **11/1/2024 01:04:13**
Report Generated: **5/10/2026 12:17:38**

Incident Information

Incident Type:	CHP No Response	**Alarm Level:**	
Priority:	5	**Problem:**	1015-Prisoner In Custody
Determinant:		**Agency:**	CHP
Base Response#:		**Jurisdiction:**	GG
Confirmation#:		**Division:**	118-Dublin
Taken By:	Lynn N Keith	**Battalion:**	
Response Area:		**Response Plan:**	
Disposition:	F-File	**Command Ch:**	
Cancel Reason:	RD-Radio Desk	**Primary TAC:**	
Incident Status:	Closed	**Secondary TAC:**	
Certification:		**Delay Reason (if any):**	
Longitude:	121808836	**Latitude:**	37700761

Incident Location

Location Name:	EB 580 JWO ISABEL	**County:**	Alameda
Address:	I580 E / ISABEL AVE W OFR	**Location Type:**	
Apartment:		**Cross Street:**	
Building:		**Map Reference:**	
City, State, Zip:	Livermore CA 94551		

Supplemental Information - Vehicle

VEHICLE 1
License: [redacted] - CA - Passenger Car

Call Receipt

Caller Name:			
Method Received:		**Call Back Phone:**	
Caller Type:		**Caller Location:**	
Caller Address:		**Caller Location Phone:**	
Caller Building:		**Caller Apartment:**	
Caller City, State, Zip:		**Caller County:**	

Time Stamps

Description	Date	Time	User
Phone Pickup	11/1/2024	01:04:13	
1st Key Stroke	11/1/2024	01:04:13	
In Waiting Queue	11/1/2024	01:04:13	
Call Taking Complete	11/1/2024	01:04:13	Lynn N Keith
1st Unit Assigned	11/1/2024	01:04:13	
1st Unit Enroute	11/1/2024	01:04:13	
1st Unit Arrived	11/1/2024	01:04:13	
Closed	11/1/2024	03:27:52	Lynn N Keith

Elapsed Times

Description	Time
Received to In Queue	00:00:00
Call Taking	00:00:00
In Queue to 1st Assign	00:00:00
Call Received to 1st Assign	00:00:00
Assigned to 1st Enroute	00:00:00
Enroute to 1st Arrived	00:00:00
Incident Duration	02:23:39

Resources Assigned

Unit	Primary Flag	Assigned	Disposition	Enroute	Staged	Arrived	At Patient	Delay Avail	Complete	Odm. Enroute	Odm. Arrived	Cancel Reason
C118-068	N	01:04:13	RU-Reassign Unit or Incident	01:04:13		01:04:13			03:25:57			RU-Reassign Unit

Personnel Assigned

Unit	Name
C118-068	Jose C Melano (023054); Santiago A Meza Gonzales (023295)

Caution Notes

No Caution Notes found

Permits

No Permit Information

Pre-Scheduled Information

No Pre-Scheduled Information

Transports

No Transports Information

Transport Legs

No Transports Information

Comments

Date	Time	User	Type	Conf.	Comments
11/1/2024	01:04:16	A13903	Response	Y	[1] [Query] C118-068, CLETS/NCIC Vehicle Inquiry: C,CA[redacted]PC,4,T
11/1/2024	01:04:30	A13903	Response	Y	[2] [Query] C118-068, 1. 1127: C,CA,L1[redacted]
11/1/2024	01:04:35	A13903	Response		[3] C118-068 REQ 29 SUB
11/1/2024	01:06:42	A13903	Response	Y	[4] [Query] C118-068, SRF Person Inq by Number: C[redacted]
11/1/2024	01:07:01	A13903	Response	Y	[5] [Query] C118-068, Wanted Person Inquiry by Name: C,NGWANFORBI BRENDAN N[redacted]M
11/1/2024	01:07:08	A13903	Response	Y	[6] [Query] C118-068, Gun Inquiry by Name: C,NGWANFORBI BRENDAN N[redacted]
11/1/2024	01:07:29	A13903	Response		[7] PER NCIC, SUBJ ON CDC PAROLE FOR [REDACTED]
11/1/2024	01:08:22	A13903	Response		[8] PER NCIC, SUBJ IS A [REDACTED]
11/1/2024	01:10:11	A13903	Response		[9] LL W/ SAN JOAQUIN CO
11/1/2024	01:11:29	A13903	Response		[10] SUBJ CLR SAN JOAQUIN
11/1/2024	01:12:33	A13903	Response		[11] 118-68 OFCR MEZA 23295 1015 AT 0112*****
11/1/2024	01:12:39	A13903	Response		[12] 118-68 REQ 1185 FOR TESLA
11/1/2024	01:12:42	A13903	Response		[13] [Notification] [CHP]-Problem changed from STOP to 1015-Prisoner In Custody by CHP
11/1/2024	01:14:14	A12772	Response		[14] [Rotation Request Comment] 1039 UNITED TOWING LVMR 925-777-7778
11/1/2024	01:14:19	A13903	Response		[15] SUBJ CLR AWS
11/1/2024	01:53:17	023295	Response	Y	[16] 180 INFO: 2023 TESLA MODEL Y, SUV, GRY IN COLOR,[redacted] TWO PLATES, TAKEN FOR 22651(h)(1) VC BY OFFICER MELANO 23054
11/1/2024	01:53:39	A13903	Response		[17] C118-068 BM 14799 TO OFC
11/1/2024	01:53:48	A13903	Response		[18] C118-068 PTY IS A REFUSAL
11/1/2024	01:53:52	A13903	Response		[19] Secondary Location for C118-068: OFC,
11/1/2024	01:54:00	A13903	Response		[20] 118-S7 CPYS

AGO 000022

11/1/2024	01:59:41	A13903	Response		[21] C118-068 EM 805 @ OFC
11/1/2024	01:59:46	A13903	Response		[22] C118-068 REQ BT TO DUB OFC
11/1/2024	02:00:57	A13903	Response		[23] 1039 BT VIA BLOODBOT
11/1/2024	02:07:43	A08297	Response	Y	[24] [Notification] [CHP]-BT ETA TO DUBLIN OFC 15 MINS // 510.472.4538
11/1/2024	02:11:59	A13903	Response	Y	[25] [Query] 118-CLETS, 1. Vehicle - Stored: C[redacted]CA,25,PC,7SAYGDEE3PF638736,23,TESL,TY,LL,GRY,110124,V0147839 024,UNITED TOW 925-777-7778/22651H/GG0064/A13903
11/1/2024	02:12:18	A13903	Response		[26] FCN/1202430600385 / V-Number: 01478-390-24 /[redacted]
11/1/2024	02:47:26	A13903	Response		[27] C118-068 BM 805 TO RITA
11/1/2024	02:47:30	A13903	Response		[28] Secondary Location for C118-068: RITA,
11/1/2024	02:50:12	A13903	Response		[29] C118-068 EM 806 @ RITA
11/1/2024	03:25:50	023295	Response	Y	[30] PARTY BOOKED FOR 23152(a) VC
11/1/2024	03:26:17	A13903	Response		[31] BOLO Entry: IC - In Custody Added By A13903 for Incident# 23324262
11/1/2024	04:23:38	A13903	Response		[32] LOCATED/CONTACTED FCN/H092033700531NAM/NEWANFORBI,BRENDAN NGEHSI********** END OF SRF CONTACT MESSAGE **********
11/1/2024	04:23:45	A13903	Response		[33] CONTACT MSG SENT FOR PAROLE

Address Changes

Date	Time	Location/Address	User
11/1/2024	01:06:16	EB 580 JWO ISABEL / Eb Jwo Isa	LNK

Priority Changes

No Priority Changes

Alarm Level Changes

No Alarm Level Changes

Activity Log

Date	Time	Radio	Activity	Location	Log Entry	User
11/1/2024	01:04:13	C118-068	10-97	Eb Jwo Isa		A13903
11/1/2024	01:04:13		Supplemental Information	Eb Jwo Isa	Supplemental Vehicle record 3509537 was added for license plate[redacted]	A13903
11/1/2024	01:04:13		License Plate	Eb Jwo Isa	Plate Number[redacted]has been added.	A13903
11/1/2024	01:04:16	C118-068	[Query]		[Query] CLETS/NCIC Vehicle Inquiry: C,CA[redacted]PC,4,T	A13903
11/1/2024	01:04:16		Read Comment	Eb Jwo Isa	Comment for Incident 262 was marked as read.	A13903
11/1/2024	01:04:30	C118-068	[Query]		[Query] 1. 1127: C,CA,L1[redacted]	A13903
11/1/2024	01:06:04		Read Incident		Incident 262 was Marked as Read.	A13903
11/1/2024	01:06:04		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	01:06:11	C118-068	Update Unit Address	Eb Jwo Isa		A13903
11/1/2024	01:06:17	C118-068	Update Unit Address	I580 E / ISABEL AVE W OFR		A13903
11/1/2024	01:06:42	C118-068	[Query]		[Query] SRF Person Inq by Number: C[redacted]	A13903
11/1/2024	01:06:42		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	01:07:01	C118-068	[Query]		[Query] Wanted Person Inquiry by Name: C,NGWANFORBI BRENDAN N[redacted]M	A13903
11/1/2024	01:07:08	C118-068	[Query]		[Query] Gun Inquiry by Name: C,NGWANFORBI BRENDAN N[redacted]	A13903
11/1/2024	01:12:42		Problem Nature	I580 E / ISABEL AVE W OFR	Incident problem nature changed from STOP to 1015-Prisoner In Custody	A13903
11/1/2024	01:12:51	C118-068	Task Request Sent	I580 E	Task request: REQ 1185 THX. The request was sent to advisor role(s): SCGG.	A13903
11/1/2024	01:12:53		UserAction		User clicked Exit/Save	A13903
11/1/2024	01:13:20	C118-068	Task Request Accepted	I580 E	Request: REQ 1185 THX. The request was accepted by Fara Farrales (A12772)	A12772
11/1/2024	01:13:22	C118-068	Rotation Request Entered	I580 E / ISABEL AVE W OFR Livermore, CA 94551	Rotation Request 11012024-0001106 entered.	A12772
11/1/2024	01:13:55	C118-068	Task Request Declined	I580 E	Request: TASK REQUEST: 262, C118-068 TEXT: REQ 1185 THX. The request was declined by Matthew P Venoya (A19710)	A19710
11/1/2024	01:14:14		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	01:14:14		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A12772
11/1/2024	01:14:15		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	01:14:15	C118-068	Rotation Provider Assigned	I580 E / ISABEL AVE W OFR Livermore, CA 94551	[RR 945675] Rotation Provider United Towing LVMR assigned to request.	A12772
11/1/2024	01:14:19		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	01:14:32		UserAction		User clicked Exit/Save	A13903
11/1/2024	01:15:34		UserAction		User clicked Exit/Save	A12772
11/1/2024	01:21:07		UserAction		User clicked Exit/Save	CT_NMARKOS
11/1/2024	01:53:52	C118-068	ENRT ALT	OFC	Incident ID = 23324262, 0, 0, ,	A13903
11/1/2024	01:53:56		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	01:54:00		UserAction		User clicked Exit/Save	A13903
11/1/2024	01:54:00		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	01:59:28	C118-068	10-97 ALT	OFC	Incident ID = 23324262, 0, 0, ,	A13903
11/1/2024	01:59:56		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	02:00:57		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	02:01:03		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:07:01		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	02:07:43		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A08297
11/1/2024	02:07:45		UserAction		User clicked Exit/Save	A08297
11/1/2024	02:11:59	118-CLETS	[Query]		[Query] 1. Vehicle - Stored: C[redacted]CA,25,PC,7SAYGDEE3PF638736,23,TESL,TY,LL,GRY,11(TOW 925-777-7778/22651H/GG0064/A13903	A13903
11/1/2024	02:12:20		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:26:35		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	02:26:39		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:39:22		UserAction		User clicked Exit/Save	CT_WAU
11/1/2024	02:44:09		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:47:26		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	02:47:30	C118-068	ENRT ALT	RITA	Incident ID = 23324262, 0, 0, ,	A13903
11/1/2024	02:47:31		UserAction		User clicked Exit/Save	A13903
11/1/2024	02:50:01	C118-068	10-97 ALT	RITA	Incident ID = 23324262, 0, 0, ,	A13903
11/1/2024	03:25:57	C118-068	Disposition	EB 580 JWO ISABEL	RU-Reassign Unit or Incident	C118-068
11/1/2024	03:25:57	C118-068	10-8	I580 E / ISABEL AVE W OFR [EB 580 JWO ISABEL]	Unit Cleared From Incident 241101GG0064	C118-068
11/1/2024	03:25:58	C118-068	Available		Request to Cancel By mobile unit (C118-068)	C118-068
11/1/2024	03:25:58	C118-068	Reassign Vehicle		ReAssign Reason: RU-Reassign Unit	C118-068
11/1/2024	03:25:58	C118-068	Reassign Response		ReAssign Reason: RU-Reassign Unit	C118-068
11/1/2024	03:25:58	C118-068	Reassign Response		Clearing Primary Vehicle Flag	C118-068
11/1/2024	03:26:05		Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	03:27:47		Create BOLO Record	I580 E / ISABEL AVE W OFR	BOLO Entry: IC - In Custody Added By A13903 for Incident# 23324262	A13903
11/1/2024	03:27:47		Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	03:27:50		UserAction		User clicked Cancel	A13903
11/1/2024	03:27:52		Cancel Response	EB 580 JWO ISABEL	Cancellation Reason: RD-Radio Desk, Response Disposition: F-File	A13903

AGO 000023

11/1/2024	04:21:56	Read Comment		Comment for Incident 262 was Marked as Read.	A13903
11/1/2024	04:23:38	Read Comment	I580 E / ISABEL AVE W OFR	Comment for Incident 262 was marked as read.	A13903
11/1/2024	04:24:07	UserAction		User clicked Exit/Save	A13903

Edit Log

Date	Time	Field	Changed From	Changed To	Reason	Table	Workstation	User
11/1/2024	01:04:16	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:06:04	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:04	Read Call	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:11	Location_Name		EB 580 JWO ISABEL	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:13	Address	Eb Jwo Isa	I580 E/ Isa	Address Change	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Address	I580 E/ Isa	I580 E / ISABEL AVE W OFR	Change Verified	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	County		Alameda	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	IntersectionStreetID	NULL	954116	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Street_Id	NULL	954115	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Longitude	0	121808836	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Latitude	0	37700761	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Postal_Code		94551	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	State		CA	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	City		Livermore	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:16	Address	Eb Jwo Isa	I580 E / ISABEL AVE W OFR	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:06:17	LAW		LVMR	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:06:17	FIRE		ACRECC	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:06:17	EMS		ACRECC	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:06:42	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:12:42	Incident_Type	1 CHP Unit Incident	CHP No Response	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:12:42	Problem	STOP	1015-Prisoner In Custody	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:14:14	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:14:14	Unread Comment	False	True	(Response Viewer)	Incident	GG017	A12772
11/1/2024	01:14:15	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:14:19	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:53:56	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	01:54:00	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	01:59:56	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	02:00:57	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	02:07:01	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	02:07:43	Unread Comment	False	True	(Response Viewer)	Incident	GG035	A08297
11/1/2024	02:26:35	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	02:47:26	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	03:26:05	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	03:27:47	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903
11/1/2024	04:21:56	Read Comment	False	True	(Response Viewer)	Response_Master_Incident	GG040	A13903
11/1/2024	04:23:38	Unread Comment	False	True	(Response Viewer)	Incident	GG040	A13903

Custom Time Stamps

No Custom Time Stamps

Custom Data Fields

Description	Data	User
EMS	ACRECC	A13903
FIRE	ACRECC	A13903
LAW	LVMR	A13903

Attachments

No Attachment

EXHIBIT

E

CHP 415 Daily Activity Records

October 31, 2024 · Officers S. Meza-Gonzales (ID 023295) and J. Melano (ID 023054)
Produced October 23, 2026 by Respondents (Cal. Dept. of Justice)
Production Exhibits 8 and 11 · App. 057–059

10/31/2024 Regular Shift Info for 023295

Name				Supervisor	Shift Start	Shift Length	Partner	Beat	Review Area	Shift Area
Meza-Gonzales, Santiago				018449	1930	10	023054	068	390	390
Schedule	**Weapon Checked**	**License Plate**	**Assigned Taser**	**Assigned PAS**			**Assigned MVARS**		**CHP415ID**	
Graveyard	No	1633363	13						16441963	

Shift Times, Totals, OT, and Premium Pay Info

FLSA (10/07-11/03)	Patrol	Reg. Activity	OT Activity (Non-Reimbursable OT)	Reg Miles	Total SPC Miles
166.00/170	01:10 (01:10)	08:50	00:00 (00:00)	169	0

Premium Pay	FTO	OIC	AMR	Bus. Call	CTO/Stand By	CTO	Stand By
				No			

Enforcement Focus (Section G) Totals	PCF	Speed		
	1	2		

Activities for Day

Start	Elapsed	Beat	Activity	2nd Act.	SPC	Location	Activity Comment
19:30	00:45	909	Briefing/Debriefing	PV Svcs.		OFFICE	BRIEFING / PV CHECK
20:20	00:30	051	215 Moving			WB 580 TO 680	21651(a) VC
20:55	00:05	067	PA			NB 680 FROM BERNAL	
21:00	00:10	068	CFS – 23103 or 2…			NB 680 FROM 580 TO EL CERRO	UTL ON BOLO
21:15	00:10	068	ADV			NB 680 SO CROW CANYON	8FQF000 , UNK MECH
21:30	00:20	069	PA			680 SB SO SYCAMORE VALLEY	
21:50	00:15	068	215 Moving			SB 680 SO CROW CANYON	22349(a) VC
22:10	00:20	051	PA	215NR		EB 580 WO FOOTHILL	OWNER'S RESPONSIBILITY, 4000(a)(1) VC
22:30	00:15	900	PV Svcs.			OFFICE	PV REFUEL
22:55	00:20	052	PA	215NR		580 WB WO FIRST	FOR EXP REG AND NO INSURANCE 27: Y6464080
23:20	00:20	051	215 Moving			WB 580 WO SANTA RITA	22349(A) VC
23:55	00:20	052	PA			580 WB WO N. LIVERMORE	
00:20	00:15	068	PA			NB 680 SO ALCOSTA	
00:55	02:35	052	202			EB 580 WO ISABEL	23152(a) VC
03:30	00:10	900	PV Svcs.			OFFICE	PV REFUEL
03:40	00:30	053	CFS – Disabled			WB 580 EO GRANT LINE	11-26, GOA
04:30	00:45	900	202 T			OFFICE	FACE PAGES/ AIS
05:15	00:45	900	PV Svcs.	Briefing/Debriefing		OFFICE	PV BREAK DOWN AND DEBRIEF

Officer and Reviewer Comments

Community Engagement	Services
No community engagement comments left	No service comments left
Activity	**Miscellaneous Notes**
10-15 THAT WAS REFUSAL, WROTE BLOOD WARRANT. WROTE 5 TAGS AND FINSHED DUI FACE PAGES AT THE END OF SHIFT. WROTE 5 TAGS 3 OF WHICH WERE MOVERS.	DRIVER

Reviewer Comments
No reviewer comments were left for this shift.

415 Actions

Initiated	Last Modified	Last Submitted	Last Returned	Last Approved	Finalized
10/31/2024 20:08:18, 023295	03/25/2025 14:41:43, DOJ-AP	11/01/2024 06:14:05, 023295	n/a	11/01/2024 13:10:00, 020592	03/25/2025 14:41:43, DOJ-AP
Current Status		**Inactivated**	**Tag Number**	**Version Number**	**Run Date**
Finalized		n/a	PV1633363	v.3.0.31287	05/10/2026 17:14:33.5255

10/31/2024 Regular Shift Info for 023054

Name	Supervisor	Shift Start	Shift Length	Partner	Beat	Review Area	Shift Area
MELANO, J.	018217	1930	10	023295	068	390	390

Schedule	Weapon Checked	License Plate	Assigned Taser	Assigned PAS	Assigned MVARS	CHP415ID
Graveyard	No	1633363	3	3	WMVARS	16441961

Shift Times, Totals, OT, and Premium Pay Info

FLSA (10/07-11/03)	Patrol	Reg. Activity	OT Activity (Non-Reimbursable OT)	Reg Miles	Total SPC Miles
168.00/170	01:10 (01:10)	08:50	00:00 (00:00)	0	0

Premium Pay	FTO	OIC	AMR	Bus. Call	CTO/Stand By	CTO	Stand By
				No			

Enforcement Focus (Section G) Totals	Speed
	4

Activities for Day

Start	Elapsed	Beat	Activity	2nd Act.	SPC	Location	Activity Comment
19:30	00:45	900	Briefing/Debriefing	PV Svcs.		OFFICE	BRIEFING AND PV SET UP
20:20	00:30	051	PA			WB 580 TO 680	
20:55	00:05	067	MS			NB 680 FROM BERNAL	74908C2, UNK MECH
21:00	00:10	068	PA			NB 680 FROM 580 TO EL CERRO	
21:15	00:10	068	PA			NB 680 SO CROW CANYON	
21:30	00:20	069	215 Moving			680 SB SO SYCAMORE VALLEY	27: Y4497412 FOR SPEED
21:50	00:15	068	PA			SB 680 SO CROW CANYON	
22:10	00:20	051	215 Moving			EB 580 WO FOOTHILL	22349(a) VC
22:30	00:15	900	PV Svcs.			OFFICE	PV REFUEL
22:55	00:20	051	215 Moving			EB 580 EO FIRST ST	22349(a) VC
23:20	00:20	051	PA			WB 580 WO SANTA RITA	
23:55	00:20	052	215 Moving			580 WB WO N. LIVERMORE	27: W9171145 FOR SPEED
00:20	00:15	068	VW Equipment			NB 680 SO ALCOSTA	Y6363697, 5200(a) VC
00:55	02:35	052	PA	180		EB 580 WO ISABEL	22651(h)(1) VC
03:30	00:10	900	PV Svcs.			OFFICE	PV REFUEL
03:40	00:30	053	PA T			WB 580 EO GRANT LINE	
04:30	00:45	900	555I T			OFFICE	KRAFT FACTUAL
05:15	00:45	900	PV Svcs.	Briefing/Debriefing		OFFICE	PV BREAK DOWN AND DEBRIEF

Officer and Reviewer Comments

Community Engagement	Services
No community engagement comments left	No service comments left
Activity	**Miscellaneous Notes**
PARTNER HAD 10-15 THAT WAS REFUSAL AND WROTE BLOOD WARRANT.	No comments left

Reviewer Comments
No reviewer comments were left for this shift.

415 Actions

Initiated	Last Modified	Last Submitted	Last Returned	Last Approved	Finalized
10/31/2024 20:19:25, 023054	03/25/2025 14:41:05, DOJ-AP	11/01/2024 05:58:34, 023054	n/a	11/01/2024 13:06:57, 020592	03/25/2025 14:41:05, DOJ-AP

Current Status	Inactivated	Tag Number	Version Number	Run Date
Finalized	n/a	TAB224731	v.3.0.31287	05/12/2026 10:09:02.1891

AGO 000061

EXHIBIT F

Transcript of CHP Dashcam Recording

Recording of November 1, 2024 · Prepared by Petitioner
15-page edition submitted to CHP with the April 9, 2026 request
Filed petition PDF pp. 68–82 (Pet. Ex. 5) · App. 060–075

Conditional status: prepared by Petitioner; speaker labels and bracketed descriptions are Petitioner's own.
Not CHP-certified and not a substitute for the original recording, which controls.
Not the separate 19-page Matter 33 edition.

TRANSCRIPT OF CALIFORNIA HIGHWAY PATROL DASHCAM VIDEO AND AUDIO RECORDING

Incident Date: November 1, 2024

Location: Interstate 580 East, Livermore, Alameda County, California

CHP Case Number: RJ68845

Recording Duration: 00:54:36 – 01:57:10

CERTIFICATE OF ACCURACY

I, Brendan Ngehsi Newanforbi, hereby certify that the following transcript is a true and accurate transcription of the audio and video recording captured by the California Highway Patrol dashcam during the incident of November 1, 2024. Timestamps are synchronized with the original recording. Speaker identifications are based on visual and audio identification from the recording.

LEGEND:

Meza-Gonzalez: CHP Officer Santiago Meza-Gonzalez (Badge #023295)

Melano: CHP Officer Jose Melano (Badge #023054)

Plaintiff: Brendan Ngehsi Newanforbi

Dispatch: CHP Radio Dispatch

[Bracketed text]: Actions, observations, or non-verbal events visible on recording

VERBATIM TRANSCRIPT

I. INITIAL APPROACH AND VEHICLE CONTACT (00:54:36 – 00:56:45)

00:54:36 — [CHP vehicle heading eastbound on I-580.]

00:55:25 — [CHP vehicle begins to pull over onto shoulder and behind the Tesla.]

00:55:37 — [CHP vehicle comes to a full and complete stop; audio recording activates.]

00:55:53 — **Melano:** "It's a rental. Huh."

00:55:57 — [Both officers exit CHP vehicle and walk toward Tesla on dirt shoulder, passenger side. Both have flashlights in hand.]

00:56:00 — [Meza-Gonzalez lifts left arm with flashlight (light on) and points it at Plaintiff's vehicle, passenger side.]

00:56:05 — [Both officers are now peering into Plaintiff's windows with flashlights, appearing to search the interior.]

00:56:09 — **Melano:** "I think it's booze."

00:56:07 — [Officers continue peering into vehicle. Meza-Gonzalez begins knocking on front passenger side window.]

00:56:07 — **Melano:** "It wasn't here earlier when we passed by."

00:56:30 — **Melano:** "Oh look at this."

00:56:30 — [Meza-Gonzalez continues knocking on window to wake Plaintiff.]

00:56:40 — **Melano:** "Open the window."

00:56:43 — [Passenger side door is opened by Officer Joselyn Melano.]

00:56:46 — **Melano:** "Hello."

00:56:46 — **Plaintiff:** "Uh-huh."

00:56:47 — **Melano:** "Are you okay?"

00:56:48 — **Plaintiff:** "Yeah, we good."

00:56:49 — **Melano:** "Why are you here? Just tired?"

00:56:50 — [Plaintiff repeatedly says "no."]

00:56:52 — **Melano:** "What do you mean?"

00:56:54 — [Plaintiff repeatedly says "no."]

00:56:58 — **Plaintiff:** "We're good. We good, we good. Yeah we're straight."

00:57:05 — **Melano:** "OK. Where were you coming from?"

00:57:11 — **Plaintiff:** "We're coming from uh, uh, a party."

II. CUP INSPECTION AND DETERMINATION (00:57:30 – 00:59:12)

00:57:35 — **Melano:** "OK. How long have you been here for?"

00:57:30 — **Plaintiff:** "I've been here at this place right here for, since a little after midnight."

00:57:39 — **Meza-Gonzalez:** "No, I mean like how long have you been parked here on the side of the road?"

00:57:43 — **Plaintiff:** "Oh parked at this parking lot right here?"

00:57:46 — **Meza-Gonzalez:** "This is not a parking lot."

00:57:49 — **Plaintiff:** "Two... two o'clock."

00:57:49 — [Plaintiff still groggy from sleep.]

00:57:51 — **Meza-Gonzalez:** "No, right there it says twelve fifty-seven a.m. on the dash. You see it says 12:57 a.m.?"

00:57:58 — **Plaintiff:** "Yeah I should be home by like 1:30."

00:58:01 — **Meza-Gonzalez:** "I understand. But um how long have you been here on the side of the road for?"

00:58:06 — **Plaintiff:** "Oh uh like 5-7 minutes."

00:58:07 — **Meza-Gonzalez:** "5-7 minutes? Okay. And you were at this party alone?"

00:58:13 — **Meza-Gonzalez:** "Like, I know but, you were driving? That was what I meant to ask you."

00:58:30 — **Meza-Gonzalez:** "How much have you had to drink at the party? You said it was like 2 hours ago?"

00:58:36 — **Plaintiff:** "Zero."

00:58:37 — **Meza-Gonzalez:** "You haven't had anything?"

00:58:38 — **Plaintiff:** "No, no."

00:58:34 — **Meza-Gonzalez:** "Okay. What's in that cup right there?"

00:58:46 — **Plaintiff:** "Don't drink it. Yeah don't drink it."

00:58:49 — **Melano:** "What is it? Let me see."

00:58:51 — **Melano:** "Is it water? No this is piss. This is pee."

00:58:57 — **Plaintiff:** "I don't know what that is."

00:58:59 — **Melano:** "I'm telling you it's piss. It smells like piss."

00:58:59 — [Melano has liquid cup in hand and motions it. Meza-Gonzalez leans back.]

00:59:02 — **Meza-Gonzalez:** "No I'm not gonna smell that."

00:59:04 — **Melano:** "Yeah, I'm telling you it's piss."

00:59:05 — **Plaintiff:** "Oh, OK."

00:59:07 — **Melano:** "OK. Leave it there. Put it back."

00:59:12 — **Meza-Gonzalez:** "Could I just have you uh just step out of your vehicle real quick?"

III. PLAINTIFF EXITS VEHICLE AND IDENTIFICATION (00:59:25 – 01:01:16)

00:59:20 — [Plaintiff crosses over from passenger side to driver side at Meza-Gonzalez's command.]

00:59:25 — **Meza-Gonzalez:** "And then uh just hop out of your vehicle."

00:59:27 — **Melano:** "Where's your ID at?"

00:59:31 — **Meza-Gonzalez:** "Do you have any ID on you at all? Is it on your pants?"

00:59:34 — **Melano:** "Yeah he said it's in his pocket bro."

00:59:36 — **Meza-Gonzalez:** "Pocket? OK."

00:59:38 — **Meza-Gonzalez:** "What's your first name?"

00:59:39 — **Plaintiff:** "Brendan, sir."

00:59:40 — **Meza-Gonzalez:** "Brendan? OK. Alright Brendan, just meet me right next to my car, OK?"

00:59:38 — [Plaintiff calmly complying with commands, walking toward CHP vehicle in a manner consistent with no signs of impairment.]

00:59:46 — **Meza-Gonzalez:** "What's your last name?"

00:59:47 — **Plaintiff:** "Newanforbi."

00:59:50 — **Meza-Gonzalez:** "What's your last name?"

00:59:51 — **Plaintiff:** "Newanforbi."

00:59:53 — **Meza-Gonzalez:** "You could — you could stand here."

00:59:53 — [Meza-Gonzalez motions Plaintiff to stand next to CHP vehicle.]

00:59:55 — **Meza-Gonzalez:** "So you said your last name was what?"

00:59:57 — **Plaintiff:** "NEW-WAN-FOR-BI."

01:00:00 — **Meza-Gonzalez:** "Newanforbi?"

01:00:01 — **Plaintiff:** "Yes."

00:59:46 — [Melano can be seen opening rear or backseat passenger door and conducting a search while Plaintiff is being escorted by Meza-Gonzalez.]

01:00:02 — **Meza-Gonzalez:** "OK."

01:00:04 — **Meza-Gonzalez:** "Can I see your ID please?"

01:00:06 — **Melano:** "Meza?"

01:00:06 — [Melano calls Meza-Gonzalez's attention, then walks over with an empty can in hand.]

01:00:07 — **Meza-Gonzalez:** "Did you drink that?"

01:00:08 — **Plaintiff:** "No."

01:00:09 — **Melano:** "Mike's Hard Lemonade. Source alcohol."

01:00:09 — **Meza-Gonzalez:** "No? You didn't drink that?"

01:00:09 — [Plaintiff nods 'no.']

01:00:11 — **Meza-Gonzalez:** "You haven't drank anything since you've been parked?"

01:00:14 — **Plaintiff:** "No."

01:00:15 — **Meza-Gonzalez:** "OK. Can I see your ID? Your ID real quick?"

01:00:17 — [Plaintiff calmly presents ID to Meza-Gonzalez.]

01:00:19 — **Meza-Gonzalez:** "Alright sir, thank you."

01:00:21 — **Meza-Gonzalez:** "Brendan Newanforbi."

01:00:21 — [Officer reading the ID.]

01:00:22 — [Plaintiff quietly nods head yes.]

01:00:24 — **Meza-Gonzalez:** "Uh, do you still live on Cat Tail?"

01:00:26 — [Plaintiff nods head and says yes.]

01:00:28 — **Meza-Gonzalez:** "You said you've been here for seven minutes. Uh, you drove home from a party. When was the party at?"

01:00:34 — **Plaintiff:** "It wasn't all the way in Oakland."

01:00:37 — **Meza-Gonzalez:** "Oakland? Oh and you're going back home to Stockton?"

01:00:39 — **Plaintiff:** "Yes."

01:00:40 — **Meza-Gonzalez:** "You know where you're at right now?"

01:00:41 — **Plaintiff:** "Right now, Livermore."

01:00:43 — **Meza-Gonzalez:** "You are in Livermore."

01:00:44 — [Plaintiff proceeds to read a highway sign about 50 yards away.]

01:00:44 — **Plaintiff:** "Isabella Avenue, Portola Avenue, ___ Avenue."

01:00:46 — **Meza-Gonzalez:** "Correct."

01:00:50 — **Meza-Gonzalez:** "Correct. And you haven't had any alcohol since you've been parked here?"

01:00:53 — **Plaintiff:** "No sir."

01:00:54 — **Meza-Gonzalez:** "Did you have any alcohol at the party?"

01:00:56 — **Plaintiff:** "No."

01:00:57 — **Meza-Gonzalez:** "No? OK."

01:00:57 — [Meza-Gonzalez reaches into shirt pocket, pulls out two notebooks and a pen. Flips open a page and continues questioning.]

01:01:16 — **Meza-Gonzalez:** "So why was the reason that you stopped on the side of the road? You just felt tired?"

IV. PRE-FST QUESTIONING (01:01:21 – 01:05:07)

01:01:21 — **Plaintiff:** "You know I'm a truck driver. So when I feel tired, when I feel fatigued, whenever I am unable to continue to drive that truck, I'm gonna pull over to the side of the road, try to get a nap. It's not often that I'm going to go into the exit. It's not often that I'm gonna do that because it's an immediate thing. How quickly can I move over to the side of the road, catch some shut-eye, wake up and continue on to finish the route? I adopt that same sort of mentality..."

01:01:55 — **Meza-Gonzalez:** "...when you're driving your personal vehicle?"

01:01:56 — **Plaintiff:** "...when I drive my personal vehicle."

01:01:58 — **Meza-Gonzalez:** "OK, is this your car though?"

01:01:59 — **Plaintiff:** "This is a rental."

01:02:02 — **Meza-Gonzalez:** "Do you know anything mechanically wrong with it or is it perfectly fine?"

01:02:06 — **Plaintiff:** "Uh, I don't know what could have been wrong with it. As far as I know, since I've only had it for what, less than a week."

01:02:15 — **Meza-Gonzalez:** "OK. Are you sick or injured?"

01:02:17 — **Plaintiff:** "Sorry?"

01:02:18 — **Meza-Gonzalez:** "Are you sick or injured?"

01:02:19 — [Plaintiff leans head toward the right to hear Meza-Gonzalez's question better.]

01:02:19 — **Meza-Gonzalez:** "Are you sick or injured?"

01:02:21 — **Plaintiff:** "Am I sick or injured physically? No."

01:02:26 — **Meza-Gonzalez:** "OK. Are you diabetic or epileptic?"

01:02:28 — **Plaintiff:** "I have — I have been diagnosed with pre-diabetes."

01:02:31 — **Meza-Gonzalez:** "Pre-diabetes? OK. And do you take insulin?"

01:02:34 — **Plaintiff:** "No sir, no sir. I don't take any insulin to treat the pre-diabetes."

01:02:41 — **Meza-Gonzalez:** "OK. So you don't have any physical impairments?"

01:02:48 — **Plaintiff:** "Besides the pre-diabetes and the uh..."

01:02:51 — **Meza-Gonzalez:** "Can I have you spit out whatever is in your mouth?"

01:02:51 — [Meza-Gonzalez motions with circular motion, points at his mouth.]

01:02:53 — **Plaintiff:** "Oh I'm sorry, that's — that's just like spit."

01:02:53 — [Plaintiff leaning downward and away from Meza-Gonzalez.]

01:02:54 — **Meza-Gonzalez:** "Is it seeds or what is it?"

01:03:01 — **Plaintiff:** "That's a hotdog, from the hotdog stand."

01:03:05 — **Meza-Gonzalez:** "Oh OK. I just wasn't sure what you were chewing on. That's why I wanted you to spit it out."

01:03:09 — **Plaintiff:** "Sorry."

01:03:10 — **Meza-Gonzalez:** "It's fine. Alright, um when was the last time you slept? 'Cause I know that we've got you sleeping right here. How long would you say you slept for, maybe like, you got like

5 minutes of shut-eye right now?"

01:03:19 — **Plaintiff:** "Yeah like only been 7, yeah."

01:03:28 — **Meza-Gonzalez:** "OK. And what did you last eat? You said a hotdog?"

01:03:31 — **Plaintiff:** "Yeah."

01:03:32 — **Meza-Gonzalez:** "What time did you have the hotdog?"

01:03:34 — **Plaintiff:** "What time is it now sir?"

01:03:35 — **Meza-Gonzalez:** "Uh right now it's 1 AM."

01:03:42 — **Plaintiff:** "Maybe like 11:30."

01:03:47 — **Meza-Gonzalez:** "And you were driving correct? The car, the Tesla?"

01:03:50 — **Plaintiff:** "I was in the driver's seat, yes sir."

01:03:53 — **Meza-Gonzalez:** "OK, but you were driving? 'Cause you said you came from a party in Oakland?"

01:03:57 — **Plaintiff:** "Oakland, yes."

01:03:59 — **Meza-Gonzalez:** "OK. Um, you started driving from Oakland, you're going to Stockton, and you said you know that you're in Livermore right?"

01:03:59 — [Meza-Gonzalez making hand motions.]

01:04:07 — **Plaintiff:** "Yeah, I'm aware of that."

01:04:12 — **Meza-Gonzalez:** "What you said you haven't been drinking anything at all? No alcohol? OK."

01:04:14 — **Plaintiff:** "No sir."

01:04:18 — **Meza-Gonzalez:** "Have you bumped your head recently? Like at all?"

01:04:21 — **Plaintiff:** "I'm not sure."

01:04:23 — **Meza-Gonzalez:** "OK."

01:04:29 — **Meza-Gonzalez:** "Are you under the care of a doctor or dentist?"

01:04:33 — **Plaintiff:** "If you ask me who my primary care doctor was, I wouldn't be able to tell you."

01:04:37 — **Meza-Gonzalez:** "That's fine. I was just — I just want to know if you're under the care of a doctor or dentist for something, like something, like an injury or something."

01:04:44 — **Plaintiff:** "Like I said, I have recently seen a doctor for high blood pressure."

01:04:51 — **Meza-Gonzalez:** "OK. Have you taken any medication or drugs?"

01:04:56 — **Plaintiff:** "No drugs or medicine."

01:05:00 — **Meza-Gonzalez:** "No? OK."

01:05:00 — [Meza-Gonzalez proceeds to command Plaintiff to come to his car.]

V. FIELD SOBRIETY TESTS (01:05:07 – 01:10:30)

01:05:07 — **Meza-Gonzalez:** "Alright, so what I'm gonna have you do is come off of my car, OK? I'm gonna have you put your feet together. Put your feet together for me. Put your hands down by your side, and then just remain like this until I tell you to do something else. Do you understand?"

01:05:21 — **Plaintiff:** "Yes sir."

01:05:22 — **Meza-Gonzalez:** "Alright. So what you're gonna do is you're gonna look at the tip of my finger with your eyes without moving your head. Do you understand?"

01:05:34 — **Meza-Gonzalez:** "Eyes test."

01:06:11 — **Meza-Gonzalez:** "Just continue looking at the tip of my finger, OK?"

01:06:54 — **Meza-Gonzalez:** "Alright, now come down to your nose, go around your face here. I'm not gonna touch you, OK?"

01:07:04 — **Meza-Gonzalez:** "OK."

01:07:04 — [Ends HGN test.]

01:07:05 — **Meza-Gonzalez:** "You can relax."

01:07:06 — **Meza-Gonzalez:** "What do you drive?"

01:07:12 — **Plaintiff:** "I drive a uh Tesla Model Y."

01:07:14 — **Melano:** "You need a jacket or anything?"

01:07:15 — **Meza-Gonzalez:** "I'm good."

01:07:17 — **Meza-Gonzalez:** "Uh, a Tesla Model Y?"

01:07:18 — **Plaintiff:** "A Tesla Model Y."

01:07:21 — **Meza-Gonzalez:** "So you don't drive a, you said you drive a truck right?"

01:07:33 — **Plaintiff:** "I do drive a semi truck for a living. I do have a Class A license."

01:07:34 — **Meza-Gonzalez:** "Alright so what I'm gonna have you do, put your feet together, hands down by your side, OK? And then just remain like this until I tell you to do something different. Do you understand?"

01:07:41 — **Plaintiff:** "Understood."

01:07:42 — **Meza-Gonzalez:** "Alright, so when I tell you to do so, not now, what you're gonna do, when I tell you to, you're gonna tilt your head back alright, and then when I tell you to do so, close your eyes. Close your eyes OK? Once you believe that 30 seconds have passed by, you're gonna open your eyes, you're gonna look at me, and you're gonna tell me to stop. Do you understand?"

01:07:58 — **Plaintiff:** "Understood."

01:07:59 — **Meza-Gonzalez:** "OK, so tilt your head back and close your eyes."

01:08:02 — [Meza-Gonzalez starts timer.]

01:08:40 — [Plaintiff opens eyes and looks at Meza-Gonzalez, signaling for time to stop.]

01:08:41 — **Meza-Gonzalez:** "Stop?"

01:08:44 — [Plaintiff nods head yes.]

01:08:45 — [Meza-Gonzalez stops timer.]

01:08:53 — [Meza-Gonzalez pulls notebook out, clicks pen, takes notes.]

01:08:58 — **Meza-Gonzalez:** "Alright so what I'm gonna have you do now is same thing. Keep your feet together, hands down by your side, and then just remain like this until I tell you to do something different, OK? What you're gonna do is you're gonna choose either leg of your choice, OK? You're gonna lift it off the ground OK? 1 thousand 1, 1 thousand 2, 1 thousand 3, OK?"

01:09:14 — **Plaintiff:** "Really?"

01:09:20 — **Meza-Gonzalez:** "Yeah. You want to do it? It's fine if you don't. You don't have to."

01:09:23 — **Plaintiff:** "Well I mean, you're giving me all these tests. It seems as though I'm passing them and then the level of difficulty just keeps increasing and increasing and increasing. I just wanna know if I've passed your test."

01:09:43 — **Melano:** "We have other tests you could do."

01:09:44 — **Meza-Gonzalez:** "Yeah there's other ones we could do."

01:09:46 — **Plaintiff:** "So I haven't passed any of your tests yet?"

01:09:49 — **Meza-Gonzalez:** "I'm not saying that you haven't passed them yet. I'm just having you do them first."

01:09:52 — **Melano:** "Yeah there's not pass or fail."

01:09:54 — **Plaintiff:** "They obviously are because if there were pass or fail, if they were pass then I would have..."

01:09:58 — **Meza-Gonzalez:** "I need to do all of them. I go through all of them regardless if it's a pass or what you think is a pass or fail."

01:10:10 — **Meza-Gonzalez:** "Alright?"

01:10:12 — **Plaintiff:** "I don't think I — I don't know if I can balance on one knee."

01:10:14 — **Meza-Gonzalez:** "OK, well for the next one I'm gonna have you walk in a straight line, imaginary line. You want to do that one yes or no?"

01:10:23 — **Plaintiff:** "I mean I think we can do that. I mean..."

01:10:25 — **Melano:** "It's kind of sketch here bro."

01:10:26 — **Meza-Gonzalez:** "Is it 'cause it's on the side of the freeway?"

01:10:27 — **Melano:** "Yeah, it's on the side of the freeway and it's like uneven ground. I wouldn't do that one."

01:10:30 — **Meza-Gonzalez:** "Alright then."

VI. PAS TEST REQUEST AND ARREST (01:10:33 – 01:11:42)

01:10:33 — **Meza-Gonzalez:** "Alright, so then I'm gonna request you take a preliminary alcohol screening test for assisting me in determining whether you are under the influence of alcohol or not. You may refuse to take this test, however this is not an implied consent test and if you are arrested you will be required to give a sample of your blood or breath for the purpose of determining the alcoholic and drug content of your blood. Is that fine?"

01:10:51 — **Plaintiff:** "So you're saying that I am required or not required?"

01:10:54 — **Meza-Gonzalez:** "You're not required to do this. It'll assist me in determining whether you are under the influence of alcohol."

01:11:01 — **Plaintiff:** "And if I choose not to consent to it?"

01:11:03 — **Meza-Gonzalez:** "If you choose to not consent to it then it'll be up to my discretion whether I put you under arrest for DUI or not."

01:11:11 — [Meza-Gonzalez and Melano calibrating breathalyzer.]

01:11:13 — **Meza-Gonzalez:** "Yes or no?"

01:11:15 — **Plaintiff:** "I don't consent to that."

01:11:16 — **Meza-Gonzalez:** "OK. Brendan. Alright then. I'm gonna have you just turn around please. Place your hands behind your back."

01:11:31 — **Meza-Gonzalez:** "Place your hands behind your back."

01:11:33 — **Meza-Gonzalez:** "Separate your feet, point your toes out and don't move, okay?"

01:11:33 — [Meza-Gonzalez proceeds to place handcuffs on Plaintiff.]

01:11:36 — **Melano:** "Go ahead."

01:11:36 — [Melano radios dispatch.]

01:11:42 — **Dispatch:** "Uh so he is on parole fo [REDACTED] s also [REDACTED] lear with San Joaquin and I'm gonna check Alameda."

VII. POST-ARREST PROCESSING (01:12:32 – 01:25:24)

01:12:32 — **Melano:** "He's on parole."

01:12:33 — **Meza-Gonzalez:** "You have the keys right?"

01:12:54 — **Meza-Gonzalez:** "I'm gonna just search you right now."

01:12:54 — [Meza-Gonzalez proceeds with pat down.]

01:13:01 — **Melano:** "You need a property bag or no?"

01:13:02 — **Meza-Gonzalez:** "I got a property bag."

01:13:05 — **Melano:** "OK, look you want me to hold it for you?"

01:13:05 — **Meza-Gonzalez:** "I don't have it on me though."

01:13:14 — [Meza-Gonzalez reaches into Plaintiff's left pant pocket. Search of person continues.]

01:13:31 — **Meza-Gonzalez:** "What's this ankle bracelet for?"

01:13:33 — **Plaintiff:** "Like you said, I am on parole."

01:13:35 — **Melano:** "Yeah."

01:13:38 — **Meza-Gonzalez:** "So you're on post-community supervision?"

01:13:42 — **Plaintiff:** "Uh I think there's a difference between PRCS—"

01:13:43 — **Melano:** "Yeah, there is."

01:13:46 — **Plaintiff:** "PRCS, parole, and uh what's the other one, probation."

01:14:30 — **Melano:** "Hey boss is there anything in the car that you want us to note on an inventory form that's really important of value that you want to take with you?"

01:14:33 — **Plaintiff:** "Not necessarily, I mean..."

01:14:34 — **Melano:** "Like do you want to take your phone with you or something?"

01:14:36 — **Plaintiff:** "Like my motor vehicle record, of course."

01:14:38 — **Melano:** "You want to take your phone with you?"

01:14:39 — **Plaintiff:** "Everybody would probably wanna take their phone."

01:14:42 — **Melano:** "Cool, so I'll grab your phone, anything else you want?"

01:14:49 — **Melano:** "Like phone, wallet, keys."

01:14:53 — **Plaintiff:** "You haven't seen anything else in there that's of value?"

01:14:56 — **Melano:** "No, I'll check. I haven't checked yet. I'm asking first."

01:14:59 — **Plaintiff:** "Phone, keys, wallet, paperwork."

01:15:06 — [Meza-Gonzalez escorts Plaintiff to passenger side of squad car and puts him in the back seat, cuffs still on. He attaches the handcuffs to the vehicle frame and then closes the door.]

01:15:54 — **Meza-Gonzalez:** "Alright so uh you have the option of a chemical breath test or a chemical blood test, which one would you like to do?"

01:16:04 — **Meza-Gonzalez:** "You won't do it right now but when we get to the jail which one would you prefer to do, chemical breath or chemical blood?"

01:16:19 — **Plaintiff:** "I don't know. It seems like torture."

01:16:37 — **Meza-Gonzalez:** "Well the thing is you need to make that decision now because if let's say you decide you don't wanna do either chemical breath or chemical blood, I will have to read you the back of a DMV sheet. I'll read you all the rules right for implied consent. Basically, what it breaks down to is if you don't choose a chemical breath or a chemical blood, the DMV will have to suspend your license."

01:16:59 — **Meza-Gonzalez:** "'Cause right now you're not refusing, you're just saying that basically you don't want to choose and I'm letting you know what's gonna happen."

01:17:11 — **Meza-Gonzalez:** "You wanna choose a chemical breath or blood?"

01:17:13 — **Plaintiff:** "And then I can't drive whatsoever?"

01:17:16 — **Meza-Gonzalez:** "I'll read you the back of the DMV sheet so that way you know everything OK? OK just watch your fingers."

01:17:16 — [Meza-Gonzalez closes passenger door, enters driver door.]

01:18:32 — [Meza-Gonzalez: "You got a 130?"]

01:18:34 — **Melano:** "Yeah I'm starting right now bro. I need to make sure there's no guns. He's on parole."

01:18:34 — [Melano continues searching vehicle.]

01:19:18 — [Meza-Gonzalez reads chemical test admonishment.]

01:20:49 — **Meza-Gonzalez:** "So that just broke it down detail by detail that basically if you refuse your driving privilege will be administratively suspended for one or three years by the DMV. Let's say you said you're sober right, you didn't drink anything whatsoever. Even if you still refuse to take a chemical breath or blood test, the DMV will administratively suspend your license for one year at least, and it could be up to three years."

01:21:17 — **Plaintiff:** "Well if that's what the DMV has to do then that's what the DMV has to do."

01:21:30 — **Meza-Gonzalez:** "So even though you know that you're gonna get suspended?"

01:21:33 — **Plaintiff:** "So you're saying the DMV will categorically suspend my license up to three years is what you're saying."

01:21:41 — **Plaintiff:** "Even as a truck commercial driver, that's what you're willing to do, force the DMV's hand?"

01:21:50 — **Meza-Gonzalez:** "I'm not forcing the DMV to do it, that's their rule."

01:21:52 — **Plaintiff:** "I get that."

01:21:54 — **Meza-Gonzalez:** "And all you have to do is take a chemical breath or chemical blood without refusing."

01:22:04 — **Plaintiff:** "With all due respect, by the power that's been vested upon you in the State of California..."

01:22:15 — **Meza-Gonzalez:** "So you're refusing to take a test?"

01:22:21 — **Meza-Gonzalez:** "OK."

01:23:11 — **Melano:** "Yeah we just have to write what time we last passed him here because he wasn't here earlier."

01:23:16 — **Meza-Gonzalez:** "But he said he was here for seven minutes."

01:23:17 — **Melano:** "Yeah plus we can't tell if—"

01:23:20 — **Melano:** "So I didn't circle in yet because I was doing my search first because he's on parole."

01:23:26 — **Melano:** "Let me sanitize my gloves, there was piss everywhere. Gross."

01:23:33 — **Melano:** "Yeah you want to start your warrant?"

01:23:34 — **Meza-Gonzalez:** "I could start the CLETS."

01:23:36 — **Melano:** "Start your CLETS yeah."

01:24:17 — **Melano:** "Any additional charges because he's on parole?"

01:24:17 — **Meza-Gonzalez:** "What's the parole for?"

01:24:21 — **Melano:** "'Cause he's supposed to be in prison, I don't think parole is. Actually there is a parole violation, that's says on. I don't know though."

01:25:24 — **Melano:** "Oh yeah it's gonna be a good partnership."

VIII. IMPLIED CONSENT ADVISEMENT (01:36:47 – 01:38:35)

01:36:47 — **Melano:** "Hey boss, um I'm gonna just read something for you OK?"

01:36:54 — **Melano:** "This is the implied consent advisement."

01:36:58 — **Plaintiff:** "Implied consent advisement."

01:37:00 — **Melano:** "Yes sir."

01:37:00 — **Plaintiff:** "It's not a Miranda right?"

01:37:02 — **Melano:** "No, no, no. Miranda rights we only give when we still wanna ask you questions about the investigation."

01:37:07 — **Plaintiff:** "OK."

01:37:08 — **Melano:** "We already have everything we need right? So we're not gonna read Miranda because we don't need anything. Uh this is different. This is a valid implied consent advisement."

01:37:08 — [Melano reads implied consent advisement.]

01:37:35 — **Plaintiff:** "A choice huh?"

01:37:37 — **Melano:** "Yeah. Blood or breath?"

01:37:39 — **Plaintiff:** "Now when you say required by law, what does that mean?"

01:37:32 — **Melano:** "So you're required by law like you have to do it."

01:37:34 — **Plaintiff:** "And what if I don't?"

01:37:36 — **Melano:** "If you don't do it we're gonna get it anyways. It says it's going to be with a warrant and you're gonna automatically lose your license."

01:37:42 — **Plaintiff:** "Yeah we've already been through this man."

01:37:45 — **Melano:** "Well I don't know, I just got back in the car. I haven't talked to you about it."

01:37:46 — **Plaintiff:** "Sorry, sorry. Yeah we've already been through this."

01:37:49 — **Melano:** "Oh OK."

01:37:50 — **Plaintiff:** "Officer Meza and uh we're good to go."

01:37:53 — **Melano:** "About what? So you already told him which one you want?"

01:37:57 — **Plaintiff:** "Yeah. Officer Meza didn't fill in. I'm sorry your name officer sir?"

01:38:01 — **Melano:** "Oh Melano sir."

01:38:02 — **Plaintiff:** "Officer Meza he didn't fill officer Melano in on it?"

01:38:06 — **Melano:** "So which one are we doing sir? I'm asking you here."

01:38:08 — **Melano:** "Neither?"

01:38:09 — **Plaintiff:** "Yep."

01:38:10 — **Melano:** "OK so we're getting a warrant and we're gonna... so we're doing a warrant and we're gonna do it."

01:38:18 — **Plaintiff:** "I mean that's what Officer Meza said."

01:38:30 — **Melano:** "OK perfect, so you do understand though?"

01:38:35 — **Melano:** "I mean it's a yes or no question sir. In that sense you're saying yes. So you could we're gonna get the warrant, then we're gonna do it and then OK perfect. I just want to make sure you

understand. Thank you."

IX. TRANSPORT AND CASUAL CONVERSATION (01:44:21 – 01:57:10)

01:44:21 — **Melano:** "We'll put your battery in the Tesla. Is there an alternator? Well there's a battery but there's no alternator."

01:44:28 — **Meza-Gonzalez:** "No alternator."

01:44:29 — **Melano:** "No? What keeps the battery charged then?"

01:44:34 — **Melano:** "That's a good question huh?"

01:44:37 — **Melano:** "Boss do you think your car has an alternator or nah?"

01:44:40 — **Plaintiff:** "I don't think electric vehicles have alternators."

01:44:42 — **Melano:** "That's what I'm saying 'cause it doesn't get—"

01:44:43 — **Meza-Gonzalez:** "The alternator is used to start up the car."

01:44:47 — **Melano:** "No, the battery is used to start the car. The alternator—"

01:44:53 — **Plaintiff:** "Teslas have motors."

01:44:54 — **Melano:** "Oh. Dual motors. That part OK."

01:44:57 — **Plaintiff:** "They get charged up."

01:44:59 — **Melano:** "They don't need to be recharged?"

01:45:01 — **Plaintiff:** "Just like your phone gets charged."

01:45:02 — **Melano:** "Oh that's why you have a charger."

01:45:04 — **Meza-Gonzalez:** "Yeah."

01:45:05 — **Melano:** "And that's why the cars have an alternator 'cause the cars don't get charged."

01:45:27 — **Plaintiff:** "That's why you have a supercharger 'cause you take your car to it and charge it back up so you can drive it."

01:45:37 — **Plaintiff:** "Just like your phone."

01:45:37 — **Melano:** "Yeah thank you. I'm not a—"

01:45:45 — **Melano:** "Hey so I'm gonna put a paper in your bag that says when the vehicle is stored OK?"

01:52:05 — [Squad car leaves the scene with Plaintiff.]

01:57:10 — [Squad car arrives at the Santa Rita Jail, Dublin CHP transfer.]

— END OF TRANSCRIPT —

DECLARATION OF AUTHENTICITY

I, Brendan Ngehsi Newanforbi, declare under penalty of perjury under the laws of the State of California that the foregoing transcript is a true, accurate, and complete transcription of the California Highway Patrol dashcam video and audio recording from the incident of November 1, 2024, CHP Case No. RJ68845.

The original recording is in the possession of the California Highway Patrol and/or has been produced through discovery in this matter. This transcript was prepared from that recording and accurately reflects the statements and events captured therein.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on: **April 9, 2026**

/s/ Brendan Ngehsi Newanforbi

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Email: bnn.cdl@gmail.com

EXHIBIT G

Penal Code § 851.6 Detention Certificate

CHP Dublin Area (01991) · Arrest of November 1, 2024
Certifies a detention only, not an arrest
Filed petition PDF p. 90 (Pet. Ex. 7) · App. 076–077

BRENDAN NGEHSI NEWANFORBI
1455 CAT TAIL DR
STOCKTON, CA 95204

DEPARTMENT OF JUSTICE
STATE OF CALIFORNIA
(Rev. 07/2016)

DUBLIN CHP - 01991 - DETENTION CERTIFICATE

Penal Code section 849 provides:

(a) When an arrest is made without a warrant by a peace officer or private person, the person arrested, if not otherwise released, shall, without unnecessary delay, be taken before the nearest or most accessible magistrate in the county in which the offense is triable, and a complaint stating the charge against the arrested person shall be laid before the magistrate.

(b) A peace officer may release from custody, instead of taking the person before a magistrate, a person arrested without a warrant in the following circumstances:

(1) The officer is satisfied that there are insufficient grounds for making a criminal complaint against the person arrested.

(2) The person arrested was arrested for intoxication only, and no further proceedings are desirable.

(3) The person was arrested only for being under the influence of a controlled substance or drug and the person is delivered to a facility or hospital for treatment and no further proceedings are desirable.

(4) The person arrested was arrested for driving under the influence of alcohol or drugs and the person is delivered to a hospital for medical treatment that prohibits immediate delivery before a magistrate.

(c) The record of arrest of a person released pursuant to paragraphs (1) and (3) of subdivision (b) shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only.

Penal Code section 849.5 provides:

In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, any record of arrest of the person shall include a record of release. Thereafter, the arrest shall not be deemed an arrest, but a detention only.

Penal Code section 851.6 provides, in part:

(a) In any case in which a person is arrested and released pursuant to paragraph (1) or (3) of subdivision (b) of Section 849, the person shall be issued a certificate, signed by the releasing officer or his superior officer, describing the action as a detention.

(b) In any case in which a person is arrested and released and no accusatory pleading is filed charging him with an offense, the person shall be issued a certificate by the law enforcement agency which arrested him describing the action as a detention.

As required by Penal Code section 851.6, I hereby certify that the taking into custody of

NEWANFORBI, BRENDAN NGEHSI (NEWANFORBI, BRENDAN
Subject's Name (Subject's True Name)

on 11/01/2024
Date

by the

DUBLIN CHP - 01991
Name of Agency Taking Custody

RJ68845
Agency Report Number

was a detention only, not an arrest.

NEWANFORBI, BRENDAN NGEHSI (NEWANFORBI, BRENDAN NGEHSI)
Subject's Name (Subject's True Name)

was released on 11/05/2024
Date

by the DUBLIN CHP - 01991
Name of Releasing Agency

Signature

DEL CARLO, L.
Printed Name

022511
Badge or Identification Number

OFFICER
Title

Detention Certificate was prepared by chp22511 (CALIFORNIA HIGHWAY PATROL, DUBLIN) on 05/12/2025 11:53 AM.

EXHIBIT H

CHP and POST Complaint Correspondence

CHP complaint assignment letter, March 26, 2026 · Capt. G. Serrato
POST acknowledgment letter, March 23, 2026
Filed petition PDF pp. 141, 143 (Pet. Exs. 11, 12) · App. 078–080

Correspondence only; the underlying complaints to CHP and POST are not included.

CALIFORNIA HIGHWAY PATROL

4999 Gleason Drive, Dublin, CA 94568 | (925) 828-0466

GAVIN NEWSOM, GOVERNOR

CALIFORNIA STATE TRANSPORTATION AGENCY

March 26, 2026

File No.: 390.18437.17620

Brendan N. Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204

Subject: Complaint

Dear Mr. Newanforbi,

We recently received a complaint inquire from the California Commission on Peace Officer Standards and Training, regarding the dissatisfaction with the behavior of one of our employees. When dissatisfaction is expressed regarding the operations of the California Highway Patrol and/or the actions of its employees, the Department has a well-defined procedure for assisting civilians who wish to voice a grievance.

Once a complaint is received, it is my responsibility as the involved employee's commander to ensure a thorough investigation is conducted. The investigation will attempt to determine whether any improprieties exist. I have assigned Dublin Area Sergeant Eric Dutra, ID 19981, as the assigned investigator. Although complaints cannot always be resolved to a civilian's satisfaction, all investigations are conducted objectively and aim to maintain public confidence through the chain of command for an impartial review. After final approval, you will be provided with a closing written response.

Should you have any questions, please contact Sergeant Dutra at (925) 828-0466.

Sincerely,

G. SERRATO, Captain
Commander

Safety, Service, and Security

COMMISSION ON
PEACE OFFICER STANDARDS AND TRAINING

POST

GAVIN NEWSOM
GOVERNOR

ROB BONTA
ATTORNEY GENERAL

Re: CITIZEN COMPLAINT

Dear

The California Commission on Peace Officer Standards and Training (POST) has received your complaint concerning alleged misconduct on behalf of a peace officer in California. POST takes every complaint seriously.

POST will forward citizens' complaints of peace officer misconduct to the appropriate agency for investigation and disposition. After careful review, POST has forwarded your complaint to the agency below for follow-up.

You may contact this agency should you have additional information or questions regarding the status of your complaint.

If the allegation(s) meets the definition of serious misconduct pursuant to California Penal Code Section 13510.8, POST will conduct an independent review upon completion of the agency's investigation.

Thank you for bringing this matter to our attention.

Sincerely,

Intake and Disposition Bureau
Commission on POST
Peace Officer Standards Accountability Division
ComplaintIntake@post.ca.gov
(916) 227-2822

EXHIBIT

I

CHP Dublin Area Beat Assignment Sheet

October 31, 2024 · Graveyard shift
Produced October 23, 2026 by Respondents (Cal. Dept. of Justice)
AGO 000025 · App. 081–082

DUBLIN AREA BEAT ASSIGNMENTS

On Call: *Capt. Serrato* ID: 18437 [redacted] Mon Tue Wed Thu Fri Sat Sun

[redacted] ID: [redacted] C: [redacted]

OCTOBER 31 2024

Graves: 51 - 65 - 53 - 68 - 52 - 64

#	Beat	Name	ID	Veh	LIDAR	ECD	PAS	MISC	LL
S	S4	[redacted]	[redacted]						
S	S7	[redacted]	[redacted]						
1		[redacted]	[redacted]						
2		[redacted]	[redacted]						
3	51	[redacted]	[redacted]	19		10	25		
4		[redacted]	[redacted]			24			
5		[redacted]	[redacted]						
6		[redacted]	[redacted]						
7	68	Melano (SRT)	23054	18	7	3	3		
8		Meza-Gonzales	23295			13			
9		[redacted]	[redacted]						
10	65	[redacted]	[redacted]	10		26	31		
11	53	[redacted]	[redacted]	24		5	26		
12		[redacted]	[redacted]			4			
13	61	[redacted]	[redacted]			8			

BEAT	NAME	ID	VEH	LIDAR	ECD	PAS	LL#

Key: O=Office X= Follow Up R=Repair/calibrate
M=w/motor P=Previous Shift

N=Not in Service F=Field

Shift Notes:

	Overtime Units:	ID	VEH	LIDAR	ECD	PAS	10-8	10-10	LOG#	LOCATION	PARTNER ID
1											
2											
3											
4											
5											
6											
7											
8											
9											
10											

AGO 000025

BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
Email: bnn.cdl@gmail.com
Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **[PROPOSED] PEREMPTORY WRIT OF MANDATE** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492 Action filed May 29, 2026 Trial: Not set

THE PEOPLE OF THE STATE OF CALIFORNIA:

TO CALIFORNIA HIGHWAY PATROL, acting through its authorized certifying official, and G. SERRATO, in his official capacity, as applicable:

Pursuant to the judgment entered on _____ in case No. 26CV191136, YOU ARE COMMANDED:

1. To vacate the April 20, 2026 denial of Petitioner's April 9, 2026 Form I-918 Supplement B request.

2. Within 30 days after service of this writ, to reconsider that request in accordance with Penal Code section 679.10 and the specific findings and legal conclusions of the Court's judgment. The new determination shall correct the material error identified in that judgment and shall consider properly admitted incident evidence bearing on the alleged unlawful personal restraint.

3. In addressing qualifying criminal activity and victim helpfulness, to apply the requirements of section 679.10, subdivisions (c), (d), (g), (h) and (k), and the written-denial procedures of subdivision (i)(2), as applicable. Nothing in this writ requires a prosecution, conviction or arrest of any alleged perpetrator as a prerequisite to certification.

4. Within 45 days after service of this writ, to file and serve a verified return setting forth the actions taken to comply, together with the new determination or completed certification, subject to applicable confidentiality and lawful redactions.

This writ does not itself execute Form I-918 Supplement B, confer immigration status, compel production of privileged material, or decide any dismissed claim. The Superior Court retains jurisdiction to determine compliance.

WITNESS the Honorable _____, Judge of the Superior Court of California, County of Alameda.

Issued: _____

[COURT SEAL]

Clerk of the Superior Court

By: _____

Deputy Clerk

BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
Email: bnn.cdl@gmail.com
Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,

Respondents.

Case No. 26CV191136

[ALTERNATIVE PROPOSED] ORDER SETTING LIMITED EVIDENTIARY PROCEEDINGS ON FIRST CAUSE OF ACTION

Hon. Jenna M. Whitman, Dept. 25
Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492
Action filed May 29, 2026
Trial: Not set

Petitioner's noticed motion for judgment and peremptory writ of mandate under Code of Civil Procedure section 1085 having been heard, the Court finds that resolution of the surviving First Cause of Action requires determination of one or more genuinely material factual issues on competent evidence. The Court does not at this stage grant or deny the requested peremptory writ on the merits.

IT IS ORDERED:

1. An evidentiary hearing / trial-setting conference shall be held on _____ at _____ in Department 25.

2. The factual questions to be determined shall be confined to those material to the lawfulness of the November 1, 2024 compulsory personal restraint and the challenged April 20, 2026 certification decision, including the accuracy and materiality of the competing accounts of the walk-and-turn exchange, the material contemporaneous grounds for custody, and helpfulness only if qualifying victimhood is established.

3. The parties shall meet and confer and submit, no later than _____, a joint statement proposing the order of proof, witness and exhibit lists, authenticated access to the original CHP dashboard recording, and any narrowly necessary evidentiary stipulations. Any dispute concerning discovery, privilege or subpoenas shall be brought by separately authorized procedure.

4. Nothing in this order reinstates any dismissed claim or decides that criminal misconduct or certification eligibility has already been proved.

IT IS SO ORDERED.

Dated: _____

_____

JUDGE OF THE SUPERIOR COURT

BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
Email: bnn.cdl@gmail.com
Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **[PROPOSED] JUDGMENT GRANTING RELIEF ON FIRST CAUSE OF ACTION AND DIRECTING LAWFUL RECONSIDERATION** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492 Action filed May 29, 2026 Trial: Not set

This matter came before the Court on _____, on Petitioner's motion for judgment on the First Cause of Action and issuance of a peremptory writ under Code of Civil Procedure section 1085 and Penal Code section 679.10. The Court considered the admitted evidence, arguments, pleadings and record.

FINDINGS

1. Petitioner requested Form I-918 Supplement B certification from CHP on April 9, 2026. On April 20, 2026, CHP, acting through Captain G. Serrato, denied certification on the ground that the November 1, 2024 incident did not involve qualifying or substantially similar

criminal activity.

2. California Penal Code section 679.10 includes false imprisonment and unlawful criminal restraint among the qualifying activities. Certification is required when the conditions specified in subdivision (g)(1), including victimhood and helpfulness, are established. The absence of a prosecution or conviction is not a statutory disqualification.

3. The Court finds that the challenged determination rests on a material error in the assessment of qualifying criminal activity. In particular, the Court finds that the factual basis used to reject the alleged unlawful personal restraint cannot be sustained without correcting the material conflict between CHP's statement that Petitioner chose not to perform the walk-and-turn because it was difficult and the credited contemporaneous recording showing that the officer declined to administer that test because the roadway shoulder was unsuitable. This conflict materially affects the reliability of the report's stated arrest rationale, in combination with the evidence concerning the conditions of custody. The Court's reasoning and any additional factual findings are those stated on the record and incorporated into this judgment.

4. Accordingly, CHP's April 20, 2026 decision constituted a material abuse of discretion requiring vacatur and reconsideration under the correct evidentiary and statutory framework. The Court does not order direct certification because lawful factual evaluation remains for the authorized certifying official.

JUDGMENT AND DIRECTIONS

5. Judgment is entered in favor of Petitioner on the surviving First Cause of Action to the extent specified in this judgment. The April 20, 2026 denial is set aside. A peremptory writ shall issue commanding CHP, acting through an authorized certifying official, to make a new

determination on Petitioner's April 9, 2026 Form I-918 Supplement B request.

6. Within 30 days after service of the writ, CHP shall reconsider the request using the legally applicable definitions of qualifying criminal activity, the record as properly determined, and the Court's findings, without perpetuating the material error identified here. CHP shall not require charges or prosecution as a condition of certification and shall apply subdivisions (g), (h) and (k) of Penal Code section 679.10. If CHP denies certification, it shall comply with the written-notice requirements of subdivision (i)(2).

7. Within 45 days after service of the writ, Respondents shall file and serve a return explaining compliance and attaching the resulting decision or completed certification, with any necessary lawful redactions. The periods set here are terms of this judgment, not findings of a missed processing deadline concerning the original request.

8. This judgment concerns only the First Cause of Action. It neither grants immigration status nor awards damages nor revives dismissed claims. The Court retains jurisdiction to determine compliance with its writ.

9. Costs: as determined by separate order or further application pursuant to applicable law.

IT IS SO ORDERED.

Dated: _____

_____

JUDGE OF THE SUPERIOR COURT

BRENDAN NGEHSI NEWANFORBI
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
Email: bnn.cdl@gmail.com
Petitioner, in propria persona

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. **CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of CHP Dublin Area,** Respondents.	Case No. 26CV191136 **PROOF OF SERVICE OF MOTION PAPERS** Hon. Jenna M. Whitman, Dept. 25 Hearing: January 8, 2027, 9:00 a.m., Department 25; Reservation No. 958052306492 Action filed May 29, 2026 Trial: Not set

STATE OF CALIFORNIA, COUNTY OF _____

I am at least 18 years old and not a party to this action. My business or residence address is: _____.

On _____, I served the following documents in Newanforbi v. California Highway Patrol, No. 26CV191136:

1. Petitioner's Notice of Motion and Motion for Judgment on First Cause of Action and Peremptory Writ of Mandate; Memorandum of Points and Authorities;

2. Declaration of Brendan Ngehsi Newanforbi, with Appendix of Exhibits A--I (index and App. 001--082);

3. [Proposed] Judgment; [Proposed] Peremptory Writ; and [Alternative Proposed] Order Setting Evidentiary Proceedings.

Person served: Vanessa Ing, Deputy Attorney General, counsel for respondents CHP and G. Serrato.

Address: 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004.

E-mail shown on counsel's pleading: Vanessa.Ing@doj.ca.gov.

Method (complete only the actual method used):

[ ] ELECTRONIC SERVICE -- I transmitted the identified papers from _____ to _____ at _____, pursuant to applicable service consent/authority and without an electronic transmission failure notification.

[ ] U.S. MAIL -- On the date above, I enclosed copies in a sealed envelope, deposited them in the United States mail at _____, California, with postage fully prepaid, addressed to counsel as stated above.

[ ] PERSONAL SERVICE -- I delivered copies personally to _____ at _____ on _____ at _____.

[ ] OTHER AUTHORIZED SERVICE -- Describe the method and authority: _____.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, at _____, California.

_____

Signature of server

Printed name: _____